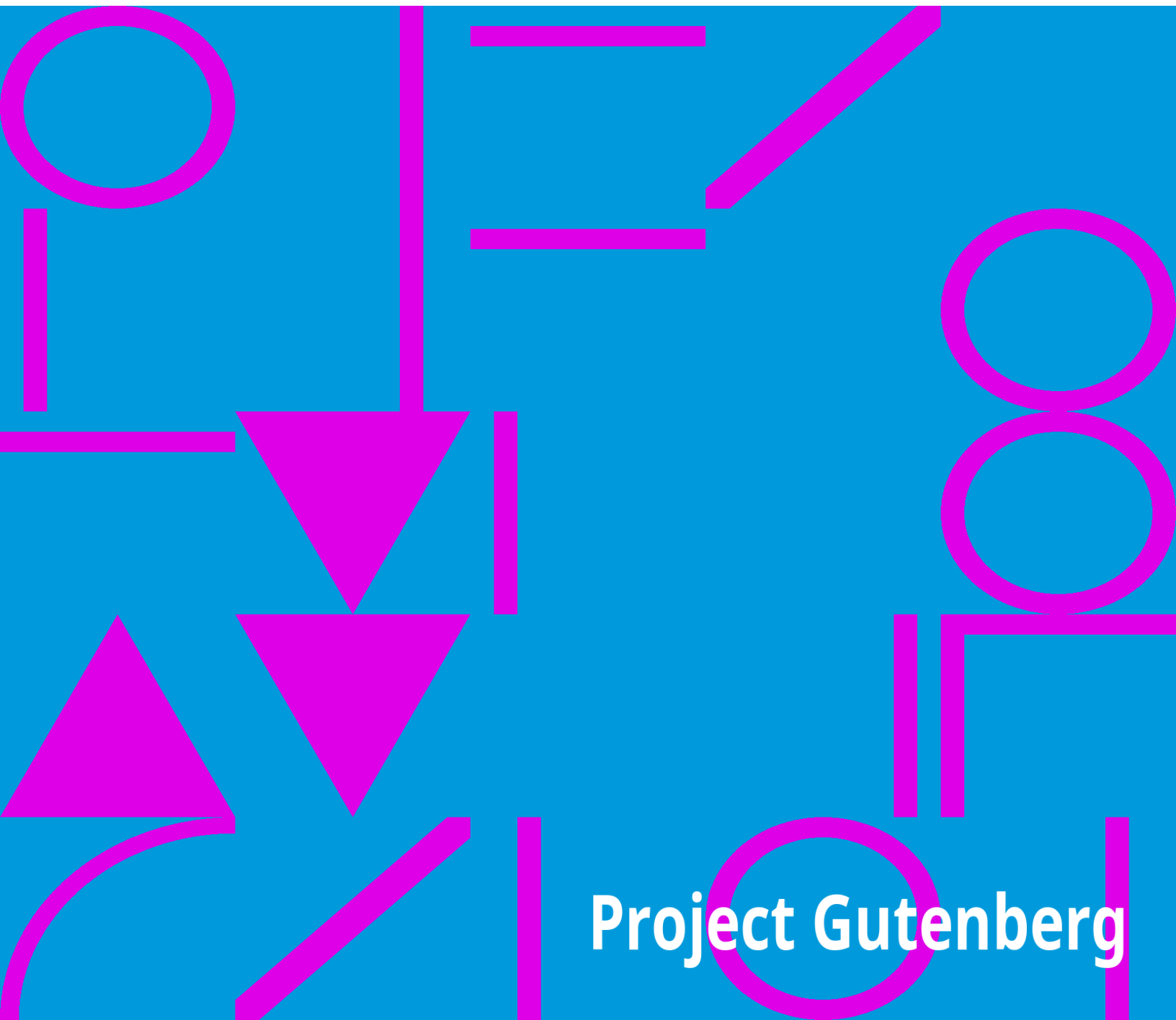


When the West was young

Frederick R. Bechdolt

The background of the lower half of the image is a solid blue color. Overlaid on this background is a complex, abstract pattern of magenta (bright pink) geometric shapes. These shapes include circles of various sizes, some solid and some outlined; triangles, some solid and some outlined; and lines of various lengths and orientations, including horizontal, vertical, and diagonal. The shapes are scattered across the blue area, creating a modern, graphic design.

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An abstract geometric pattern on a blue background, featuring various magenta shapes including circles, triangles, lines, and arcs. The pattern is dense and covers the lower two-thirds of the page.

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WHEN THE WEST WAS YOUNG



John Slaughter was gathering a great herd

WHEN THE WEST

WAS YOUNG

BY

FREDERICK R. BECHDOLT

D. APPLETON-CENTURY COMPANY

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TO MY FATHER
DR. A. F. BECHDOLT

ACKNOWLEDGMENT

The writer is indebted for the material in this book to a goodly number of the old-timers, from whose lips came much of which is written in the following pages, and to numerous printed works which he consulted, sometimes to authenticate data and sometimes to get additional facts.

Among the former to whom he wishes to make acknowledgment are: Former Sheriff John Ralphs, San Bernardino, California; Captain Harry C. Wheeler, Douglas, Arizona; A. M. Franklin, Tucson, Arizona; Colonel William Breckenbridge, Tucson, Arizona; Dr. D. T. MacDougal, Carnegie Institution; William Lutley, Tombstone, Arizona; Judge Duncan, Tombstone, Arizona; A. H. Gardner, Tombstone, Arizona; C. M. Cummings, Tombstone, Arizona; Andy Smith, Tucson, Arizona; Guy C. Welch, Tombstone, Arizona; Mr. and Mrs. John Slaughter, Douglas, Arizona; James East, Douglas, Arizona; Horace Stillman, Douglas, Arizona; D. F. McCarthy, Lipscomb, Texas; and the Arizona Pioneers' Association.

Among the latter are old files of the “Tombstone Epitaph” and other Arizona newspapers; Manley’s “Death Valley in ’49”; Upton’s “Pioneers of Eldorado”; Ridge’s “Life of Joaquin Murieta”; Dukes’ “Famous Criminal Cases”; Farish’s “History of Arizona”; McClintock’s “History of Arizona”; Hittel’s “History of California”; Bancroft’s Works; Visscher’s “Pony Express”; G. D. Bradley’s “Story of the Pony Express”; “Overland Stage to California,” by F. A. Root and W. E. Connely; Inman’s “Santa Fé Trail”; Humphreyville’s “Twenty Years Among Our Hostile Indians”; Richardson’s “Beyond the Mississippi”; Bourke’s “On the Border With Crook”; J. Ross Brown’s “Adventures in the Apache Country”; Charles Siringo’s “History of Billy the Kid”; Bard’s “Life of Billy Dixon, Scout and Plainsman”; Brown’s “History of Texas.”

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WHEN THE WEST WAS YOUNG

HOW DEATH VALLEY WAS NAMED

There were three of us sitting on a pile of lumber in a sun-baked little mining town down near the Arizona border. One of my companions was the sheriff of the county and the other was an old man with snowy beard and sky-blue eyes whom every one called "Mac." To look at him was to behold a vision of the past.

As we were whiling away the time with idle talk something was said which aroused the spirit of reminiscence within this survivor of the unfenced West. He closed his jack-knife with a snap, threw away a pine stick from which he had been peeling shavings, and turning his sky-blue eyes on the sheriff, "I remember—" he began.

After which he told of cheating Death in quicksand fords, of day-long battles with naked Apaches in the malapi, of fighting off bandits from the stage while the driver kept the horses on a run up Dragoon Pass, of grim old ranchmen stalking cattle-thieves by night, of frontier sheriffs and desperadoes and a wilderness that was more savage than the wild riders who sought sanctuary within its arid solitudes. He did not talk for more than forty-five minutes at the most and the words came slowly from his lips, but when he had done my head was spinning from more visions of bold men and large deeds than it had held since the Christmas night when I reeled off to bed after bolting a full half of the "Boy's Froissart."

And after that old man had sauntered away in the hot-white Arizona sunshine I thought of other grizzled chroniclers to whom I had listened in other parts of the West. Some of their tales came back to me, straightforward simple stories of the days before the farmers, barbed-wire fences, and branch railroad lines; and I marveled at the richness of a lore whose plain unvarnished narratives of fact stand out with values exceeding those of most adventure fiction, more vivid and colorful than the anecdotes of the Middle Ages which the French chronicler set down for all the world to read.

Every State between the Mississippi and the Pacific has its own stories of deeds that took place during an era when even the lawbreakers attained a certain harsh nobility, and when plain men must prove themselves heroic if they would survive. The names of many heroes in these tales have become like household words all over the United States, and what they did in many places is printed on the maps of school geographies; but there is a vanished legion of those old-timers who are remembered only in the immediate neighborhoods where they lived swiftly and died hard. Emigrant and prospector, pioneer and Indian chief, cow-boy and cattle-thief, sheriff, stage-robber, and pony express rider—only the old men can tell their stories now.

All of those men, whether they be famous or forgotten, owned a common virtue which still survives among the people who came after them. That pioneer spirit which makes the average American eager to try what no one else has done is the common motive in the tales of their exploits. It stands out strongly in this story which tells how Death Valley got its name.

One evening early in November, 1849, a party of emigrants was encamped near Mountain Meadows down in southern Utah close to the Nevada line. It was a glorious night of the intermountain autumn; the stars burned large and yellow overhead. In their faint radiance the white tops of more than one hundred prairie-schooners gleamed at the base of the hillside which rose into the west. Here and there one of the canvas covers glowed incandescent from a candlelight within, where some mother was tucking her children into their beds. Out on the long slope the feeding oxen moved like shadows through the sage-brush, and beyond them coyotes shrieked incessantly.

Fairly in the middle of the camp a leaping flame shone on the faces of a crowd of men. For the world-old question of a short cut had arisen to divide opinions in this company and they had gathered around a large fire to try to settle the matter.

They were on their way to California and the placer fields. In Salt Lake City they had learned that the season was too far advanced to permit their crossing the Sierras by the northern passes and they had organized into what they called the Sand Walking Company, with John Hunt, a bearded Mormon elder, as their captain and their guide. He was to conduct them by a trail, unmarked as yet by any wagon track, over which some of his people had

traveled to the old Spanish grant recently acquired by their church at San Bernardino. This route to the gold-fields followed the Colorado watershed southward taking advantage of such few streams as flowed into the basin, to turn northward again at the pueblo of Los Angeles. Thus it described a great loop nearly parallel with what is now Nevada's southern boundary.

But before the Sand Walking Company left Salt Lake City a man named Williams drew a map for one of its number showing what he claimed was a shorter pathway to the Land of Gold. This Williams Short Route, as it came to be called during many a heated discussion, struck off straight into the west bearing to the San Bernardino road the relation of a cord to its arc; until it reached a snow-clad peak. This peak, according to the map, was visible for many miles, a clear landmark during-nearly half the journey. Reaching it the trail turned sharply north to cross the range by an easy pass and traverse a long rich valley to the gold-fields. There were many legends of good feed and water-holes on the drawing. The promise of time saved was an important consideration, for all of the company were getting impatient to reach the placer diggings lest they be too late.

The trail forked near this place where they were encamped to-night. John Hunt had halted the party here for two days while scouts crossed the long divide to the west and looked over the country beyond the summit to see if wagons could travel that way. And now his pathfinders were giving their reports. They stood in the open space by the fire, three lean and sunburned men dressed in semi-Indian costume with their powder-horns slung from their shoulders and long sheath-knives in their beaded belts. One after the other they addressed the crowd and each gave it as his opinion that the short cut was impractical. The country was too rough, they said.

The murmur of many voices arose among the audience. Most of the men there were nearing middle age and doubt showed on the bearded faces of the great majority; doubt and disappointment, for they were eager to see their journey's end and that Williams map had aroused high hopes. Here and there a woman stood beside her husband, listening anxiously to what he said, watching his eyes as he harkened to the talk of those about.

But there was one portion of the circle which stood out in marked contrast to the rest. The men here were for the most part in their early twenties; their faces were serene, their eyes untroubled by any doubt; and there were no

women with them. While the others stood weighed down by uncertainty, they lounged full length on the ground basking in the heat of the flames, or sat in groups on near-by wagon-tongues, laughing and whispering jests among themselves. Several of them were wearing bits of Indian finery, after the manner of the guides, and this sprinkling of buckskin shirts, fringed leggings, and beaded moccasins, together with an occasional crop of thick hair that reached to a pair of broad young shoulders, gave a dash of savage picturesqueness to their section of the audience. They were a company of bachelors from Illinois and called themselves the Jayhawkers. Their end of the camp had been the scene of wrestling matches and frolic every night since the train had left Salt Lake City; and, as one might expect, it was one of their number who had gotten that map of the Williams Short Route. They were unanimous in advocating it.

Now Ed Doty, their captain, stepped forward into the open space by the fire. Fixing his bold young eyes on John Hunt, whom he addressed rather than the audience, "We haven't found the country yet," he said, "that could stop us and we're not afraid of that over there." He pointed out into the darkness where the summit of the divide showed black against the western sky. "We're going to try the Williams Short Route."

Hunt nodded. "All right," he answered quietly, "and if the rest try it, I'm going through with you if I have to pass through hell to reach the other end of the trail. But if one wagon sticks to the San Bernardino road I'll stay with that wagon, for I passed my word to take you that way."

It was sometime near midnight when the crowd left the fire, but the sun was barely up the next morning before the wagons were lined out along the side hill. Far ahead of them where the trail forked, John Hunt stood waiting alone.

The white-topped prairie-schooners came on slowly toward him from the northward through the sage; the heads of the long-horned oxen swinging low from side to side before their heavy wooden yokes. The first span reached the solitary figure of the captain and went straight on south; the wagon rumbled by and Hunt knew by its passing that he must keep to the San Bernardino trail.

But the second driver halted his team and leaned out from his seat to take the hand which Hunt extended him. "We'll try the short route," he said.

“Good-by,” the captain bade him; “good luck.” The man called to his lead span; the great yokes creaked and the front wheels whined against the wagon-box as the animals swung the prairie-schooner to the west.

And now wagon after wagon halted briefly while its occupants exchanged a brief farewell with the bearded man beside the road; then the outfit struck out straight westward up the long steep slope; until, when Hunt turned to rejoin his remnant of a following, three quarters of its members had forsaken the Sand Walking Company.

The prairie-schooners of the seceders made a slender white line in the wilderness of sage which reached on before them, up and up. Beyond the crest which rose gray-brown against the cloudless Indian summer sky, the desert waited silent as Death itself.

They traveled for three days up that long steep slope and when they reached the summit to look down upon the other side they discovered that the Williams map was worthless as a guide. Here, where it promised easy going, a steep-walled cañon led down from the north blocking their road. Beyond, a wilderness of sandstone pinnacles and naked cliffs dropped away and away to depths invisible.

Then most of the drivers turned back their oxen to follow Captain Hunt and overtake him on the San Bernardino trail by which he led his company in safety to Los Angeles. But twenty-seven wagons remained parked among the twisted junipers, their occupants biding the return of scouts whom they had sent ahead to seek a pass. Although the map had proved of no value when it came to showing a road, they still believed in the snow-clad peak which it had promised, somewhere before them in the hidden west. They were determined to find that landmark and strike out for it.

The scouts came back on the fourth day and reported a pass far to the northward around the cañon head. But before the prairie-schooners lined out on the ridge to make the long detour, the unmarried owners of outfits banded together in a company, advising those with families to return to Captain Hunt. They did not care, they said, to be responsible for the lives of women and children in this unmapped wilderness. The advice was not taken and the train set forth in two sections, twenty wagons belonging to the Jayhawkers and their bachelor companions and seven owned by men who traveled with their wives and little ones.

The scouts had picked an easy route through rolling hills where bunch-grass stood in thick clusters among the tall gray sage; the oxen cropped the rich feed as they went along. Clear streams ran noisily in most of the ravines. The train passed the cañon head, and one day, after considerable aimless wandering, it turned westward to cross a succession of wide tablelands where feed was good and water still plentiful.

The Indian summer season was at its height now, clear balmy days and cloudless nights. Their progress was steady for some time, uninterrupted by ill luck of any kind. When they halted for the midday meal it was like a great picnic in the soft warm sunshine, and when evening came the Jayhawkers rollicked around their fires or gathered where one of their number had tuned up his fiddle. William Isham was his name, a great bearded fellow who hailed originally from Rochester, New York; he would sit by the hour on the tongue of his wagon playing "Oh Susannah" and other lively airs, or strike up a jig tune while Negro Joe, who had fled from slavery in Mississippi, did a double shuffle in the firelight. The children slipped away from their mothers to set peeps at the fun from the edges of the crowd or play hide and seek in the shadows of the sage-brush; there were ten of these youngsters in all.

Many of these evenings would find a number of the older men clustered around the wagon of Asahel Bennett, an Iowa pioneer whose outfit included a young hunter by the name of William Manley. For Manley went ahead nearly every day to spy out the country and these men were eager for tidings of the snow-clad peak which lay before them hidden in the west.

Now gradually as they went onward the country began to change; the sage-brush became more stunted, the grass tufts sparser; the streams ran smaller and smaller. Until there came a day when they traveled from dawn until long after sunset before they encountered any water; and this lay lukewarm in hollows of the sandstone, accumulations from rains of long ago. The earth was hard and dry and there were stretches where there was no earth at all, only a rubble of sharp rock fragments radiating heat-waves under the glaring sun.

There was no rollicking about the camp-fires any more. When evening came the men were weary from hurrying their wagons over rugged ground or climbing lofty buttes to look ahead for signs of water. Isham the fiddler

left his violin in its case; he never took it from that case again. The oxen had grown gaunt from lack of feed and drink; they wandered about the night camps nibbling disdainfully at what growth there was, low bitter sapless weeds.

The change in the country had come so imperceptibly that they did not realize the presence of the desert until they were confronted by an-appalling revelation one afternoon.

All that day and all the day before the drivers had been goading the failing oxen while they peered with reddened eyes out on the glaring plain, from which arose a series of isolated cone-shaped buttes. For the water in the barrels was running very low and they were always seeking some sign of stream or pool.

Then one of them uttered a loud cry and at that shout the others saw, two miles or so off to the right where the plain opened out between the cone-shaped hills, a lake whose waters were bluer than any they had ever looked upon. A little breeze was stirring its surface, and on the further bank there were some trees whose branches were moving as if perhaps the wind were stronger over there.

Now every driver lashed his oxen to a lumbering run, and the women lifted the canvas tops of the prairie-schooners to show their children the pretty lake. The whole train turned away from its course and went rumbling across the plain, one mile, then a second; and another followed before they found themselves in the midst of a glaring expanse of snow-white alkali, baked by the sun to rock-like hardness. The vision of blue waters had vanished with the suddenness of a dream which ceases on the instant of awakening.

The mothers lowered the canvas wagon-covers and soothed their crying children, and the drivers turned the oxen back toward the trail which they had forsaken for the lure of the mirage. There was no word of grief among the men, no outcry of despair; but the shoulders of some were sagging when they made their dry camp that night, and there was a new hardness in the eyes of all of them. For they had looked upon the desert and they knew it for what it was.

As they were sitting about their little fires a man came staggering among them out of the darkness. It was Manley, the young hunter of the Bennett

outfit, who had been away for two days on one of his reconnoitering expeditions. They gathered around him in silence but he read the question in their eyes and shook his head.

“No water,” he answered, “nor sign, of it, but I have seen a snow mountain straight west of us.”

He told them how he had lain out on the summit of a high butte the night before until dawn came revealing a dead world. Dark ragged mountains of volcanic rock lay to the north, and to the south a tangle of naked ridges whose sides were discolored as though by fire. Between these scorched ranges a plain stretched for a good one hundred miles into the west, as level as a floor and gleaming white. Beyond that plain a low chain of mountains rose, as black as ink, and behind this gloomy range he saw a snow-clad peak that glistened in the morning sun.

They talked the situation over; all of them were convinced that Manley had found the peak described by the Williams map, and now they argued for different routes. Of the four points of the compass there was only one which lacked an advocate. For, while some urged a northward circuit and others believed there would be greater safety to the south and many were determined to push straight on west across the gleaming plain of alkali, there was not one word said of turning back into the east.

Survivors tell how some of the women wept under the covers of the prairie-schooners that night, but none of those mothers raised her voice in favor of retreat. They were pioneers, these people, and it seemed as if they did not know how to turn back.

None can ever set the fulness of their story down in words; for the Amargossa Desert has a wicked beauty which is beyond the telling, and one must journey out beyond the black escarpments of the Funeral Mountains and fight for his life in the silent reaches of that broken wilderness if he would begin to realize what they went through.

They made their last camp together at a brackish water-hole near the edge of the plain which Manley had described. Beyond it they could see the snow-clad peak. They repeated to one another the legends on the Williams map, its promise of a pass close by that summit and of a fertile valley leading to the gold-fields in the north. If they could only reach the

mountain, they agreed their hardships would be over, their journey as good as ended.

They separated here to set forth by two different routes. The Jayhawkers¹⁵ struck straight out across the flat, while the little company of families kept to a more roundabout course in the south, hoping to find water in the mountains there. From this time on, although their trails converged and crossed, the wagons never united in one train again.

In that silent land where the skeletons of dead mountain ranges lie strewn among the graves of seas that died in ages past, they held their eyes on the one sign of life that rose into the clear sky beyond, the peak whose promise kept them moving on into the west.

Days passed and the smaller party found no water in any of the cañons which came down to them from the south. They used the last drops from their casks; and now they could not eat for thirst, they could not sleep. The children wailed for drink until their voices died away to dry whisperings, and when the mothers strove to comfort them they found their arid tongues had lost the power of shaping any words.

At last Mauley, the young hunter with the Bennett wagons, discovered a warm spring near a cañon head, but the oxen lay down in their traces on their way up the gorge and the men were obliged to bring water down to them in buckets before they could get the unhappy brutes to rise. They filled the barrels with the tepid fluid and goaded the teams on, seeking some sign of a pass in the low black range which lay between them and the snow peak. If there were only an opening, it seemed as if they might win through.

Meantime the Jayhawkers were pressing hard across the gleaming plain. The surface of that plain was white as snow, as level as a floor. It was so hard that the wheels left no track on it; no shrub grew from it, only a low bitter weed that crumbled to a gray powder at the slightest touch. The oxen plodded along with their heads hung so low that their muzzles almost swept the ground; they stood about the camp at night, emaciated beyond belief, swaying from weakness, grating their teeth as they moved their jaws with a pathetic instinct of rumination. Five days passed and on the night of the fifth, when these young fellows knew they could not live another twenty-four hours without water, a light cloud came between them and the stars. They felt the cool touch of snowflakes on their faces and they spread their

blankets to gather what they could while the oxen licked the moisture from the earth. The next morning the sun shone hot again upon the plain against whose vast expanse the wagons showed, a little line of dots creeping slowly toward the white-topped mountain in the west.

At Ash Meadows where the bitter waters of the Amargossa River rise from their hidden depths to flow for a few hundred yards between gray hills of shifting sand, the trails of the two parties converged. By the time they reached this dismal oasis they were killing their oxen for such shreds of meat as they could strip from the bones; but as every wagon left the place, climbing the divide beyond, the occupants forgot their sufferings and talked of the desert as something which they had left behind. For Furnace Creek Cañon lay ahead of them, a rift in the black range which rose between them and the snow-clad peak.

The Jayhawkers were now in the lead. They went down the gorge whose black walls seemed to shut out the sky in places, and on Christmas morning, 1849, they emerged from its mouth to see the great peak just ahead of them.

But, as they looked up at the mountain toward which they had been striving for so many weary days, they discovered that its sides were verdureless, bare of any earth, so steep no man could climb them. And there was no pass.

They had descended into the pitfall at its lowest depths. Here where they first saw the place, more than two hundred feet below the level of the sea, great beds of rock salt covered its floor worn by the wind into a myriad of pinnacles, as high as a man's waist, sharp as knives and coated with brown dust. In the center of this weird forest a level sheet of white salt lay glistening in the sun. Northward the deposit stretched away to dunes of shifting sand, and in the south long mud flats lay, covered with trceries of sun cracks as far as the eye could reach. The eastern mountains came straight down in cliffs as black as ink. Eight miles away the western mountains rose in a sheer wall surmounted by Telescope Peak, whose snow-clad crest towered eleven thousand feet above the heads of the men whom it had lured here. There was no sound of any life, no track of any animal. No bird—not even a buzzard—flew overhead. The very air was a desert like the burning earth.

Now, even as they came down out of Furnace Creek Cañon into this trap, they began their efforts to escape from it.

The Bennett party crossed the sink through the forest of rock-salt pinnacles and headed southward along a strip of loose sand which lay between the mud flat and the mountains. They believed the range might yet show a rift at this end which their wagons could traverse. But the Jayhawkers turned to the north, seeking some outlet through the Panamints at that end of the range. One family followed them. J. W. Brier, a minister from a little frontier community in the Middle West, left the other section with his wife and three children in the hope that the young men might find a route to safety.

Sometimes to this day the winds, moving the dunes of white sand in the valley's northern arm—a task which they are always at from year's end to year's end—uncover the fragments of wagons, and prospectors come upon a tire or spoke or portion of a sun-dried axle. Then they know that they are at the place where the Jayhawkers abandoned their prairie-schooners.

They killed some of their oxen at this point and divided the meat—there was so little of it that although the men were now very weak two of them were able to carry the beef from an animal. Then they started out on foot across the sand dunes toward the Panamints. Most of them still believed that feed and water lay just beyond those heights.

And now, while they were straggling along through the loose sand in single file, one of their number, a man named Fish, was seen to throw his hands above his head and pitch forward on his face. Those who were behind came upon him lying with arms outspread, dead.

The next afternoon as they were climbing toward the head of a steep cañon in the range, several of the foremost ones found a little spring among the rocks. While they were resting here they saw a man far below them. He was crawling toward them on his hands and knees. One of the party filled his canteen and hurried down to meet him; but when he arrived, the other was gasping his last in the bottom of the sun-baked gorge. It was Captain Culverwell, a skipper who had forsaken the deep sea and its ships to make this journey with them in the hope of finding gold.

That evening the strongest of their number reached the summit of the Panamints and looked down the western side where they had thought to find that fertile valley which the Williams map had promised leading to the north. They saw dead mountain ranges and dried lake floors like those through which they had been traveling for months. The Mohave Desert lay in front of them.

When they were crossing those arid reaches William Isham, who had fiddled so blithely for them every evening in the Utah hills, sank down beside the trail; and the others passed him with empty canteens, unable to give him any help. Some of the stragglers buried his body a few days later on.

During the next day or two a Frenchman, whose name none of the survivors remember, went insane from thirst and wandered off into the sand-hills. No one ever saw him afterward.

So one after another of their number lay down and died or went mad and ran off toward some of the mirages which were perpetually torturing all of them with visions of cool lakes, until thirteen had perished. The others struggled on and on into the southwest; for they knew that Los Angeles lay somewhere in that direction and it offered them their only hope.

Meantime the Bennett party went southward along the western edge of the sink where the sands lie as loose and fine as ashes between the mud flats and the mountains, until they found a little spring with a few patches of coarse grass among the mesquite thickets which surrounded it. From this point they tried escape by one route and then another, only to reach a blind wall in each case and retrace their steps to the water-hole.

In later years the mule-drivers of the borax company enlarged the well which Asahel Bennett and J. B. Arcane dug here in the sand. Otherwise the place remains unchanged, a patch of mesquite in a burning plain where heat devils dance all day long from year's end to year's end. The plain reaches on and on between black mountain walls, and even the mirage which springs from its surface under that hot sun throws off the guise of a cool lake almost on the moment of its assumption to become a repellant specter that leaps and twists like a flame. The Paiute Indians called the spot Tomesha, which means "Ground Afire."

The party held a council when they had retreated here after the last unsuccessful attempt to escape. It was clear that they could not take the women and children out of the sink unless some one got food for the journey and found a route between water-holes. They appointed Manley, the young hunter, and an ox-driver named John Rogers for the venture, and the pair set out across the Panamints just north of Telescope Peak with the beef from an ox in their knapsacks, while the others sat down to await their return—or death.

There were two wagon outfits of unmarried men among them; they had forsaken the Jayhawkers at about the time the Brier family joined that section. When several days had passed these bachelors departed to seek the trail of their former companions in the valley's north arm. They said that the chances were ten to one that Manley and Rogers would never get through alive, and if they did they would be fools to attempt coming back. The others watched the two prairie-schooners crawling off into the gray plain until a mirage engulfed them and lifted them distorted into the blazing sky.

And now the families faced the question which these men had left with them. Would Manley and Rogers get through? They did not know what hazards lay beyond those mountains to the west, but none of them had the Jayhawkers' faith in a fertile valley leading to the north. As it turned out Mount Whitney was the snow-clad peak to which the faulty Williams map referred and the valley was the Owens Lake country, many a weary mile from this sink.

If the pair did survive the desert, would they be men enough to face it for the second time? The marooned ones could only hope. That hope had become an abiding faith in Bennett's wife. She had given the two young fellows a double handful of rice—half her store of grain—on the morning of their departure, and pointed mutely to her children as she placed the little bag in Manley's hand. "They will come back," she told the others many times.

The food was running low; the few remaining oxen could not last them long. There was a dog with the Bennett wagons; he had followed them all the way from Iowa; and in this time of dire extremity some talked of killing him. But even in his starved condition he was able to wag his tail when the children came near him; sometimes he comforted them by his presence

when their mothers could not. The men had not the heart to do away with him.

Hope lingered within those people like the breath in an old man who is dying hard. Rogers and Manley had gone northward on the burning plain to reach a ridge which mounted toward the Panamints. Now as the days dragged by to weary weeks, the men and women always gazed into the north where nothing lived except the hatred for the sun. But no man came, and when the weeks had grown beyond a month, they knew the time was here when they must make one last attempt to save themselves. They yoked up the oxen and set out into the south toward a spot where Bennett had discovered what looked like a gap in the mountains. Three days later they returned, half dead from thirst, and unhitched the staggering animals by the well.

There remained one shadow of a chance, as ephemeral as the mirage which came before them with the mounting of each morning's sun. They stripped the tops from the prairie-schooners and began to make pack-saddles from them with the idea of abandoning the vehicles and following the trail of the Jayhawkers.

At midday they were sitting under the wagons for what shade they gave, working at this task. They knew it was a futile proceeding; the time had long since gone when they had enough provisions to last them through that long northern route. But they were not the sort of people who can sit down and die. If they must perish it would be while they were still fighting. No one spoke. The silence of the dead land had crept over them.

That silence was broken by a shot. Unbelieving, they crept forth and saw three figures moving toward them from the north. Manley and Rogers were hurrying across the flat leading a laden mule.

While the others ate from the store in the pack-sacks, the two young fellows told of their journey two hundred and fifty miles across the Mohave Desert; of the dead of the Jayhawker party whom they had found beside the trail; of the survivors whom they passed shortly before reaching a ranch near the head of the San Fernando valley where the little town of Newhall stands today; of great arid mountain ranges and shimmering floors of dried lakes; and of the long torture between water-holes. At the Newhall ranch a man named French had given them the mule and the provisions. With this food

supply they believed the women and children stood a chance of getting through.

They slung the sacks of canvas on the gaunt oxen and placed the children in them; then they set out on their long climb up the Panamints.

Before they left the summit of the divide to go downhill into the west, they halted for one last look back. And as they stood there among the rocks gazing down into the sink which lay thousands of feet below them walled in by the mountains on both sides, one of the mothers lifted her arm in a gesture of farewell.

“Good-bye, Death Valley!” she cried.

That is the way the place was named.

They turned their backs on it and descended the long western slope. The dog, which they had taken with them all this distance, limped along behind the little train. The mule went on before. And in Los Angeles, where they joined the other survivors of the company weeks later and told the people of the pueblo of their sufferings, they called the sink Death Valley when they spoke of it.

Later, when they had gone into the north—for all of them pressed on as soon as they were able to travel again—they separated, seeking their fortunes in the mines. Years passed and occasionally some of them met again. At such times, or when they told others of the pitfall into which they descended striving toward the snow peak, they always used the name Death Valley. And so it has come down to us to-day.

JOAQUIN MURIETA

In the days of '49 when Murphy's Diggings was as lively a little placer camp as one could find in a long ride through the red foot-hills of the Sierras, a young Mexican monte-dealer disappeared. He was a handsome fellow, lighter of complexion than most of his countrymen, owned a sunny smile and spoke English fluently, all of which things made him a favorite among the American customers and consequently an asset to the house. So when dusk came and the booted miners began drifting into the long canvas-roofed hall, the proprietor scanned the crowd for him with some anxiety.

But the proprietor might as well have saved himself the trouble of that search; the monte-dealer had forsaken his table for a different sort of job.

Just at this time he was on the hill beyond the upper end of the camp kneeling beside an open grave; and in his clasped hands, uplifted high above his head, he held a naked bowie-knife. Some light still lingered here among the stiff-branched digger-pines, a faint reflection of the sunset far beyond the flat lands of the San Joaquin valley. It shone upon his face revealing a multitude of lines, so deeply scored, so terrible in their proclamation of deadly hate, that the sight of them would have startled the most case-hardened member of the crowds down there where the candles were twinkling in the humming camp.

The waning light which sifted through the long plumed tassels of the digger-pines showed a little group of Mexicans standing at some distance listening in frightened silence to what he was saying. He spoke to the dead man in the open grave; and when events that followed brought the words back to their minds some of these auditors repeated the vow he made: to color that knife-blade and his hands bright red with the blood of twenty men of Murphy's Diggings; and after that to devote his life to killing Americans.

This was the monte-dealer's new job, and in order to understand how he came to undertake such a piece of work it is necessary to go back a little.

He was only nineteen, but life had been moving so swiftly with him that the beginning of these events finds him in that year overseer of his father's

great rancho down in Sonora, a Mexican of the better class, well educated as education went in those days, a good dancer as every girl in the section could bear witness, pleasure-loving, easy-going, and able to play the guitar very prettily. Sometimes—and more often as the weeks went by—he played and sang at the home of Reyes Feliz, a packer in his father's employ; and Rosita, the packer's daughter, liked his music well enough to encourage his visits.

Class counted then, as it does to this day in Mexico, and parents liked to have a hand in marriages. But Reyes Feliz was away from home a great deal with his train of mules, the landholder was busy at his own affairs; the girl was a beauty and the landholder's son had a winsome way with him. So one night Rosita took the horse which he brought for her and rode off with him to California.

They made their journey with their mounts and a single pack animal across the hot plains and arid mountains of the south, then up the long King's Highway which the padres had beaten down nearly one hundred years before their time. It was winter and California winter means Eastern spring; green grass rippling in the soft breezes, poppy-fields and a rioting of meadow-larks to make their honeymoon ideal. They rode on northward into the Santa Clara valley where a gleaming mist of mustard blossoms hung under the great live oaks as far as the eye could reach; then they struck off eastward across the Coast Range and the flat lands of the San Joaquin, to climb into the red foot-hills where the Stanislaus comes out from the Sierras. Here they settled down and took a mining claim.

The feeling engendered by the Mexican War still rankled in many neighborhoods; and every mining camp had its lawless element whose members took full advantage of that prejudice against the conquered race. The claim proved rich enough to tempt some ne'er-do-wells. They gathered a crowd of their own breed and the mob came to the young pair's cabin one evening with the purpose of jumping the property. When the owner made a show of resistance they bound him hand and foot, after which they subjected the girl to such abuses as will not bear the telling. She pleaded with her lover when the crowd had gone and managed to induce him to leave the place without attempting vengeance. They went to Columbia and within the month were driven out by another anti-Mexican mob. Their next move took them to Murphy's Diggings, where the boy got his job at dealing

monte and was doing very well—until this evening came, and with it, tragedy.

He had been visiting his brother, who had come to California and settled near Murphy's; and the latter had lent him a horse to ride home. As he was nearing the upper end of the camp a group of miners stepped out into the road before him and halted him. The horse had been stolen from one of their number and they were searching for it at the time.

They listened to his explanations and went with him to his brother who told them how he had bought the animal in good faith from a stranger. Whereat they seized the narrator, bound him, and hanged him to the nearest live-oak tree; then stripped the monte-dealer to the waist, tied him to the same tree, and flogged him until the blood ran down his bare back. After which they departed, satisfied that they had done their share to bring about law and order in a neighborhood where thefts were becoming altogether too frequent. But some of them mentioned in Murphy's Diggings—during the brief space of time while they had the opportunity—the strange expression which came over their victim's face while the lash was being applied. Each of these men spoke of the look as having been directed at himself. Had they been members of one of the dark-skinned races, to whom the vendetta is peculiarly an institution, they would have understood the purport of that look.

But none of them understood and the monte-dealer was left to keep his promise to his dead brother. He turned his back upon the grave and went about the fulfilment of that vow as ambitious men go about the making of careers; and in the days that followed, while his swarthy company was sweeping through California like fire on a chaparral hillside when the wind is high, he gained a dark fame, so lasting that there is hardly an old settled community from Mount Shasta to the Mexican line which has not some tale of the bandit, Joaquin Murieta.

Sometimes during the weeks after the lynching a miner on his way to the gambling-houses after supper got a glimpse of Joaquin Murieta in the outskirts of Murphy's Diggings, as he glided among the tents cloaked to his eyes in his serape. Occasionally a late reveler, returning to his cabin in the darkness, was startled by the sight of his figure beside the road, as black and silent as the night itself; or was chilled to dead sobriety by the vision of

that drawn face confronting him on a narrow trail. And in the chilly mornings men going to their work came on the bodies of his victims in the soft red dust of path or wagon-track, or stumbled over them in the chaparral.

And now fear began to seize the survivors of that lynching party. By the time its twenty members had dwindled to something like a dozen, the succession of spectacles afforded by the companions whom they had been summoned to identify was getting on the stoutest nerves; the dullest imaginations were working feverishly. Some found friends to act as body-guards; others moved away to try their fortunes in new camps; but the body-guards could not be on duty all the time and the departing ones in most instances made the mistake of confiding their intentions to acquaintances. All authorities agree that Joaquin Murieta managed to kill at least fifteen—and possibly two or three more—of the score whose faces he had so carefully imprinted on his memory while the lash was biting into his bare back.

When he had finished with the work which the first part of his vow demanded, he rode away from Murphy's with Rosita and set about the task of gathering a band that he might be able to carry out the second half.

There were plenty of cutthroats in California during that spring of 1850, and no lack of Mexicans among them. Several swarthy leaders of banditti were then operating throughout the State. One of these was Manuel Garcia, better known as Three-Fingered Jack, who had been ranging over the Sonoma valley for several years, occasionally varying the monotony of murder by tying a victim to a tree and flaying him alive. Joaquin Valenzuela was another, a middle-aged outlaw who had learned the finer arts of bushwhacking down in Mexico under Padre Jurata, the famous guerrilla chief. There were also Claudio, a lean and seasoned robber from the mountains of Sonora, adept in disguises, skilful as a spy, able to mingle with the crowd in any plaza unrecognized by men who had known him for years; and Pedro Gonzales, a specialist at horse-stealing, who had driven off whole bands under the very noses of armed herders.

Every one of these leaders had his own ugly gang of riders and his own ill fame long before young Joaquin Murieta ceased dealing monte; and every one was getting rich pickings from pack trains, stage-coaches, valley

ranches, and miners' cabins. Yet within six months they all turned over their bands and became lieutenants of the nineteen-year-old boy. That list of victims at Murphy's Diggings, his superior breeding, and his finer intelligence gave him high standing from the beginning, but his greatest asset was the purpose which had driven him forth among them. They had robbed and killed and fled with the aimlessness of common murderers, but here was one with a definite plan, to leave the whole State a smoking shambles. They submitted their lives and fortunes to the possessor of this appealing idea.

During the first year, while organization was being perfected, Joaquin Murieta traveled through northern California with Rosita gathering recruits, establishing alliances among disaffected Mexicans, and spying out new fields for plunder. Gradually, as he accomplished these things, the bands under his different lieutenants began to rob and plunder more systematically, and the scene of their operations shifted with bewildering rapidity. To-day a number of travelers were dragged from their horses by the reatas of swarthy ambuscaders in the Tuolumne County foot-hills and to-morrow a rancher down in the valley found the bodies of his murdered herders to mark the beginning of the trail left by his stolen cattle. As the months went by suspicion that these different bands were working under one leader grew to certainty among the longer-headed officers. Then the name of Joaquin Murieta began to be spoken as that of the mysterious chief. He was quick to confirm the rumors of his leadership, and before the spring of 1851 was over he managed by grimly spectacular methods to let more than one community know that he was responsible for some outrage which had startled its inhabitants.

That was the case in San José. A number of the robbers had swooped down into the Santa Clara valley and their chief was living with Rosita in the outskirts of the town, directing their raids, giving them such information regarding travelers and plunder as he was able to pick up by mixing with the crowds in the gambling-houses. A deputy sheriff by the name of Clark captured two of the marauders red-handed, and Murieta determined to make such an example of him as would put fear into the hearts of other officers.

In those days the fandango was a popular function in San José, which still retained all the characteristics of a Mexican pueblo, and there was not a night without the strumming of guitars and the lively stepping of the

dancers in some public hall. Murieta went to one of these fandangos and, by arrangement with confederates, brought it about that Clark came to the place searching for a criminal.

The dancing was in full swing when the deputy entered; scores of lithe dark men and their black-eyed partners were whirling in the fervid Spanish waltz; but as he crossed the threshold a discordant note arose: disturbance broke out in a corner of the hall; a woman screamed; a knife-blade flashed. Clark shoved his way through the crowd and reached the fight in time to disarm a good-looking young Mexican who was flourishing the weapon; placed him under arrest and took him away to the nearest justice of the peace, who passed sentence of twelve dollars' fine.

"I have not the money on me," the prisoner said, "but if this officer will go with me to my house I can get it there." It was an easy-going period and such small matters as pulling a knife were of frequent occurrence. The deputy consented to the request and the pair went forth together from the lighted streets to the fringes of the town. They were talking pleasantly enough when they came to a dark place where willow thickets lined the road on either side.

Here the prisoner halted abruptly. "I am Joaquin Murieta," he announced, "and I brought you here to kill you." Upon which he stabbed Clark to the heart.

All this was told the next day in the streets of San José, but where the information came from no one knew. Murieta's custom of sending out such tidings through confederates was not so well understood then as it came to be later.

From San José Murieta went northward into the Sacramento valley and took quarters with Rosita in Sonorian Camp, a Mexican settlement near Marysville. About twenty cutthroats under Valenzuela and Three-Fingered Jack began working in the neighborhood. The ambush was their favorite method—three or four in a party and one of the number ready with his reata. When this one had cast the noose of rawhide rope over the neck of some passing traveler and dragged him from the saddle into the brush the others killed the victim at their leisure. The number of the murders grew so appalling that Sheriff R. B. Buchanan devoted all his time to hunting down

the criminals. Finally he got word of the rendezvous in Sonorian Camp and took a small posse to capture the leaders.

But the news of the sheriff's expedition had preceded him, and when they had crept upon the tent houses in the dark, as silent as Indians, the members of the posse found themselves encircled by unseen enemies whose pistols streaked the gloom with thin bright orange flashes. While the others were fighting their way out of the ambush Sheriff Buchanan emptied his own weapon in a duel with one of the robbers, and collapsed badly wounded in several places. Weeks later, during his recovery, Joaquin Murieta sent the sheriff word that he was the man who had shot him down.

Northward the band rode now from Marysville until they reached the forest wilderness near Mount Shasta, where they spent the most of the winter stealing horses. Before spring they went south again, traveling for the most part by night, and drove their stolen stock into the State of Sonora. Their loot disposed of and a permanent market established down across the line, Murieta led them back into California to begin operations on a more ambitious scale. He planned to steal two thousand horses and plunder the mining camps of enough gold-dust to equip at least two thousand riders who should sweep the State in such a raid as the world had not known since the Middle Ages.

In April—almost two years to a day after the monte-dealer had left his job at Murphy's Diggings—six Mexicans came riding into the town of Mokelumne Hill, which lies on a bench-land above the river. A somewhat dandified sextet in scrapes of the finest broadcloth and with a wealth of silver on the trappings of their dancing horses, they passed up the main street into the outskirts where their countrymen had a neighborhood to themselves.

Here they took quarters in those tent-roofed cottages which were ³⁴so common in the old mining camps, and now three of them appeared in their proper garb, well-gowned young housewives and discreet to a degree which must have exasperated those of their neighbors inclined to gossip. For these ladies had nothing to say concerning whence they had come or the business of their husbands. Two of those husbands were now spending much of their time in other camps and came home but seldom to pay brief visits to their wives. The third stayed here in Mokelumne Hill.

The days went by; the pack-trains jingled down out of the hills; the processions of heavy wagons lumbered up from the San Joaquin valley enwrapped in clouds of red dust; an endless stream of men flowed into the town on its bench-land above the cañon where the river brawled. Men from all the world, they came and went, and the milling crowds absorbed those who lingered, nor heeded who they were. Gold was plentiful, and while the yellow dust was passing from hand to hand life moved so swiftly that no one had time to think of his neighbor's business. The good-looking young Mexican was as a drop of water in a rapid stream.

When dusk crept up out of the cañon and the candles filled the gambling-houses with floods of mellow radiance he mingled with the crowds. He drank with those who asked him and talked with those who cared to pass a word with him; talked about the output of the near-by gulches, the necessity of armed guards for the wagons and pack-trains, or the chances of capturing Joaquin Murieta. In spite of his good looks and expensive clothes he was about as unobtrusive as a Mexican could be, which is saying a good deal at the period.

One April evening he was sitting at a monte-game. The gambling-hall was filled with raw-boned packers from the hills, dust-stained teamsters from the valley towns, miners from the diggings, and a riffraff of adventurers from no one knew—or cared—where. It was a booted crowd with a goodly sprinkling of red shirts to give it color, and weapons in evidence on every side. Here walked one with a brace of long-barreled muzzle-loading pistols in his belt, and there another with the handle of a bowie-knife protruding from his boot-top; and every one of those frock-coated dealers at the tables had a Derringer or two stowed away on that portion of his person which he deemed most accessible. The bartender kept a double-barreled shotgun under the counter across which the drinks were being served.

In the midst of this animated arsenal the dark-eyed young Mexican dandy sat placing his bets while the dealer turned the cards and luck came, after luck's fashion, where it pleased. As he played, a group of miners just behind him began arguing about the bandit whose name was now famous all the way from Mount Shasta to the Mexican line. One of them, a strapping fellow with a brace of pistols at his waist, became impatient at something which another had said concerning the robber's apparent invulnerability and raised his voice in the heat of his rejoinder.

“Joaquin Murieta!” he cried. “Say! I’d just like to see that fellow once and I’d shoot him down as if he was a rattlesnake.”

A noise behind him made him turn his head, and now, like all the others in that room, he stared at the dandified young Mexican—who had leaped to the top of the monte-table and was standing there among the litter of cards and gold. His broadcloth serape was thrown back; his two hands moved swiftly to his belt and came away gripping a pair of pistols.

“I am Joaquin Murieta,” he shouted so loudly that his voice carried the length of the hall. “Now shoot!”

A moment passed; he stood there with his head thrown back, his dark eyes sweeping the crowd, but no man on the floor so much as moved a hand. Then laughing he sprang down and walked slowly among them to the front door. They fell away before him as he came and he vanished in the shadows of the narrow street before one of them sought to follow him.

The others of the sextet were waiting for him when he reached the Mexican quarter; their horses were saddled; and at a word from him they mounted. For he and his two lieutenants had finished their work; they knew all they cared to know about the gold trains and the caches of the miners, and this was to have been their last evening in camp. With their gathered information they rode southward to Arroyo Cantoova, in the foot-hills of the Coast Range at the western edge of the upper San Joaquin valley. This was the band’s new headquarters.

They remained here for some days resting before the next raid. Gold was plentiful among them; the leaders dressed with the splendor of noblemen; not one of those leaders—save Three-Fingered Jack—but had his mistress beside him decked out like a Spanish lady; nor one but rode a clean-limbed thoroughbred. When the hills were turning brown with summer’s beginning young Murieta led them out across the range and southward to the country around Los Angeles.

Success had made him so serene that during the journey he sometimes forgot his grim vow of shedding blood and showed mercy to a victim who had no great store of gold. More than once Rosita induced him to spare the lives of prisoners; and if his career had ended at this time his name would have come down surrounded by legends of magnanimity. But as he went on

now that large plan of bloodshed became more of a power in his life. And as it grew to master him he saw Rosita less; he sought more frequently the companionship of Three-Fingered Jack, who killed for killing's sake alone. During the last two years he had often slipped away from his followers and stolen into the church of some near-by town, to recite the dark catalogue of his sins in the curtained confessional; but no priest heard him tell his misdeeds from this time on.

In the north end of Los Angeles, where the old plaza church fronts the little square of green turf and cabbage-palms, you can still find a few of the one-story adobe buildings which lined the streets on the July afternoon when Joaquin Murieta whispered into Deputy Sheriff Wilson's ear.

He was a young man, this deputy, and bold, and he had come all the way from Santa Barbara to help hunt down the famous bandit whose followers were burning ranch buildings and murdering travelers from the summits of the southland's mountains to the yellow beaches by the summer sea. Unlike many of the pueblo's citizens, who had formed the habit of talking of such matters in undertones and looking over their shoulders as they did so, for fear some lurking Mexican might be one of Murieta's spies, he voiced his opinions loudly enough for all to hear. "Get good men together," he said, "and smoke these robbers out. I'm ready to go with a posse any time." He preached that gospel of action in the drinking-places, in the gambling-halls, and on the street, until the very vigor of his voice put new heart into the listeners. It was beginning to look as if young Deputy Sheriff Wilson had really started things moving.

On a hot July afternoon he was standing on the narrow sidewalk surrounded by a group whose members his enthusiasm had drawn out of doors. Few others were abroad; an occasional Mexican woman in her black skirt and tight-drawn reboso, a peon or two slouching gracefully by with the inevitable brown cigarette, and a solitary horseman who was coming down the street.

The men in the group were so intent on what the deputy was saying that none of them observed the approach of this horseman until he reined in his animal close to the sidewalk's edge. Then they saw him lean from the saddle and whisper into Wilson's ear.

What words passed from his lips these others never knew. There was not time for him to utter more than one or two; perhaps to tell his name. They saw his white teeth flashing in an unpleasant smile; and Wilson's hand moved toward his gun. But in the middle of that movement the young officer pitched forward on his face. The sharp report of a pistol, the scrape of hoofs, the smell of black powder smoke, and the vision of the rider through the tenuous wreaths as he whirled his horse about—these things came to the dazed witnesses in a sort of blur.

The sound of the shot awakened the drowsing street and many who ran to their doorways saw the murderer riding away at a swinging gallop. Some of these claimed to recognize him as Joaquin Murieta, and in the days that followed their statements were confirmed by captured members of the band.

Deputy Sheriff Wilson's death aroused more men than his words had, and when General Joshua Bean began organizing two companies of militia during the weeks after the murder he found plenty of recruits. The officers were just getting the new companies into shape for an expedition against the bandits who were now ravaging most of the country south of the Tehachapi, when Murieta and Three-Fingered Jack waylaid General Bean one night near San Gabriel Mission, dropped the noose of a reata over his head, dragged him from his horse, and stabbed him through the heart. And the two companies of militia did nothing more.

Now, while posses were foundering their lathered horses on every southland road and the flames of blazing ranch buildings were throwing their red light on the faces of dead men almost every night, a lean and wind-browned Texan by the name of Captain Harry Love took a hand in the grim game of man-hunting.

He had gained his title during the Mexican War. As an express-rider for different American generals he had dodged the reatas of guerrilla parties who were lurking by water-holes and had outjockeyed swarthy horsemen in wild races across the flaming deserts of Sonora until he had come to know the science of their fighting as well as old Padre Jurata himself. And when he started after Murieta's men he did his hunting all alone.

One day he ran across the trail of Pedro Gonzales, the horse-thief, and another lieutenant named Juan, and followed it until he overtook the pair at the Buena Ventura rancho. Like most of his Southwestern breed he was a

better man at action than at words, and so the story of the gun-fight which took place when he came upon them has never been told; but when the smoke of the three pistols cleared away Gonzales was in custody and Juan was riding hard toward the hills with the blood running over his face from a bullet's furrow along his scalp. The fugitive found five others of the band in a sun-baked arroyo that night, told them the news of the catastrophe, and got a fresh horse to ride back with them and rescue their companion.

Captain Love was well on his way to Los Angeles with his prisoner when the sound of drumming hoofs came down the wind. He glanced over his shoulder and, on a hilltop half a mile behind, saw six horsemen coming after him at a dead run. If he had any doubt of the nature of that party he lost it when he turned his head in time to catch Gonzales waving a handkerchief to them.

The elements of the situation were simple enough,—the Texan's jaded mount, the fresh horses of the pursuers, the desperation of the prisoner for whom the gallows was waiting in Los Angeles,—but most men would have wasted some time in determining on a solution. Love, who had learned in a hard school the value of seconds in such races as this, did not choose to part with any more of his handicap than he had to. So he whipped out his pistol, shot Gonzales through the heart, and spurred his horse down the dusty road with enough start to distance the bandits into town.

That was the first noteworthy casualty the band had suffered. It was followed by the capture of young Reyes Feliz, Rosita's brother, who was hanged in Los Angeles; and shortly afterward Murieta led his whole company northward into the oak-dotted hills back of San Luis Obispo where they lost twenty men—among them Claudio the expert spy—in a day-long battle with a posse of ranchers whom they had sought to ambush.

Then Joaquin Murieta rode back with the survivors to Arroyo Cantoova; and if Rosita, who had been sent with the other women to the rendezvous early in the summer, felt her heart leap when she saw her lover coming, she soon felt it sink again, for he spent but few moments in her company. Horses and gold and his large plan to sweep like fire through California—these were the only thoughts he had. Within a week he had divided the band into several parties, two of which under himself and Three-Fingered Jack went north to plunder the placer camps.

There is hardly an old town in the whole Bret Harte country that has not its stories of the raiding during the winter of 1852-53. With the knowledge which he and his lieutenants had gained at Mokelumne Hill the chief directed operations, but as the weeks went by the influence of Three-Fingered Jack grew until his methods were employed in every robbery. By December the list of wanton murders had grown so great that the State of California offered a reward of five thousand dollars for Joaquin Murieta, alive or dead.

The notices announcing this reward were posted in Stockton one Sunday. The town was then the point of departure for the southern placer district, a lively place with craft of all kinds coming from San Francisco to tie up at its levee and an endless procession of wagons traveling out cross the flat lands of the San Joaquin valley to the foot-hills. Everything was running wide open and the sidewalks were crowded with men, most of whom were ready to take a rather long chance for five thousand dollars.

One of the bills, tacked to the flag-pole in the public square, attracted more readers than the others, and many a group gathered about it to discuss what show a bold man might have of earning the reward. The sidewalk loungers watched these debaters come and go until the thing was beginning to be an old story; and they were almost ready to turn their jaded attention elsewhere when a well-dressed Mexican came riding down the street, turned his fine horse into the square, and reined up before the flag-pole. The audience watched him leap from the saddle and write something at the bottom of the bill.

When he had touched his horse with the spurs and ridden away at a slow Spanish trot, one of the onlookers, more curious—or perhaps he was less lazy—than his fellows, sauntered over to read what had been written; and when he read it waved his hand in so wild a gesture that every one who saw him came running to the flag-pole. At the bottom of the placard with its offer of five thousand dollars' reward for Joaquin Murieta, alive or dead, they found this subscription set down in a good bold hand:

“And I will pay ten thousand dollars more. JOAQUIN MURIETA.”

Faith in the State's promise rather than that of the robber sent many riders out of Stockton that day to scour the willow thickets by the river and the winding tulle sloughs. The posses were speeding back and forth all night

long and the excitement attending their comings and goings lasted into Monday. So there were few on hand to watch the departure of a schooner for San Francisco that morning.

She left the levee with her crew of three and with two passengers, miners from San Andreas who were taking out about twenty thousand dollars in gold-dust. The crew let out the sails, the canvas bellied before the easy breeze, the schooner glided down the reed-lined slough whose smooth waters held her reflection like a mirror. Flocks of wild fowl rose before her as she came along.

A rowboat shot out of the tulles just ahead of her. The helmsman took one look at the five men in the little craft and dropped his tiller to pick up a double-barreled shotgun. He shouted to the sailors; they sprang for weapons, and the two miners in the cabin leaped up the companion stairs, their pistols in their hands. Before the foremost was half-way up the flight the shooting had begun; he gained the deck in time to see the body of the helmsman drooping over the swinging tiller, overhung by a thin white cloud of powder-smoke. The small boat lay alongside with a dead man huddled between the thwarts. The other four bandits were swarming over the rail, firing at the sailors on the forward deck as they came.

It was a short fight and sharp. When it ended every man in the ship's company was lying dead or mortally wounded and two of the robbers were killed. Murieta and Three-Fingered Jack lingered aboard long enough to lower the gold-dust overside into the small boat and set fire to the schooner; and the pillar of black smoke drew horsemen from Stockton in time to hear the story which the dying men gasped out.

Up in Sacramento where the State legislature was considering the extermination of Joaquin Murieta some weeks later the Stockton incident was used by a lean and wind-browned lobbyist as an argument for a company of rangers, and this argument by Captain Harry Love had much to do with the passage of the bill authorizing such a body under his leadership.

From Stockton the two companies of bandits fled southward up the San Joaquin valley and brought more than fifty thousand dollars in gold-dust to Arroyo Cantoova. Then Murieta took seventy men and rode back to make his final raid on the placer camps. Three-Fingered Jack went by his side: the only human being whose companionship he shared. What talks those two

men had together one can only guess from the nature of the deeds that followed. No miner was too small game for the chief now, he slit the throats of Chinamen for their garnerings from worked-over tailings, he tortured teamsters to learn where they kept their wages hidden, and where he passed during the night men found corpses in the morning, until those of his own countrymen who had befriended him in other days turned against him and betrayed his hiding-places to the officers, and the whole foot-hill country from the Tuolomme to the Feather River was patrolled by riders hunting him.

In Hornitas he sought out a Mexican who had notified a posse of his presence in the neighborhood, shot him down at broad noonday on the main street, and galloped away with the pistol-bullets of his pursuers raising little spurts of dust about his horse's flying hoofs. A few weeks later he revisited the town; killed a deputy sheriff who sought to capture him; and then hanged another of his countrymen, who had informed the officer of his hiding-place.

One spring day he was riding alone in the foot-hills of Calaveras County when he came on a party of twenty-five miners at the head of a box cañon. They were encamped in a sort of amphitheater among the rocks with steep walls on three sides and only one outlet, a narrow Digger trail along the cliff a hundred feet above the brawling stream.

Murieta had ridden up the ravine by that dangerous pathway and now he was sitting with one leg thrown over his saddle-horn, talking to the members of the party. They were on their way out from some winter diggings, they told him, and they had plenty of dust with them. He spoke of Joaquin Murieta and they pointed to their belts; they were heavily armed, every man of them. Why should they fear the bandit? He let his eyes go around the place taking quick appraisal of their numerous pack and saddle animals, their camp equipment, their plump buckskin sacks—rich booty if only he had a party of cutthroats at his heels. But he was alone; the best he could do was to put a good face on the matter and, in his rôle of honest traveler, learn what he could, to store it up for future reference.

He was doing this and getting on very nicely at it, when one of the party, who had gone down to the stream for water before his arrival, came climbing up among the rocks with two filled buckets. The man looked up at

hearing a stranger's voice and Murieta glanced down at the same instant. The eyes of each proclaimed recognition. For the water-carrier was James Boyce, who had played monte over the table of the good-looking young dealer many a night in Murphy's Diggings.

Boyce dropped the buckets of water and, drawing his pistol, "Boys!" he shouted, "That's Murieta. Shoot him!" Then he fired.

But Murieta had wheeled his horse and was already spurring it on a dead run down the gulch. The miners were lining their sights on him; and now the cañon walls echoed to the volley they sent after him.

He gained the trail along the cliff. A bullet knocked off his hat and his long hair streamed behind him as the horse leaped out on the narrow path. The rocks spurned by its flying hoofs dropped over the brink into the roaring stream one hundred feet below. The leaden slugs that sang about the rider's head chipped bits from the sheer wall beside him. He drew his bowie-knife and brandished it as high as his arm could reach.

"I am Murieta," he shouted, turning in the saddle to look back at them. "Kill me if you can."

The cliff on one side was so close that he scraped it with his stirrup and on the other side the horse's upflung hoofs hung in mid-air beyond the brink. The weapons flamed behind him at the cañon-head. Their bullets rained on the rocks about him as he flourished his knife in a final gesture of defiance and passed round a turn of the trail beyond sight of his enemies.

But Boyce and his companions were a hardy crowd, and instead of letting the incident end here they broke camp the next morning to follow Murieta's trail. They traced him without much trouble down the cañon, over a ridge and into another steep-walled gulch, where they came on tracks of fourteen others of the band. From this point the robbers had struck off toward the high country.

All that day the miners climbed the tall ridges where the sugar-pines stood like enormous pillars in the vast cathedral of the out of doors, until night found them in the midst of the forest right under the bare granite peaks. Here they made camp, and when the cold breath of the snow-fields came down upon them they kindled a great fire. They lounged about the flaming logs smoking their pipes and warming their wearied limbs. Beyond the

circle of firelight the enshadowed woods gave forth no sound to tell them that fifteen men were crawling through those black aisles among the trees like fifteen swarthy snakes.

The click of a pistol-hammer coming to full cock brought one of the lounging miners to his feet. He fell forward in the instant of his rising, and the woods gave back a hundred crashing echoes to the volley which the bandits fired. Their aim was so true—for they had stolen close in and taken good time to settle themselves before cocking their weapons—that when the echoes died away fifteen men were lying dead and dying in the red light of that fire.

The others were springing for their pistols, for nearly every one of the miners had laid aside his belt to ease himself, but before one of them had pulled a trigger there came the crackling of a second fusillade and seven fell. Then Boyce and two of his companions leaped outside that fatal circle of radiance in time to save themselves. As they were creeping away in the darkness they saw Joaquin Murieta and Three-Fingered Jack rush into the camp waving their bowie-knives exultantly above their heads, and for a long time afterward they heard the band whooping like Apaches while they killed the wounded.

Murieta and his company rode away from this massacre with thirty thousand dollars in gold-dust and about forty horses as their loot. But the story which Boyce and the other two survivors told turned the mining towns into armed camps; and now Sheriff Charles Ellis of Calaveras County started so fierce a warfare against the bandits that they had to flee the country.

When Murieta rode back to Arroyo Cantoova that spring, a closely hunted fugitive, he found that Rosita had deserted him for an American settler by the name of Baker. Even at this critical period when he was beginning actual preparations for his enormous raid he took the time to track her to a cabin among the hills nearly a hundred miles from the rendezvous. He shot her down and set fire to the place, but perhaps the very frenzy of his anger blinded him or perhaps he rushed away in horror of his own deed, for she survived her wounds, the only one of his victims who lived when he had the time to kill, and showed the scars to officers years afterward.

The boy who had taken her northward so short a time ago—for his years were barely a man's years yet—rode back to Arroyo Cantoova and the one thing he had in life—his plan.

Captain Harry Love and his company of twenty rangers rode down the King's Highway into the little town of San Juan. In the plaza, where the California poppies bloom to-day before the cloistered arches of the mission as they bloomed on that July afternoon in 1853, the dusty horsemen drew rein outside the old adobe inn. Their captain dismounted and went inside and while he stayed the others lounged in their deep stock saddles smoking cigarettes or eased the cinches to rest their sweaty horses; a sunburned troop and silent as men who know they have large work ahead of them.

An hour passed and Captain Love came out, to swing into his saddle and ride off without a word with the twenty behind him. They followed the King's Highway where it looped upward along the flanks of San Juan Hill, came down the other side into the Salinas valley—the Salinas plains, men called it then—and made camp near the river.

That night Captain Love told them what he had learned in the Plaza Inn at San Juan where Joaquin Murieta had often come to confer with friendly Spanish Californians in other days. One of these former friends had betrayed to him the rendezvous at Arroyo Cantoova and told him how to reach the place by a pass across the Coast Range near Paso Robles.

The ranger company rode on southward day after day until the wind-swept plain grew narrower between oak-dotted hills; then turned eastward to climb among a tangle of grassy mountains scorched by the sun to the color of a lion's coat. They crossed the divide and descended into the upper valley of the San Joaquin. And one morning, when they were following the trail of several horsemen, they saw the thin smoke of a little camp-fire rising from the ravine-bed ahead of them. Captain Love deployed his company to close in on the place from three sides, and sent one man to the rear with orders to hang back until the others had all ridden in. The man was William Byrnes who had known Joaquin Murieta well in the days before that lynching at Murphy's Diggings.

Murieta was washing his thoroughbred mare in the bed of the ravine. She stood, without halter or tie-rope, as docile as a dog while he laved her fine

limbs with a dampened cloth. His saddle lay about ten or fifteen yards away with his pistols in the holsters beside the horn. Four or five bandits were cooking their breakfast over the fire; and Three-Fingered Jack lay at a little distance, sprawled full-length in the morning sunshine like a basking rattlesnake. The mare raised her head; her ears went forward, and Murieta glanced up in time to see the rangers riding in across the pale saffron ridges from three sides.

They came at a dead run. Before he could reach his saddle one of the company had pulled up between him and the weapons. Captain Love was leaning from his horse questioning Three-Fingered Jack. Murieta took another step toward his weapons; the ranger stopped him with a gesture; he halted, glanced at Captain Love, and scowled.

“If you have any questions to ask,” he cried, “I am leader of this party. Talk to me.”

“I’ll talk to whom I please,” Love answered, and just then William Byrnes came riding into sight.

Murieta took one look at the man whom he had known in the days when he walked unfeared among his fellows and let his eyes go around the circle of riders; he saw Three-Fingered Jack watching him narrowly. His hand stole up along the mare’s glossy neck. Her ears moved back and forth as she stood there biding some word from him.

Then, “Vamos, amigos!” he shouted, and sprang on the mare’s back. He leaned far forward as she leaped down the bed of the ravine.

Three-Fingered Jack took advantage of the moment of confusion that followed to mount his own horse, and half the rangers followed him across the grass ridge firing as they went. He fought a running battle with them for five miles before they shot him down.

Murieta lay along the mare’s back like an Indian. The hoofs of the pursuing company thundered behind him in the ravine-bed; their bullets spattered on the rocks about him. Before him the land broke in a twenty-foot precipice. He called into the mare’s ear and she headed bravely for the cliff, leaped out into space, and turned a complete somersault at the bottom. He rolled among the rocks beside her, lay for a moment stunned, then rose and found

her waiting for him where she had gained her feet. He sprang to her back again and urged her on.

Several of the rangers were pressing their horses along the hillside to gain the bed of the ravine by that roundabout route; one who had ridden full-tilt over the cliff lay stunned beside his injured animal; and three or four others had dismounted. These lined their sights on the fleeing mare, and now her legs went from under her; she crashed down with the blood gushing from her nostrils.

The rangers rested their rifles for more careful aim as the rider started to flee on foot. The volley raised rattling echoes in the hills. He took four or five strides and then, halting, faced about. He raised one hand.

“No more,” he called. “Your work is done.”

And as they slowly came toward him, their rifles ready to fly to their shoulders at the first suspicious movement, Joaquin Murieta swayed slightly and sank slowly into a heap near the dead mare. The breath was gone from his body when they reached it.

TOMBSTONE

More than forty years ago a raw young mining camp down in southeastern Arizona was preparing to assume the functions of a duly organized municipality, and its population—at that period nearly every one in the place was a male of voting age—was considering the important question of a name.

The camp stood out against the sky-line at the crest of a ridge in the foothills of the Mule Mountains, not far from the Mexican boundary. For the most part it consisted of tents; but there were a few adobe buildings and some marvelous creations from goods-boxes and tin cans. Facing one end of its single brief street you looked out upon a dump of high-grade silver ore, and if you turned the other way you surveyed a sprouting little graveyard hard by a large corral. From almost any point you had a good view of the Dragoon mountains across a wide stretch of mesquite-covered lowlands, and at almost any hour of the day you were likely to see the smoke of at least one Apache signal-fire rising from those frowning granite ramparts.

The men in the camp were, nearly all of them, old-timers in the West: miners from the Comstock lode whose boom was then on the wane, teamsters who had been freighting all over the blazing deserts of the Southwest, investors and merchants from Tucson, buffalo-hunters from western Kansas, Texas, and Colorado, gamblers from Dodge City, El Paso, and Santa Fé, Indian-fighters, cattle-rustlers, professional claim-jumpers, and some gentle-voiced desperadoes of the real breed, equally willing to slay from behind or take a long chance in front, according to the way the play came up. Few of these men wore coats; a great many of them carried single-action revolvers in holsters beside the thigh; the old-fashioned cattleman's boot was the predominant footgear; and, excepting among the faro-dealers, there was a rather general carelessness in sartorial matters. Nicknames were even more common than surnames, and it was bad form—sometimes dangerously so—to ask a man about his antecedents until he had volunteered some information on that point.

In such a crowd it is easy to see there would be many ideas on any given subject, and the question of the new town's name had evoked a multitude of suggestions. Amusements were still few; the purveyors of hectic pleasure had thus far succeeded in bringing only one piano and a half-dozen dance-hall girls—all decidedly the worse for wear—into the camp; and either faro or whisky has its limitations as a steady means of relaxation. So it came about that any advocate could usually find an audience to harken to his arguments for his pet selection.

At intervals when they were not toiling at assessment work in the shafts which pocked the hillside or dodging Apaches in the outlying country, the citizens found diversion in discussing the ideas thus submitted. And the merits of these propositions were debated by groups in the brief street, by players seated before the tables in the gambling-halls, by members of the never-absent lines before the bars, and by dust-mantled travelers within the Concord stages which came tossing over the weary road from Tucson.

Gradually public opinion began to crystallize. One name was spoken more often as the days went by. Until it became evident that the great majority favored it, and it was chosen.

They called the town Tombstone and placed one more tradition on the Western map.

The old-timers always showed a very fine sense of the fitness of things when they christened a river, mountain range, or town. If one were to devote his time to studying the map of our country west of the Mississippi River and resuscitating the tales whose titles are printed thereupon, he could produce a large volume of marvelous stories. But the entire compilation would contain nothing more characteristic of the days when men carried rifles to protect their lives than the story of that name—Tombstone.

It deals with a period when southeastern Arizona was Apache-land. Geronimo, Victorio, and Nachez were constantly leading their naked warriors into the mountain ranges which rise from those mesquite-covered plains, to lurk among the rocks watching the lower country for travelers and when these came to descend upon them for the sake of loot and the love of murder. A few bold cattlemen, like John Slaughter and Peter Kitchen, had established ranches in this region; these held their homes by constant vigilance and force of arms. Escorts of soldiers frequently guarded the

stages on their way to and from Tucson; and there was hardly a month⁵¹ in the year when driver, guard, and passengers did not make a running fight of it somewhere along this portion of the route.

Such were conditions during the summer of 1877 when the tale begins in the dry wash which comes down from the Tombstone hills into the valley of the San Pedro, near where the hamlet of Fairbank stands to-day.

Fragments of horn silver lay scattered among the cactus and dagger-plants in the bed of the dry wash. There was a point where the stony slope above the bank was strewn with them. A little farther up, an outcropping of high-grade ore showed plainly in the hard white sunshine. The flank of the hill was leaking precious metal like a rotting treasure-chest.

A solitary Apache stood on a mesa ten miles away. He had cut a fresh trail down in the valley at dawn, and had dogged it reading every minute sign—a displaced rock, a broken twig, a smudge of disturbed earth—until he had the fulness of its meaning: two prospectors leading a pack-mule, both men armed and keeping sharp lookout against attack. Then he had climbed to this remote vantage-point and caught sight of them as they turned from the river-bottom up the wash. They were traveling straight toward that outcropping.

The Apache stood at the edge of the mesa facing the newly risen sun, a savage vision in a savage land. His narrow turban, shred of loin-cloth, and knee-high moccasins merely accentuated his nakedness; they held no more suggestion of clothing than his mass of rusty black hair and the ugly smears⁵² of paint across his cheeks. A tiny fire beside him sent a tenuous smoke column into the glaring sky.

He kept his malignant little eyes on a notch in the Dragoon Mountains twenty miles away, scowling against the sun's bright flood. Across the far-flung interval of glowing mesas and dark mesquite flats the stark granite ramparts frowned back at him. And now a hair-line of pallid smoke twined upward from the point he watched.

He sank down, crouching beside his fire. He swept his hand over it sprinkling bits of powdered resin into the wisp of flame. The smoke turned black.

He waited for some moments, scanning the rising fumes, then swerved his lean brown torso toward a mesquite bush. He stripped the leaves from a twig and scattered them upon the blaze. A white puff climbed into the sky.

From time to time he moved, now dropping on his belly to blow the coals, now feeding them with resin, now with leaves. The slender column crawled on upward taking alternate complexion, white and black.

Where the bare summits of the Dragoon range broke into a multitude of ragged pinnacles against the eastern horizon, another swarthy warrior stood, remote as a roosting eagle on the heights. Beneath his feet—the drop was so sheer that he could have kicked a pebble to the bottom without its touching the face of the cliff in its fall—the shadows of the mountain lay black on the mesquite flat. He gazed across that wide plain and the mesas climbing heavenward beyond it in a series of glowing steps. His face assumed a peculiar intentness as he watched the distant smoke column; it was the intentness of a man who is reading under difficulties. In dot and dash he spelled it as it rose—the tidings of those two prospectors who traveled up the wash.

While the last puff was fading away he glided down from pinnacle to narrow shelf, from shelf to cliff, and made his way toward the rocks below to tell the news to the rest of his band.

Their camp lay at the head of a steep gorge. Several low wickiups had been fashioned by binding the tops of bushes together and throwing skins or tattered blankets over the arched stems. Offal and carrion were strewn all about the place; it swarmed with flies. Nesting vultures would have built more carefully and been fully as fastidious. When the warrior reached the spot the rocks became alive with naked forms; they appeared from all sides as suddenly and silently as quail.

He told the tidings to the men. An unclean, vermin-ridden group, they squatted around him while he repeated the smoke message, word for word. There was no particular show of enthusiasm among them, no sign of haste. They began to prepare for this business as other men begin getting ready for a day's work, when they see good wages ahead of them and the task is very much to their taste. Prospectors were becoming an old story in that summer of 1877; two of them meant good pickings—bacon, coffee, sugar, and

firearms; and there was the fun of killing with the chance for torture thrown in.

Some of the band departed leisurely to catch the ponies. The victims would be busy for a long time in the wash. They would not travel far to make their camp. And wherever they went they must leave tracks. The day was far advanced when the party rode forth upon the flat, their dirty turbans bobbing up and down above the mesquite bushes as they came along.

Several of them carried lances; there was a sprinkling of bows and arrows; a number bore rifles across their saddles, wearing the cartridge-belts athwart their naked bodies. All of them moved their thin brown legs ceaselessly; their moccasined shanks kept up a constant drumming against the ponies' sides.

The afternoon was old when they reached the dry wash. They left two or three of their number behind in charge of the ponies. The others came on afoot. Two leaders went well in advance, one of them on each bank, creeping from rock to tufted yucca and from yucca to mesquite clump, watching the sun-flayed land before them for some sign of their game. A squad of trackers slipped in and out among the dagger-plants and boulders in the bottom of the gulch.

One of the trackers held up his hand and moved it swiftly. To the signal the others gathered about him. He pointed to the outcropping of high-grade ore. They saw the traces left by a prospector's pick. For some minutes their voices mingled in low gutturals. Then they scattered to pick up the trail, found it, and resumed their progress down the arroyo.

Evening came on them when they reached the river-bottom; and with the deepening shadows, fear. Night with the Apache was the time of the dead. They made their camp. But when the sun was coloring the eastern sky the next morning they were crawling through the bear-grass on the first low mesa above the stream, silent as snakes about to strike.

The prospectors awoke with the growing light. They crept forth from their blankets. Two or three rifles cracked. And then the stillness came again.

The Apaches stripped the clothing from the dead men and left them to the Arizona sun. They took away with them what loot they found. They never noticed the little heap of specimens from the outcropping. Or if they noticed

it they thought it of no importance. A few handfuls of rock fragments meant nothing to them. And so the ore remained there near the bodies of the prospectors.

The old-timers go on to tell how Jim Shea came riding down the dry wash one day late in the summer with his rifle across his saddle-horn and a little troop of grim horsemen about him. Of that incident few details remain in the verbal chronicle which has come down through four decades. It is like a picture whose background has been blurred by age.

Somewhere ahead of these dusty, sunburned riders a band of Apaches were urging their wearied ponies onward under the hot sun. They herded a bunch of stolen horses before them as they fled.

The chase had begun with the beginning of the day, at Dragoon Pass. What bloodshed had preceded it is not known. But Shea and his companions were following a hot trail, eager for reprisals, cautious against ambush. As they came on down the wash the leader scanned the stony bed reading the freshening signs left by the fugitives; while two who rode on either side⁶² of him watched every rock and shrub and gully which might give cover to lurking enemies.

Now, as they clattered along the arroyo's bed, Shea suddenly drew rein. Leaning far to one side and low, after the lithe fashion of the cow-boy, he swept his hand earthward, picked up a little fragment of dark rock, straightened his body in the saddle once more, and, glancing sharply at the bit of ore, dropped it into his pocket. He repeated the movement two or three times in the next hundred yards.

Chasing Apaches—or being chased by them—was almost as much a part of life's routine in those days as sleeping without sheets. And no one remembers how this particular affair ended. But Jim Shea kept those bits of silver ore.

Later he showed them to an assayer somewhere up on the Gila and learned their richness. Then he determined to go back and locate the ledge from which the elements had carried them away. But that project demanded a substantial grubstake, and other matters of moment were taking his attention at the time. He postponed the expedition until it was too late.

In Tucson they tell of a prospector by the name of Lewis who wandered into those foot-hills during that year, found some high-grade float, and traced it to a larger outcropping than the one down by the dry wash. But he had hardly made the marvelous discovery when he caught sight of a turbaned head above a rocky ridge about fifty yards away. He abandoned his search to seek the nearest cover. By the time he had gained the shelter a dozen Apaches were firing at him.

He made a good fight of it with his rifle, and the luck which had caused him to look up before the savages had their sights trained on him had put a wide space of open ground about his natural fort. No Apache ever relished taking chances, and Lewis was able to hold the band off until darkness came. Then he crept forth and wormed his way through the gullies to the San Pedro Valley. Dawn found him miles from the spot.

He came back to Tucson with his specimens. Marcus Katz and A. M. Franklin, who were working for the wholesale firm of L. M. Jacobs & Co., heard his story, saw the ore, and grubstaked him for another trip.

But when he reached the foot-hills of the Mule Mountains Lewis found that the long afternoon of battle and the ensuing night of flight had left him utterly at sea as to the location of that large ledge. He had to begin his hunt all over again. He used up his grubstake, got a second from his backers, and subsequently a third.

And now while Lewis was combing down the gullies between those broken ridges for the ore body—he slew himself from disappointment later on—and while Jim Shea was meditating an expedition after the riches of which he had got trace down in the dry wash, Ed Schiefflin came to the Bruncknow house to embark on the adventure which was to give the town of Tombstone its name.

The Bronco house, men call it now, but Bruncknow was the man who built it and the new term is a corruption. Its ruins still stand on the side-hill a few miles from the dry wash, a rifle-shot or so from the spot where the two prospectors met their deaths. In those days it was a lonely outpost of the white man in the Apache's land. The summer of 1877 was drawing to a close, its showers were already a distant memory, and all southeastern Arizona was glowing under the white-hot sun-rays when Schiefflin rode his mule up from the San Pedro to seek the protection of its thick adobe walls.

The flat lands of the valley stretched away and away behind him to the foot of the Huachucas in the west. They unfolded their long reaches to the southward until they melted into the hot sky between spectral mountain ranges down in Mexico. He came up out of that wide landscape, a tall wild figure, lonesome as the setting sun.

His long beard and the steady patience in his eyes—the patience which comes to the prospector during his solitary wanderings in search of rich ore—gave him the appearance of a man past middle age although he had not seen his thirtieth year. His curling hair reached his broad shoulders. Wind and sun had tanned his features so deeply that his blue eyes stood out in strange contrast to the dark skin. His garments were sadly torn, and he had patched them in many places with buckskin. Such men still come and go in the remote places among the mountain ranges and deserts of the West. They were almost the first to penetrate the wilderness and they will roam over it so long as any patch of it remains unfenced.

Schiefflin had left his father's house in Oregon ten years before. He searched the Cœur d'Alênes for riches, and, finding none, struck out from Idaho for Nevada. There he remained through two blazing summers traveling afoot from the sage-brush hills in the north across the silent deserts east of Death Valley. He wandered on to Colorado, where he toiled in the new mining camps between prospecting trips into the great plateaus along the western slope of the Rockies. From Colorado he went southward into New Mexico; thence westward to Arizona. He accompanied a troop of cavalry from Prescott down to the foot of the Huachucas where they established a new post. During the last leg of that journey he saw these foothills of the Mule Mountains in passing, and in spite of warnings from the soldiers, he was now returning to prospect the district.

He had spent some days at the Herrick ranch down in the valley, and the men about the place had strongly advised him against traveling into the hills. They cited various gruesome examples of the fate which overtook solitary wanderers in this savage land. They might as well have saved their breath; Schiefflin had seen some mineral stains on a rock outcropping when he passed through the country with the cavalry earlier in the season.

So now he came on toward the Bruncknow house, where he could make his camp closer to the hills upon whose exploration his mind was set.

There were several men lounging about the adobe when he reached it. Even in those days, when the most peaceful border-dweller carried his rifle almost everywhere except to his meals and was as likely as not to have slain one or two fellow-creatures,—days when the leading citizens of that isolated region presented a sinister front with their long-barreled revolvers slung beside their thighs,—the members of the group showed up hard. 66

A lean and seasoned crew, dust-stained from many a wild ride, burned by the border sun, they watched the new-comer with eyes half-curtained, like the eyes of peering eagles, by straight lids. They welcomed him with a few terse questions as to where he had come from and what the troops were doing over at the new post. Of themselves they said nothing nor offered any information of their business in this lonely spot.

But when Schiefflin had made his camp close to the shelter of those thick adobe walls he learned more of his hosts. There was a mine hard by, at least it went by the name of a mine, and it was a sort of common understanding that the owners were doing assessment work. The fragments on the dump, however, were only country rock. In later years gorgeous tales of rich ore at the bottom of the shallow shaft resulted in a series of claim-jumpings which in their turn netted no less than eleven murders, but the slayers only wasted their powder, for the ground here never yielded anything more interesting than dead men's bones. And at the time when Schiefflin was abiding at the Bruncknow house the inmates were letting their mining tools rust, the while they kept their firearms well oiled.

For the mine was nothing more nor less than a blind, and the adobe was simply a rendezvous for Mexican smugglers.

In that era, when a man practised pistol-shooting from the hip,—as a man practises his morning calisthenics in this peaceful age, for the sake of his body's health,—the written statutes were one thing and local conceptions of proper conduct another. Here, where the San Pedro valley came straight northward across the boundary, affording a good route for pack-trains, smuggling American wares into the southern republic was nearly a recognized industry. As long as a man could bring his contraband to market past marauding Apaches and the bands of renegade whites who had drifted to the border, he was entitled to the profit he made—and no questions asked. 67

So the men at the Bruncknow house accepted Schiefflin's presence without any fear of ill consequences. Had their calling been more stealthy they would not have worried about him; prospectors went unquestioned among all sorts of law breakers then, owning something of the same immunity which simple-minded persons always got from the Indians. He came in at evening and rolled up in his blankets after cooking his supper; and in the morning he went forth again into the hills. No one minded him.

Now and again a cavalcade came out of the flaming desert to the south, appearing first as a thin dust-cloud down on the flat, as it drew nearer resolving itself into pack burros and men on mule-back; then jingling and clattering up the stony slope and into the corral. And when they had dismounted, the swarthy riders in their serapes and steep-crowned sombreros trooped into the adobe, their enormous spurs tinkling in a faint chorus upon the hard earthen floor.

Then the men of the house got out the calicoes and hardware which they had brought over the hot hills and through the forests of giant cacti from Tucson. The smugglers spread blankets, unbuckled broad money-belts from their waists, and stripped out the dobie dollars, letting them fall in clinking heaps upon the cloth. The bargaining began.

And when the last wares had been disposed of and the last huge silver coin had been stowed away by the hard-eyed merchants, the Mexicans opened little round kegs of mescal, the fiery liquor which is distilled from the juice of the cactus plant.

They gambled at monte, quien con, and other games of chance. They drank together. The night came on.

Sometimes pistols flamed under those adobe walls and knives gleamed in the shadows.

Then, when the hot dawn came on, the burros were packed and the whole troop filed down the hill; the seraped Mexicans riding along the flanks of the train, their rifles athwart their saddles. The dust rose about them, enwrapped them, and hid them from sight. Finally it vanished where the flat lands reached away into the south.

But Schiefflin was indifferent to these wild goings on. To him the Bruncknow house meant shelter from the Apaches; that was all. He could

roll up in his blankets here at night knowing that he would waken in the morning without any likelihood of looking up into the grinning faces of savages who had tracked him to his camp.

He minded his own business. As a matter of fact his own business was the only thing he deemed worth minding. It was the one affair of importance in the whole world. The more he saw of those hills the surer he became that they contained minerals. Somewhere among them, he fervently believed, ⁶⁹an ore body of great richness lay hidden from the world. And he had been devoting the years of his manhood to seeking just such a secret. In those long years of constant search a longing mightier than the lust for riches had grown within him. Explorers know that longing and some great scientists; once it owns a man he becomes oblivious to all else.

Every day Schiefflin set forth on his mule from the adobe house. He rode out into the hills. All day he hunted through the winding gullies for some bits of float which would betray the presence of an outcropping on the higher levels. Once he cut the fresh trail of a band of Apaches and once he caught sight of two mounted savages riding along a slope a mile away. Several times he picked up specimens of rock which bore traces of silver. But he found no ore worth assaying.

The men at the Bruncknow house saw him departing every morning and shook their heads. They had seen other men ride out alone into the hills and they had afterward found some of those travelers—what the Apaches had left of them. It was no affair of theirs—but they fell into the habit of watching the tawny slopes every afternoon when the shadows began to lengthen and speculating among themselves whether the bearded rider was going to return this time. Which was as close to solicitude as they could come.

One of their number—he had lost two or three small bets by Schiefflin's appearing safe and sound on various evenings—took it upon himself to give their visitor a bit of advice.

“What for,” he asked, “do yo’-all go a-takin’ them pasears that-a-way?” ⁷⁰

Schiefflin smiled good-naturedly at the questioner.

“Just looking for stones,” he said.

“Well,” the other told him, “all I got to say is this. Yo’-all keep on and yo’ll sure find yo’r tombstone out there some day.”

He never dreamed that he had named a town.

Nor did Schiefflin think much of it at the moment: he had received other warnings, just as strong, before. But none of them had been put as neatly as this. So the words abode in his memory although they did not affect his comings and goings in the least.

Only a few days later he left the Bruncknow house for a longer trip than usual. He rode his mule down the San Pedro toward the mouth of the dry wash in which the two prospectors had found that silver ore the day before they died.

And the luck that guides a man’s steps toward good or ill, as the whim seizes it, saw to it that he came into the old camp where the Apaches had enjoyed their morning murder months before.

Some one had buried both bodies but whoever had done this—possibly it was one of the self-styled miners at the Bruncknow house—had not enough interest in minerals to disturb the little heap of specimens. It lay there near the graves, just as the Apaches had left it, just as its original owners had piled it up before they sought their blankets; to dream perhaps of their big strike while death waited for the coming of the dawn, to cheat them out of their discovery.

The story was as plain as printed words on a page: the nameless graves among the tall clumps of bear-grass proclaimed the penalty for venturing into this neighborhood. The little handful of dark-colored stones betrayed the secret of the riches in the hills. The dry wash came down between the ridges half a mile ahead to show the way to other float like this.

It was as though, after the years of long and constant search he found himself faced by a grim challenge, to attain the consummation of his hopes on pain of death.

When he had examined the bits of rock he mounted his mule and struck out for the mouth of the dry wash.

After he had ridden for some distance up the stony bed of the arroyo he dismounted and came on slowly leading the patient animal. He searched the

rocks for fragments of float. At times he left the mule and crept to the summit of a near-by ridge where he remained for some minutes looking out over the country for some sign of Indians.

The day wore on and as he went further the hills to the south became loftier; the banks drew closer in on both sides of him; the boulders in the arid bed were larger. Cactus and Spanish bayonet harassed him like malignant creatures; skeleton ocatillas and bristling yuccas imposed thorny barriers before him. The sun poured its full flood of white-hot rays upon him. He wound his way in and out among the obstacles, keeping his intent eyes upon the glaring rocks, save only when he lifted them to look for lurking savages. The shadows of noonday lengthened into the shades of afternoon; they crept up the hillsides until only the higher peaks remained a-shine; evening came.

Schiefflin picked up a sharp fragment of blackish rock.

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Horn silver. In those days when the great Comstock lode was lessening its yield and the metal was at a premium, such ore as this which he held meant millions—if one could but find the main ledge. He scanned the specimen closely, looked round for others and then, as his eyes roved up the hillside the exultation born of that discovery passed from him.

Dusk was creeping up from the valley. The time had passed when he could return by daylight to the Bruncknow house. He must make the most of the scant interval which remained before darkness, if he would find a hiding-place where he could camp.

He glanced about him to fix the landmarks in his memory, that he might return to this spot on the morrow. Then he led the mule away into the hills and picketed it out behind a ridge where it would be out of sight from passing Apaches.

He found his own hiding-place a mile away from where he had tethered the animal. Here three huge bare knolls of granite boulders rose beside the wash. From the summit of any one of these a man could survey the whole country; between its ragged rocks he would be invisible to any one below. He chose the highest one and crept to its crest.

The gray twilight was spreading over the land when he raised his head above one of the boulders. In that instant he dropped to earth as if he had

been shot. An Indian was riding up to the bottom of the knoll.

The Apache's rifle lay across his lean bare thighs; his gaunt body bent forward as he scanned the rocks above him. He had been heading for the hill from this side while Schiefflin was climbing up the opposite slope. Evidently he was coming to the summit to look over the country for enemies. There must be others of the band close by.

Schiefflin found a narrow crack between two boulders and peeped out.

Another savage appeared at that moment on the summit of the next knoll. He was afoot; and now he stood there motionless searching the wide landscape for any moving form. He was so near that in the waning light the smear of war-paint across his ugly face was visible.

Schiefflin crooked his thumb over the hammer of his rifle and raised it slowly to the full cock, pressing the trigger with his finger to prevent the click.

The first Apache had dismounted and was climbing the hill. As he drew closer the clink of ponies' hoofs sounded down in the dry wash. A number of dirty turbans came into sight above the bank. More followed and still more, until thirty-odd were bobbing up and down to the movement of the horses.

A moment passed, one of those mighty moments when a man's life appears before him as a period which he has finished, when a man's thoughts rove swiftly over what portions of that period they choose. And Schiefflin's mind went to that talk with the man at the Bruncknow house.

"Yo'-all keep on and yo'll sure find yo'r tombstone out there some day."

He could hear the old-timer saying the words now. And, as he listened to the grim warning again, he felt—as perhaps those two prospectors felt in the moment of their awakening down by the river—that fate had sadly swindled him. He was stiffening his trigger-finger for the pull, peering across the sights at the Indian who had climbed to within a few yards of the weapon's muzzle, when—the warrior on the summit of the next knoll waved his hand. The Apache halted at the gesture and Schiefflin followed his gaze in time to see the lean brown arm of the sentinel sweep forward. Both of the savages turned and descended the knolls.

They caught up their ponies and rode on, following the course of the wash below them. The band down in the arroyo's bed were receding. The rattle of hoofs grew fainter. Schiefflin lowered the hammer of his rifle and took his first full breath.

A low outcry down the wash stopped his breathing again. The band had stopped their ponies; some of them were dismounting. He could see these gathering about the place where he had led his mule up the bank.

Two of them were pointing along the course he had taken with the animal. Several others were creeping up the slope on their bellies following the fresh trail. The murmur of their voices reached the white man where he lay watching them.

Then, as he was giving up hope for the second time, a mounted warrior—evidently he was their chief—called to the trackers. They rose, looked about and scurried back to their ponies like frightened quail. The whole band were hammering their heels against the flanks of their little mounts. The coming of the night had frightened them away.

The shadows deepened; stillness returned upon the land; the stars grew larger in the velvet sky. Schiefflin crouched among the boulders at the summit of the knoll and fought off sleep while the great constellations wheeled in their long courses. The dawn would come in its proper time, and it seemed as certain as that fact that they would return to hunt him out.

He dared not leave the place, for he might stray into some locality where they would find him without shelter when the day revealed his trail. So he waited for the sunrise and the beginning of the attack.

At last the color deepened in the east. The rocks below his hiding-place stood out more clearly. He could see no sign among them of creeping savages. The sun rose and still nothing moved.

He came forth finally in the full blaze of the hot morning and found the mule where he had picketed it behind the ridge. When he returned to the dry wash he saw the tracks where the band had passed the evening before. For some reason of their own they had found it best to keep on that course instead of coming back to murder him.

He resumed his search for float where he had left it off. It showed more frequently as he went on. He followed the bits of ore to a narrow stringer of

blackish rock. He dug into it with his prospector's pick, chipped off specimens, and carefully covered up the hole. The danger of Apaches had passed, but a new fear had come to him, the dread that some rival prospector might happen upon his discovery before he could establish possession.

For his provisions were running low. He had no money. He needed a good grubstake—and companions to help him hold down the claim against jumpers—before he could begin development work.

He hurried back to the Bruncknow house. An attack of chills and fever, brought on by his night among the rocks, gave him a good excuse to leave the place. The climate, he said, did not agree with him.

While he was trying to think of one with whom to share his secret, one whom he could trust to take his full portion of the dangers which would attend the claim's development, he remembered his brother Al, who was working at the Signal mine way over in Mohave County. There was the man. So he made his way across the State of Arizona. He stopped at times to earn money for food to carry him through and it was December before he reached his destination.

Al Schiefflin had a friend, Dick Gird, who was an assayer. Gird saw the specimens, tested them, and was on fire at once. He joined forces with the brothers, helped them to procure a grubstake, and in January, 1878, the three men set forth from Williams Fork of the Colorado River in a light wagon drawn by two mules.

Spring was well on its way when they reached Tucson and made their camp in Bob Leatherwood's corral. The Apaches were raiding throughout the southeastern part of the territory and the little town of adobes was getting new reports of murders from that section every day.

They drove their mules on eastward up the long mesas leading to the San Pedro Divide. At the Pantano stage station they saw the fresh scars of Apache bullets on the adobe walls. The men had held the place against a large band of Geronimo's warriors only a few days before.

Now as they drove on they kept constant lookout and their rifles were nearly always in their hands. Every morning they rose long before the dawn, and two of them would climb the ridges near the camp to watch the

country as the light came over it, while the other caught up the mules and harnessed them.

They turned southward up the San Pedro, avoiding the stage station at the crossing of the river lest some other party of prospectors might follow them. They made a circuit around the Mormon settlement at St. Davids and came on to the Bruncknow house, to find two more fresh graves of Apache victims under the adobe walls.

They made their permanent camp here, and Schiefflin took his two companions up the dry wash. They found the outcropping undisturbed. Gird and Al Schiefflin dug away at the dark rock with their prospector's picks. Less than three feet below the surface the stringer pinched out. The claim was not worth staking.

Beside the little strip of ore, whose false promises of riches had lured them into this land of death, they held a conference. The hills opened to a low swale which led up toward the loftier summits in the south. They decided to follow that depression in search of another ledge.

They made their daily journeys along its course, returning with evening to the Bruncknow house, whose inmates were away at the time on some expedition of their own. Sometimes they saw the smoke of signal-fires over in the Dragoons; sometimes the slender columns rose from the summit of the Whetstone Mountains in the north. One morning—they had spent the previous night out here in the hills—they awoke to find a fresh trail in the bear-grass within a hundred yards of where they had been sleeping, and in the middle of the track Dick Gird picked up one of the rawhide wristlets which Apaches wore to protect their arms from the bowstring.

That day Ed Schiefflin discovered a new outcropping. Gird assayed the specimens in a rude furnace which he had fashioned from the fireplace at the Bruncknow house. Some of them yielded as high as \$2,200 to the ton. Exploration work showed every evidence of a great ore body. Two or three of the fragments which they had chipped from it below the surface assayed \$9,000 a ton. They had made their big strike. They staked the claim, and when they came to fixing on a name Ed Schiefflin remembered once more those words of the old-timer at the Bruncknow house.

“We’ll call it the Tombstone,” he said, and told the story.

It was recorded in Tucson as the Tombstone. And when the big rush came, Ed Schiefflin, then a figure of importance in the new camp, recited the tale to some of the men who had risked their lives in traveling to these hills. And so they in turn retold the tale.

That is the way the town got its name.

In after years when men had learned the fulness of that secret which the Apaches had guarded so well from the world—when Bisbee and Nacosari and Cananea were yielding their enormous stores of metal and Tombstone's mines had given forth many millions of dollars in silver, Ed Schiefflin remained a wealthy man. But the habit of prospecting abided with him and he used to spend long months alone in the wilderness searching for the pure love of search.

Just before one of these expeditions he was driving out of Tombstone with Gus Barron, another old-timer and a close friend, and as they went down the Fairbank road they reached the spot where the three great boulder knolls rise beside the dry wash. Schiefflin drew rein.

"This," he said to Barron, "is the place where I camped that night when the Apaches almost got me, the night before I found the stringer on the hill. And when I die I want to be buried here with my canteen and my prospector's pick beside me."

So when he died up in Cañon City, Oregon, just about twenty years after he had made that discovery, they brought his body back and buried it on the summit of the knoll. And they erected a great pyramid of granite boulders on the spot for his monument.

And within sight of that lonely tomb the town stands out on the sky-line, commemorating by its name the steadfastness of Ed Schiefflin, prospector.

TOMBSTONE'S WILD OATS

In the good old days of Indians and bad men the roaring town of Tombstone had a man for breakfast every morning. And there were mornings when the number ran as high as half a dozen.

That is the way the old-timers speak of it, and there is a fond pride in their voices when they allude to the subject; the same sort of pride one betrays when he tells of the wild oats sowed by a gray-haired friend during his lusty youth. For Tombstone has settled down to middle-aged conventionality and is peaceable enough to-day for any man.

But in the early eighties!

Apaches were raiding; claim-jumpers were battling; road-agents were robbing stages; bad men were slaying one another in the streets; and, taking it altogether, life was stepping to a lively tune.

Geronimo's naked warriors were industrious. Now they would steal upon a pair of miners doing assessment work within sight of town. Now they would bag a teamster on the road from Tucson, or raid a ranch, or attack the laborers who were laying the water company's pipe-line to the Huachuclas. Hardly a week passed but a party of hard-eyed horsemen rode out from Tombstone with their rifles across their saddle-bows, escorting a wagon which had been sent to bring in the bodies of the latest victims.

In the two years after the first rush from Tucson to the rich silver district which Ed Schiefflin had discovered, there was much claim-jumping. And claim-jumping in those days always meant shooting. Some properties were taken and retaken several times, each occasion being accompanied by bloodshed. Surveying parties marched into the foot-hills of the Mule Mountains under escort of companies of riflemen; in more than one instance they laid out boundary lines and established corner monuments after pitched battles, each with its own formidable casualty list.

What with the murders by the savages and these affrays—together with such natural hazards of disease and accident as accompany any new mining

camp—the boot-hill graveyard out beyond the north end of the wide main street was booming like the town. And now there came a more potent factor in stimulating mortuary statistics.

The bad men took possession of Tombstone.

They came from all over the West. For railroads and telegraph lines were bringing a new order of things from the Missouri to the Rio Grande, and those who would live by the forty-five hastened to ride away from sight of jails and churches, seeking this new haven down by the border.

One by one they drifted across the flaring Southwestern deserts; from California, Montana, Colorado, Kansas, Texas, and New Mexico, with their grim mouths tight shut against all questions and their big revolvers dangling beside their thighs. The hair of some of them was gray from many winters and their faces deeply lined; and some were boys with down on their smooth cheeks. But once his hand started moving toward his pistol, every man of them was deadlier than a bull rattlesnake in rutting time.

No man challenged them on their arrival. The town was too busy to heed their presence. The one-story buildings which lined the wide streets were packed to the doors with customers; saloons, dance-halls, and gambling-houses roared on through day and night; the stores were open at all hours. The wide sidewalks under the wooden awnings which ran the length of every block, were crowded from wall to gutter with men intent on getting wealth or spending it.

The bad men mingled with the sidewalk throngs; they dropped into the Bird-Cage Opera House, where painted women sang in voices that clanged like brazen gongs; they took their places before the gambling-tables of the Crystal Palace, where girls were oftentimes to be found dealing faro; they joined the long lines before the bars and drank the stinging whisky which the wagon-trains had brought from Tucson. And they met one another.

It was like the meeting of strange dogs, who bristle on sight, and often fly at one another's throats to settle the question of supremacy. Their big-caliber revolvers spat streams of fire in the roadways and bellowed in the dance-halls. And gradually among the ranks of the survivors there came a gradation in their badness.

Several loomed far above the others: John Ringo, Prank Stilwell, Zwing Hunt, the Clanton brothers, and Billy Grounds. They were “He Wolves.” And there was Curly Bill, the worst of all. He might be said to rule them.⁸³

They settled down to business, which is to say they started to do the best they could for themselves according to their separate capacities for doing evil unto others.

They rustled stock. They drove whole herds over the boundary from Mexico. They pillaged the ranches, which were now coming into the adjacent country, stealing horses, altering brands, and slaying whoever interfered with them, all with the boldness of medieval raiders. They took a hand in the claim-jumping. They robbed the stage.

Hardly a day passed without a hold-up on the Tucson road—and, when the railway went through, on the road to Benson. Shotgun guards and drivers were killed; occasionally a passenger or two got a bullet. And the bad men spent the money openly over the bars in Tombstone.

Then the Earp brothers came upon the scene. From this time their figures loom large in the foreground. Whatever else may be said of them they were bold men and there was something Homeric in their violence. Wyatt, Virgil, Morgan, and Jim, the first three were active in the wild events which followed their incumbency to power. California knew them in their boyhood, and during their manhood years they wandered over the West, from mining camp to cow-town, until they came to Tombstone from Dodge City, Kansas.

They brought a record with them. Back in the seventies, in the time of the trail herds, Dodge was a howling cow-town. There was a period of its existence when the punchers used to indulge in the pastime of shooting up the place; but there were a great many of these frolicsome riders, and too much wanton revolver shooting is sure to breed trouble if it is combined with hard liquor, gambling, and a tough floating population. The prominent business men of Dodge watched the hectic consequences of this lawlessness over their faro layouts with speculative eyes and came to the conclusion that killings were becoming altogether too promiscuous. The town, they said, needed a business administration; and forthwith they selected Bat Masterson as marshal. He established, and enforced, a rule which amounted to this:

If a man pulled his gun he did it at his own peril. Whoever fired a shot within the town limits, whether he did it for sport or murder, faced arrest.

Resistance followed. There were nights when the main street echoed with the roaring of firearms. But, by the force of his personality and by his remarkable ability at the quick draw, Bat Masterson subdued the rebels. It came about that of what killing was done he did his full share, which greatly diminished the death list.

Wyatt and Virgil Earp succeeded Bat Masterson in this office and carried on its administration with a boldness which left them famous. With the coroner behind them they were lords of the high justice, the middle, and the low; and they sustained their positions by good straight shooting.

At such times as they were not performing their functions as peace officers they were dealing faro; and when the imminence of a less interesting era was made apparent in the dwindling of the trail herds and the increase⁸⁵ of dry farmers, they left the good old cow-town along with many other professional gamblers.

They arrived in Tombstone in the days when the outlaws were rampant, and they began dealing faro in Oriental. They found many a friend—and some enemies—from those years in western Kansas among the more adventurous element in the new town. Former buffalo-hunters, teamsters, quiet-spoken gamblers, and two-gun men sat down before their layouts and talked over bygones with them. There was an election at about this time. Virgil was chosen town marshal, and Wyatt got the appointment of deputy United States marshal soon afterward.

Old friends and new rallied around them. Of the former was Doc Holliday, a tubercular gunman with the irascible disposition which some invalids own, who had drifted hither from Colorado. Among the latter were the Clanton brothers and Frank Stilwell, who robbed the stage and rustled cattle for a living. John Ringo, who was really the brains of the outlaws, and Curly Bill, who often led them, are listed by many old-timers among the henchmen in the beginning.

It was a time when the old spoils system was recognized in its pristine simplicity. If you trained with the victorious political faction you either wore a star or had some one else who did wear a star backing you. If you

trained with the minority you were rather sure, sooner or later, to have your name engrossed on a warrant. In such an era it was as well to vote wisely; else, in the vernacular, you were “short” in your home town, which meant you could not go back there.

How much the Earps knew of what their henchmen did is beyond the telling⁸⁶ in this story. An official history of Arizona published under the auspices of the State legislature and written by Major McClintock, an old Westerner, states that first and last they were accused of about 50 per cent. of the robberies which took place in the town. It is, however, altogether possible that their cognizance of such matters was no greater than many a city official to-day holds of crimes committed in his bailiwick. When one comes to analyze police politics he finds they have not changed much since the time of the Crusades: desire for power has always blinded reformers to the misdeeds of their followers. One thing is certain; the Earps did protect their friends, and some of those friends were using very much the same methods which the Apaches employed in making a living.

To a certain extent this was necessary. What one might call the highly respectable element of the town was busy at its own affairs. Mine-owners and merchants were deeply engrossed in getting rich. And unless he liked gun-fighting, a man would have to be a good deal of a busybody to give the town marshal anything more tangible than his best wishes in the way of support. It was up to that official to look out for himself. At any time when complications followed his attempt to arrest a lawbreaker he could depend upon the average citizen—to get outside the line of fire.

And the gun-fighters were eager to get into the game. They were right on hand, to make a stand in front of the enemy if need be—but preferably to murder the foe from behind. Which was ever the way with the Western bad man.⁸⁷

There were determined men of another breed in Tombstone and the surrounding country, men who had outfought Apaches and desperadoes on many an occasion; dead shots who owned high moral courage. Such a man was John Slaughter, who had established his ranch down on the Mexican line and had driven the savages away from his neighborhood. But these old-timers were not enlisted under the Earp banner and the town's new rulers had only the other element for retainers.

So now Frank Stilwell robbed stages on the Bisbee road until the drivers got to know his voice quite well; and he swaggered through the Tombstone dance-halls bestowing the rings which he had stripped from the fingers of women passengers upon his latest favorite. Ike and Billy Clanton enlarged

their herds with cattle and horses from other men's ranges, and sold beef with other men's brands to Tombstone butchers. And taking it altogether, the whole crew, from Doe Holliday down, did what they could to bring popular disfavor upon the heads of the new peace officers.

But if their followers were lacking in the quality of moral courage, that cannot be said of the Earp brothers. And not long after they took the reins in their strong hands, an occasion arose wherein they proved their caliber. Wyatt in particular showed that he was made of stern stuff.

It came about as a result of the reforms under the new régime. After the manner of their Dodge City administration the brothers ruled in Tombstone. They forbade the practice of shooting up the town. He who sought to take possession of a dance-hall according to the old custom, which consisted of driving out the inmates with drawn revolvers and extinguishing the lights with forty-five caliber slugs, was forthwith arrested. To ride a horse into a saloon and order drinks for all hands meant jail and a heavy fine. To slay a gambler, or make a gun-play in a gambling-house, when luck was running badly, resulted in prosecution.

Virgil Earp attended to these matters, and after several incidents wherein he disarmed ugly men whose friends stood by eager to let daylight into the new marshal, he owned a certain amount of prestige. It is only fair to remark in passing that he had a disposition—in ticklish cases—to shoot first and ask questions afterward; but that was recognized as an officer's inalienable right in those rude days.

Now this new order of things did not meet universal popular favor in Tombstone. There were always three or four hundred miners off shift on the streets, and while a large percentage of them were peaceable men, there was a boisterous element. This element, and the cow-boys who had been in the habit of celebrating their town comings after the good old fashion, felt resentful. An occasional killing of one of their number with the invariable verdict from a carefully picked coroner's jury, "met his death while resisting an officer in performance of his duty," made the resentment more general. The recalcitrants said that Tombstone was being run by a gang of murderers in the interest of the gamblers.

Opposition to the administration began to crystallize. Things reached the point where in a twentieth century community reformers would be

preparing to circulate recall petitions. But in the early eighties they did things more directly, and instead of the recall they had the “show-down.” The malcontents eagerly awaited its coming.

It came. And its origin was in Charleston.

Charleston was eleven miles across the hills from Tombstone down by the San Pedro River. There was a mill there, and the cow-boys from the country around came in to spend their money. Jim Burnett was justice of the peace. Early in the town’s history he had seceded from the county of Pima because the supervisors over in Tucson refused to allow him certain fees. “Hereafter,” so he wrote the board, “the justice court in Charleston will look after itself.” Which it did. Once the court dragged Jack Harker from his horse, when that enthusiastic stockman was celebrating his arrival by bombarding the town, and fined the prisoner fifty head of three-year-old steers. And once—it is a matter of record—a coroner’s jury under his instruction rendered the verdict: “Served the Mexican right for getting in front of the gun.”

Things always moved swiftly in Charleston. There is a tale of a saloon-keeper who buried his wife in the morning, killed a man at high noon, and took unto himself a new bride before evening. If that story is not true—and old-timers vouch for it—it is at least indicative of the trend of life in the town.

And to Charleston came those followers of John Ringo and Curly Bill who did not get on with the Earps. Several of them became men of influence down here on the San Pedro. Hither flocked those boisterous spirits who craved more freedom of action on pay-day than the mining town afforded.

Guns blazed in Charleston whenever the spirit moved. The young fellow who was ditch-tender for the company had to give up his lantern when he made his nightly trip of inspection, because, as surely as that light showed up on the side hill, there was certain to be some one down in the street who could not resist taking a shot at it. So while dissatisfaction was crystallizing among the miners of Tombstone a keen rancor against the Earps was developing over by the San Pedro.

This was the state of affairs when Johnny Behind the Deuce brought matters to a crisis by killing an engineer from the mill.

Johnny Behind the Deuce was an undersized, scrawny specimen of the genus which is popularly known as “tinhorn,” a sort of free-lance gambler, usually to be found sitting in at a poker-game. The engineer was a big man and abusive.

There was a game in which these two participated; and when he had lost his wages to Johnny Behind the Deuce, the engineer sought solace first in vituperation, then in physical maltreatment. Whereat Johnny Behind the Deuce shot him. Charleston’s constable took the slayer into custody. The rustlers and other exiles from Tombstone knew the prisoner for a friend of the Earps, and so they decided to lynch him. They sent one of their number to get a reata for that purpose.

The constable learned what was going on. He commandeered a buckboard and a team of mules, put Johnny Behind the Deuce aboard, and drove the animals on the dead run for Tombstone.

When the man who had been sent for the reata returned, the rustlers set out after the prisoner and found they were five minutes too late. They saddled up and started in pursuit.

The road wound along the lower levels between the foot-hills of the Mule Mountains; there were two or three dry washes to cross, some sharp grades to negotiate, and several fine stretches which were nearly level,—a rough road, admirably suited for making a wild race wilder.

And this was a wild race. The constable and the prisoner were just getting their team nicely warmed up when they heard a fusillade of revolver-shots behind them. They glanced over their shoulders and saw more than fifty horsemen coming on at that gait which is so well described in the vernacular as “burning the wind.” From time to time one of these riders would lean forward and “throw down” his six-shooter; then the occupants of the buckboard would hear the whine of a forty-five slug, and a moment later the report of the distant weapon would reach their ears.

The mules heard these things too. What with the noise of the firearms and the whoops of the pursuers they were in a frenzy; they threw their long ears flat back and entered into the spirit of the occasion by running away. The constable, who was a cool man and a good driver, centered his energies on guiding them around the turns and let it go at that.

Now as the miles of tawny landscape flashed behind them the two fugitives saw that they were being overhauled. And the pursuers found that they were gaining; their yells came louder down the wind; they roweled their lathered cow-ponies. And they drew closer to the buckboard.

The constable negotiated the dry wash near Robbers Rock on two wheels, and as the light vehicle was reeling along the easy grade beyond, the prisoner took another look behind. He told his captor that the wild riders were not much more than four hundred yards away.

They came to a stretch of level road. The mules were doing a little better now, and they clattered down into the next dry wash with an abandon which all but ended matters; the outer wheels went over the high cut bank, but by the grace of good luck and marvelous driving the buckboard was kept right side up. And now the lynching party, who had made a short cut, appeared between the rolling hills not more than two hundred yards behind.

Johnny Behind the Deuce reported the state of affairs. The constable answered without turning his head.

“Looks like we’re up against it, kid,” said he, “but we’ll play it out ’s long as we got chips left.”

Three miles outside of Tombstone stood an adobe building wherein a venturesome saloon-keeper had installed himself, a barrel of that remarkable whisky known as “Kill Me Quick,” and sufficient arms to maintain possession against road-agents. The sign on this establishment’s front wall said:

LAST CHANCE

It was a lucky chance for Johnny Behind the Deuce. For Jack McCann, who owned a fast mare, was exercising her out here this afternoon preparatory for a race against some cow-ponies over on the San Pedro next week. He had trotted her down the road and was about to head her back toward the saloon for her burst of speed when he saw the buckboard coming over a rise.

The mules were fagged. The constable was lashing them with might and main. The lynching party were within a hundred yards.

As Jack McCann surveyed this spectacle which was so rapidly approaching him the constable waved his hand. The situation was too tight to permit wasting time. McCann ranged his mare alongside the buckboard as soon as it drew up; and before the breathless driver had begun to explain, he cried.

“Jump on, kid.”

Johnny Behind the Deuce leaped on the mare’s back. The constable pulled off the road as the lynching party came thundering by with a whoop and halloo. He peered through the dust which the ponies’ hoofs had stirred up and saw the mare fading away in the direction of Tombstone with her two riders.

It was nearly four o’clock in the afternoon. That hour was the duller of the twenty-four in the gambling-houses, for the evening shift was on its way to work and the day shift had not yet come off. The Earps were dealing faro in the Oriental.

To the onlooker who does not know its hazards faro is a funereal game. The dealer slides one card and then a second from the box. The case-keeper moves a button or two on his rack. The dealer in the meantime is paying winners and collecting chips from losers, all with the utmost listlessness. In his high chair above them, all the lookout leans back with every external sign of world-weary indifference. And the players settle a little lower on their stools. There was about as much animation in the Oriental that afternoon as there is in a country church on a hot Sunday morning; less in fact, for there was no preacher present.

Into this peaceful quiet came the sound of hoofbeats from the street. It stopped abruptly. Two men burst through the front door on a run. The players looked around and the faro-dealers dropped their right hands toward the open drawers where they kept their loaded pistols. Jack McCann and Johnny Behind the Deuce had arrived.

But before the prisoner finished his story, to which he did not devote more than twenty words or so, a man ran into the Oriental with the tidings that the miners who were coming off shift were arming themselves as fast as they left the cages. The rustlers had ridden up the hill and were gathering reinforcements.

Wyatt Earp at once took charge of the affair. He was a medium-sized man with a drooping sandy mustache.

“We’ll close up, boys,” he said.

The show-down had come.

Wyatt, Virgil, Morgan, and Jim took counsel. Doc Holliday advised with them. A handful of their supporters stood by awaiting their decision. All others left; the neighborhood was no healthy place for non-combatants.

The Oriental gambling-house stood on Tombstone’s main street at the intersection of a cross street. Because of its size it would be a hard place to defend against so formidable a mob as this which was now moving down the hill. Several doors north on the main street and on the opposite side, there was a bowling-alley. Its narrowness gave that building a strategic value. They took Johnny Behind the Deuce there and set guards at both ends.

Wyatt Earp remained alone out in the middle of the main street just below the corner. He held a double-barreled shotgun over the crook of his arm.

The ugly sound which rises from a mob came into the deserted thoroughfare; the swift tramp of many feet, the growl of many voices. More than three hundred miners, the majority of whom were armed with rifles from the company’s arsenal, and the fifty-odd members of the Charleston lynching party swept into Toughnut Street, turned the corner, and rushed down the cross street toward the Oriental.

They reached the intersection of the main street, and as they faced the closed doors of the Oriental their left flank was toward Wyatt Earp. They filled the roadway and the front ranks surged upon the sidewalk toward the portals of the gambling-house.

Then some one who had seen the prisoner taken to the bowling-alley shouted the tidings. The throng changed front in the instant and faced the solitary man who stood there a few yards before them.

Wyatt Earp shifted his shotgun into his two hands and held it as a trap-shooter who is waiting for the clay pigeons to rise.

In the moment of discovery the mob had checked itself, confronting him⁹⁶ as one man confronts another when the two are bitter enemies and the meeting

is entirely unexpected. There followed a brief, sharp surge forward; it emanated from the rear ranks and moved in a wave toward the front. There it stopped. And there passed a flash of time during which the man and the mob eyed each other.

That was no ordinary lynching party such as some communities see in these days. Its numbers included men who had outfought Apaches, highwaymen, and posses; men who were accustomed to killing their fellow beings and inured to facing death. And the hatred of the Earp brothers, which had been brewing during all these months, was white-hot now within them.

“Come on,” called Wyatt Earp, and added an epithet.

Above the mass of tossing heads the muzzles of rifles were bobbing up and down. The trampling of feet and the shuffling of packed bodies made a dull under-note. Shouts arose from many quarters.

“Go on!” “Get him!” “Now, boys!”

Wyatt Earp threw back his head and repeated his challenge.

“Come on!” He flung an oath at them. “Sure you can get me. But”—he gave them the supreme insult of that wild period’s profanity—“the first one makes a move, I’ll get him. Who’s the man?”

Those who saw him that afternoon say that his face was white; so white that his drooping mustache seemed dark in contrast. His eyes gleamed like ice when the sun is shining on it. He had the look of a man who has put his life behind him; a man who is waiting for just one thing before he dies—to select the ones whom he will take with him.

The cries behind redoubled, and the crowding increased in the rear. Some leaped on the backs of those before them. But the men in the front ranks—some of them were bold men and deadly—withstood the pressure. They held their eyes on that grim, white face, or watched the two muzzles of that shotgun which he swept back and forth across their gaze with hypnotic effect.

It was a fine, large moment. Any one of them could have got him at the first shot. There was no chance of missing. And scores yearned to get him. Undoubtedly he had attained that pitch where he yearned for them to do it.

And being thus to all intents a dead man,—save only that he retained the faculty of killing,—he was mightier than all of them.

Those in the front ranks were beginning to slip back; and as these escaped his presence the others, who had become exposed to it, struggled against the pressure of their fellows who would keep them in that position. Some of the cooler spirits were stealing away. The contagion of indifference spread. The mob was melting.

In the meantime one or two members of the Earp faction had procured a team and wagon. As soon as the lynchers had dispersed they stowed the prisoner in the vehicle, and set out for Tucson with a heavy guard. But there was no pursuit. The reaction which follows perfervid enthusiasm of this sort had settled down upon the miners and cow-boys. Johnny Behind the Deuce was tried before the district court, and—as was to be expected—he was acquitted.

Time went on and dissensions came among the followers of the Earp brothers. Curly Bill and John Ringo were among the first to fall out with the leaders, and they took the path of previous exiles to Charleston. But the country by the San Pedro was being settled up, and not long afterward they emigrated to Galeyville over in the San Simon valley. Thenceforth this little smelter town became the metropolis of the outlaws. Ringo spent most of his time here with occasional trips to Tombstone, where, on more than one occasion, he dared the Earps to try to take him. They did not accept his challenges. Finally he died by his own hand and his friend Curly Bill left the country.

In the meantime new secessions were taking place in the Earp following. The county of Cochise had been established. Tombstone was made the county seat. Johnny Behan, an old-timer and an Indian fighter, was the first sheriff. He was hostile to the city administration from the beginning. Nor was that all. Lawyers came into the town and henceforth—provided a dead man's friends had money—killing an opponent no longer settled a dispute. There remained such complications as indictment, sworn testimony, and the jury. The good old days were passing.

Sheriff Johnny Behan charged the Earps with participation in robberies and wilful cognizance of murders.

It was about as far as he did go as a public official. The brothers issued profane and pointed defiance and went on dealing faro.

About this time Frank Stilwell quarreled with the Earps and hastily departed from Tombstone. And henceforth, until the wind-up of the ugly affairs that followed, he remained at large, awaiting his opportunity for revenge.

Sheriff Behan was trying to get some good charge to bring against the brothers, and various lawyers—some of them widely known throughout the Southwest—were anxiously awaiting opportunity to appear as special prosecutors when the Benson stage was held up.

The Benson stage had been robbed often enough before, but this time the crime brought far-reaching consequences. Bud Philpots was driver and Bob Paul, afterward United States marshal, was shotgun messenger. There was a large currency shipment—some eighty thousand dollars—in the express-box. The stage was full inside and one passenger, a Mexican, was riding on top. For some reason or other Bob Paul had taken the reins and Philpots was sitting in his place. As the vehicle came to the top of a hill the robbers showed themselves.

The old-timers speak of the conduct of the highwaymen with profane contempt for instead of shooting a horse or two, they opened fire on Bud Philpots, whom they believed from his position to be the messenger. They killed him and the Mexican passenger who was seated behind him. But the team took fright at the noise and ran away and the eighty thousand dollars went on up the road in a cloud of dust.

Johnny Behan, the sheriff, said that the Earp brothers sent Doc Holliday out with the Clanton brothers to commit the crime.

Ike Clanton said that he was rustling cattle at the time down in Mexico, and accused the Earps of sole responsibility.

The Earps in turn stated that the Clanton boys were the bandits.

And that began the Earp-Clanton feud.

It did not last long, but there was much happening while it was going on.

The Clanton brothers, Ike and Billy, betook themselves to their ranch and gathered their friends around them. Frank and Tom McLowrey were prominent among these allies. And now the statement was made in

Tombstone that the members of this faction had promised to shoot the Earps on sight.

One October evening Ike Clanton came to town with Tom McLowery, and Virgil Earp arrested the two on the charge of disturbing the peace. He did it on the main street and disarmed them easily enough. The justice of the peace, whose name was Spicer, fined the prisoners fifty dollars.

The next morning these two defendants went to the O. K. corral on Fremont Street, where they had put up their horses the night before. And there they met Bill Clanton and Frank McLowery. All four were leading their ponies out of the gate when Wyatt, Virgil, and Morgan Earp, together with Doc Holliday, confronted them.

“Hands up!” Wyatt ordered.

The shooting began at once. Holliday killed Tom McLowery, who was unarmed, at the first volley. Billy Clanton fell mortally wounded but continued shooting up to his last gasp. Frank McLowery got a bullet through his pistol hand but shifted his weapon to the other and kept on firing until Morgan Earp, who had fallen with a ball through his shoulder, killed him from where he lay. Ike Clanton jumped a high fence and fled.

Justice of the Peace Spicer held an examination and exonerated the slayers on the ground that they had done the thing in performance of their duty as officers, but friends of the Clantons had money. Some one retained lawyers to assist in prosecuting the Earps. The sheriff saw his opportunity and became active getting testimony.

And then, while the town was seething with gossip concerning the coming trial, Frank Stilwell stole into Tombstone with a half-breed and slew Morgan Earp, who was playing billiards at the time. The murder accomplished, Stilwell took a fast horse and rode to Tucson. The half-breed fled to the Dragoon Mountains.

The next day the three surviving Earp brothers and Doc Holliday started for California with Morgan’s body. At dusk that evening the train reached Tucson. Now Ike Clanton was in the town, out on bail awaiting trial for a stage-robbery. And Frank Stilwell was there. It was no more than natural that the Earps should keep a sharp lookout when the locomotive stopped at the station.

Their vigilance was rewarded. Stilwell came slipping through the shadows just as the train was pulling out. The passengers in the Pullman were startled by a crackling of revolver shots from the rear platform. Directly afterward the Earps came back inside and took their seats. And Tucson was given something to talk about that evening by the discovery of Frank Stilwell's body riddled with bullets beside the track.

The Earp party held council in the Pullman and determined to return to Tombstone. Leaving Virgil to complete the journey with Morgan's body, the other two brothers and Doc Holliday left the train at a way station and flagged a freight which took them back to Benson. Here they procured horses and rode to the county seat.

Sheriff Johnny Behan received telegraphic advices from Tucson to arrest them. He found the trio sometime in the afternoon. They had got their effects together and sent them ahead on a wagon. They were themselves on horseback, about to set forth for Colorado.

Wyatt glanced down upon the sheriff as the latter came up.

"Listen," he said. "Don't you even look as if you wanted to arrest us."

And with that the three rode down the main street. They passed the saloons and gambling-houses, and men came flocking to the doors to see them go by.

At the running walk the horses came on, three abreast; the faces of the riders were set; their eyes swept the crowds on the sidewalks. They went on by. They turned the corner into the road that leads to the Dragoons. That was the last that Tombstone ever saw of them.

They stopped at Pete Spence's ranch, where the half-breed was working who had been with Frank Stilwell on the evening of Morgan's murder, and a cow-boy found the man's body the next morning.

They rode across wide flats and through great dark mountain ranges, eastward and to the north, until they came into Colorado.

After the departure of these bold men outlawry took on a new lease of life in southeastern Arizona. Cattle-rustling, stage-robbery, and murder went on throughout Cochise County. And at last the people found a strong man, to whom the law stood for something more than a means of personal power.

They chose for sheriff John Slaughter, who had been waging war for years on his own account against Apaches and bad men. But the story of how he brought the enforcement of the statutes into Tombstone is too long to tell here, although it is a stirring tale and colorful.

Tombstone to-day stands just as it was back in those wild days of the early eighties; just as it was—the buildings are unchanged. You may see them all, and see the streets as they looked when pistols flamed and men died hard out in the roadway.

But other crowds walk those streets now. And sometimes on an evening you will see automobiles going down the block with family parties on their way for a spin along the Benson road where the Clanton boys, Frank Stilwell, John Bingo, and the other bad men used to rob the stages in daytime.

On such an evening, should you travel down that highway, you may see the leaping light of a bonfire by which a group of young people are toasting marshmallows on the summit of the knoll where Ed Schiefflin hid from the passing Apaches.

Tombstone is peaceable enough to-day for any man; so peaceable that one finds it hard to believe there was a time when the town had a man—or more—for breakfast every morning.

THE SHOW-DOWN

In the early days of Tombstone when miners and merchants and cow-men and faro-dealers and outlaws were drifting into Cochise County from all over the West, a young fellow by the name of William C. Breckenbridge came down from Colorado to the new camp. He was, so the old-timers say, one of those smallish men who can wear a flannel shirt and broad-brimmed hat so jauntily that, although their breeches be tucked into their boot-tops, they still look marvelously neat; but while he could come through a hard day's ride still suggesting a bandbox, there was nothing of the dandy about him.

His people had staked him to go out West and at their suggestion he had hunted up an older brother in Colorado. But two years in the wide reaches of the Platte country, where the monotony of teaming was varied by occasional brushes with the Indians, failed to satisfy his spirit. And so he came riding down into the flaring valleys of the Southwestern border along with the first influx of adventurers.

He was still in his early twenties and the world looked good to him; one of those quiet youths who preface most remarks with a smile because, all other things being equal, they like their fellow-men.

He knocked about the camp, trying this thing and that, and was starting in at mining engineering with an old marine compass as his only instrument when Johnny Behan, who was newly appointed sheriff by the governor, gave him a job as a deputy. Then straightaway the eyes of men were turned upon him, and the query arose:

“How's he going to stack up when it comes to a show-down?”

Those were the days, you understand, when—to indulge in a Scriptural figure—he who took up the sword must be prepared to perish by the sword. If you buckled on a gun you must be ready to draw it, and once you started to draw it, heaven help you if you did not reckon on going through with the play.

A man could get by, as the saying has it, if he played the part of a neutral; but if, on the one hand, you started in at stealing cattle or if, on the other hand, you pinned on a star—why then, sooner or later, the big issue was going to come to a head; you were going to find yourself faced by a foe or foes, armed like yourself, and like yourself prepared to shoot it out. Then when the show-down came you would comport yourself according to the stuff that you were made of—the material which was hidden away deep down under your skin—and according to your conduct the world would judge you.

So naturally enough in those days men asked this question and waited for events to bring its answer. And those among them who were not gifted with the faculty of reading character but needed to see a man for themselves when the guns were blazing—those individuals had to wait a long time.

As for the others, what they said to themselves as one adventure followed another now in the career of Billy Breckenbridge you who read these words can judge, if you be blessed with ordinary perspicacity. For many things took place and many months went by before he reached down along his lean right thigh toward the butt of his forty-five single-action revolver.

It is quite likely that Johnny Behan was among those who wanted the new deputy to give a demonstration of the stuff he was made of. Perhaps that was the reason the sheriff sent young Breckenbridge over into the eastern end of the county to collect the taxes before the latter had worn his star long enough to get used to it.

In those days the sheriff's office levied assessments and did the collecting on personal property at the same time. Payments were made in cash; bank-checks were virtually unknown in Cochise County. And thus far the country east of the Dragoon Mountains had yielded no revenues for the simple reason that it looked as if nothing short of a troop of cavalry could go forth into that region and return again with the money.

Beyond those rocky peaks which frowned across the mesquite flat at Tombstone lay other ragged mountain ranges; the Chiracahuas, the Dos Cabezas, the Swiss-helms, and the Grahams. Between their towering walls the valleys of the Sulphur Springs and the San Simon stretched away and away southward across the Mexican border great tawny plains pulsating under the hot sun.

Upon their level floors the heat-devils danced all the long days like armies of phantom dervishes gone mad with their interminable leapings and whirlings. And strange grotesque mirages climbed up into the glaring heavens. A savage land wherein savage men rode, as packs of gray wolves range in the wintertime when meat is scarce, searching the distant sky-line for some sign of life on which to prey.

For this was no-man's-land. Bands of renegade Apaches lurked among its empurpled peaks. Companies of Mexican smugglers came northward through its steep-walled border cañons driving their laden burros to lonely rendezvous where hard-eyed traders awaited them with pack-mules loaded down with dobie dollars. A few lonely ranch-houses where there was water in the lowlands; in the mountains a sawmill or two and some far-flung mines; here the habitations were like arsenals. Honest men must go armed to work and sleep with arms by their bedsides, and even then it was advisable for them to ask no questions of those who rode up to their cabins.

And it was best for them to make no protests at what such guests did unto their own or the property of others. For since the days when the first semblances of law had come to Tombstone this region had been the sanctuary of the bad men.

When you crossed the summits of the Dragoon Mountains you were beyond the pale. Hither the stage-robber came, riding hard when the list of his crimes had grown too long. The murderer, the rustler, and the outlaw spurred their ponies on eastward when the valley of the San Pedro was too hot for them and took refuge here among their kind. On occasion the bolder ones among them ventured back to show themselves on Tombstone's streets or swagger into Charleston's dance-halls; but never for long and never unless they were traveling in formidable groups.

And then sooner or later they would slip away again to the wild passes and the long and lonely valley flats where there was no law excepting that which a man carried in his pistol-holster. One after another those who were "short" in other places had drifted before the winds of public opinion to gather in this eastern end of Cochise County where two whose qualities of deadliness surpassed those of all the rest were recognized, because of that superior ability at killing, as the big "He Wolves." These two were Curly Bill and John Ringo.

When they were not leading their followers in some raid against the herds of border cattlemen, or lying in wait to ambush one of the armed bands of smugglers, or standing up the stage, these two were usually to be found in Galeyville. You will not see Galeyville named nowadays on the map of Arizona and if you look ever so long through the San Simon country, combing down the banks of Turkey Creek ever so closely, you will not discover so much as a fragment of crumbling adobe wall to show that the town ever existed.

But it did exist during the early eighties and its life was noisy enough for any man. There came a day when the neighboring mines shut down and the little smelter which furnished a livelihood for the honest members of the population went out of business; later the Apaches erased everything that was combustible from the landscape and the elements finished the business.

But when John Ringo and Curly Bill held forth in Galeyville there was a cattle-buyer in the place who did a brisk business because he asked no embarrassing questions concerning brands. Which brought many a hard-eyed rustler thither and sent many a dollar spinning over the battered bars.¹⁰

Such were the eastern end of Cochise County and its metropolis when Johnny Behan told young Billy Breckenbridge to cross the Dragoons and collect taxes throughout that section. If he expected a protest he was mistaken, for Breckenbridge took the bidding with his usual good-natured smile. And if the sheriff looked for a request for a posse he was disappointed. The new deputy saddled up his horse one morning and rode forth alone, trim and neat as usual and, for all that any one could see, without a care on his mind.

He rode up the wide main street which bisects Tombstone from end to end, descended the hill and started his horse across the flatlands toward the ragged pinnacles of Cochise's stronghold.

Eastward he rode through tall mesquite thickets, over rolling hills where clumps of bear-grass grew among spiked yuccas and needle-pointed tufts of Spanish bayonet, and climbed the pass beyond. From its summit he looked down upon the wide reaches of the Sulphur Springs valley, level as a floor, as tawny as a lion's skin.

Then he descended from the sky-lined pinnacles of granite to the plain. Under the blazing heavens pony and rider showed upon that glowing surface as a tiny dot; a dot that moved slowly on and on until the yellow-brown carpet of the bunch-grass came to an end and was replaced by a gleaming sheet of alkali. Before that crawling dot the mirage wavered and undulated like a weirdly painted back-drop stirring in the wind.

The dot crept on, took strange new shapes that changed phantasmally, then vanished behind the curtain of which for a passing moment it had been a part. Thus young Breckenbridge rode beyond the dominion of the written law and was swallowed up by no-man's-land.

When he had started forth from Tombstone he merely knew his errand; he owned no plan. Now as the splendid star-lit nights followed the long, blazing days he began, to see a course of action and this led him on, until one day he came down into the San Simon country and rode into the town of Galeyville.

The enterprising citizen whose cattle-buying business helped to keep dollars spinning across the bars of this outlaw metropolis was mildly curious when young Breckenbridge introduced himself that afternoon. The presence of a sheriff's deputy was enough to set any one to thinking in those days.

His curiosity gave way to unspoken wonder as the caller unfolded his mission and stated the name of the man whom he wanted to see. Anyhow, this meeting promised to be worth while witnessing; the cattle-buyer said as much.

"Reckon we'll find him up the street right now," he added, and led the way to a near-by saloon.

There were a number of men in the place when the pair entered; a quintet playing cards, and as many others scattered about a quiet pool-game. And one burly fellow was lying on a poker-table, curled up for all the world like a sleeping dog. Now and then one of the gamblers would lift his head to take a look at the new-comers, and for a brief instant young Breckenbridge would find himself gazing into a pair of hard, steady eyes. Then the eyes would be lowered and the player would go on with the game.

It was during this uncomfortable interval of general sizing-up that the proprietor entered, a red-faced man and short of stature. He had been out to

get a bucket of water; he set the pail down by the end of the bar and filled a tin cup from it.

“Here’s how, boys,” he said with loud facetiousness, and lifted the cup.

The burly man, who had apparently been awakened by the words, uncoiled himself, came to crouch with one arm supporting his body on the table-top and—all in the same lithe movement—drew his big-caliber revolver from the holster.

“Don’t drink that stuff. It’s pizen,” he shouted, and with the last word his weapon flamed.

The tin cup flew from the saloon man’s hand. A shout of laughter rose from the crowd at the two games; then the pool-balls clicked again and—

“Raise you ten,” a poker-player said.

Breckenbridge’s guide beckoned to the man who had done the shooting. He came across the room, shoving his gun back into the holster, a rather thickly built man but well-knit and there was a soft spring in his slowest movements which suggested snake-like quickness. He was dark-eyed, and his hair was a mat of close black curls. The cattle-buyer nodded, to indicate the introduced one.

“This,” he said, “is Mr. Breckenbridge, one of Johnny Behan’s deputies.”

And—

“This is Curly Bill.”

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Young Breckenbridge smiled as usual and stretched forth his right hand. But the eyes of Curly Bill were narrow and his hand came out slowly. There was that in his whole manner which said he was on guard, watching every movement of the deputy.

And for this there was good reason. It was not long since Curly Bill had stood in very much the same attitude on Tombstone’s street facing Town Marshal White, the only difference being that his right hand on that occasion had been proffering his pistol, butt foremost, to the officer. And in the passing of the instant while Marshal White had touched the weapon with his fingertips the forty-five had swiftly reversed ends, to spit forth one leaden slug.

The officer had dropped in the dust of the roadway and Curly Bill had ridden out of town with a thousand dollars on his head. A thousand dollars was a thousand dollars and there was no telling what a man who wore a nickel-plated star might have up his sleeve.

“Mr. Breckenbridge,” the cattle-buyer said as the two palms met, “is here on civil business.”

The eyes of Curly Bill resumed their normal shape. His fingers tightened over the deputy’s.

“Howdy,” he said. “What yo’ going to have?”

While the sting of the cow-town whisky was still rankling in their throats a man entered the front door.

“Oh, Bill,” he called across the room, “your hoss is daid.”

Deserting the bar to delve into this mystery, they found the outlaw’s pony stretched out beside the hitching-rack near the rear of the building. The owner cast one glance at the dead animal; then his eyes went to a shattered window.

“’Twas when I shot that cup from Shorty’s hand.”

He shrugged his big shoulders and, with a grin—

“Plenty more good ponies in the valley—and the nights are moonlight now.”

When they were back facing the battered bar young Breckenbridge explained, his business in no-man’s-land.

“And this end of the county,” he wound up, “is sort of rough. If I’d ride around alone, packing that money, somebody’s liable to get the best of me when I’m not looking for it. I’ve got to have a good man along to help take care of that roll. And I’d admire to have you make the trip with me.”

Curly Bill was a great deal slower at thinking than he was at drawing his gun and there was much food for thought in that bold proposition. He gazed at young Breckenbridge for some moments in silence. Gradually his lips relaxed. Smiling, he turned and addressed the occupants of the room.

“Boys,” he cried, “line up.”

And when the line was formed before the bar he waved his hand.

“This here’s the deputy sheriff, come to collect the taxes in our end of the county; and I aim to help him do the job up right.”

By what means Curly Bill supplied himself with a new pony this chronicler does not know. But it is a fact that the outlaw rode forth from Galeyville the next day along with Johnny Behan’s deputy, to guide the latter through the Sulphur Springs valley and the San Simon—and to guard the county’s funds.

Travel was slow in those days; accommodations were few and far between. Outlaw and deputy jogged down the long, glaring flats enshrouded in the dust-fog which rose from their ponies’ hoofs; mile after mile of weary riding under a scorching sun. They climbed by winding trails through narrow cañons where the heat-waves jiggled endlessly among the naked rocks. They camped by lonely water-holes and shared each other’s blankets under the big yellow stars.

By day they watched the sky-line seeking the slightest sign of moving forms; by night they kept their weapons within easy reach and slept lightly, awakening to the smallest sound. They scanned the earth for tracks and, when they found them, read them with the suspicion born of knowledge of the country’s savagery.

And sometimes other riders came toward them out of the desert to pass on and to vanish in the hazy distance; men who spoke but few words and watched the right hands of the two riders as they talked. But none attacked them or made a show toward hostility. Now and again the pair stopped at a ranch-house or a mine where Breckenbridge added to the county’s money in his saddle-bags.

And as the days wore on, each with its own share of mutual hardship to bring these two to closer companionship, they began, as men will under such circumstances, to unfold their separate natures. Under the long trail’s stern necessity they bared to each other those traits which would have remained hidden during years of acquaintance among a city’s tight-walled streets.

A carelessly spoken word dropped at hot noontide when the water in the canteens had given out; a sincere oath, uttered by the fire at supper-time; a

long, drowsy conversation as they lay in their blankets with the tang of the night breeze in their nostrils, gazing up at the splendor of the flaming stars; until they knew each other man to man—and Curly Bill began to feel something like devotion to his purposeful young companion. Thenceforth he talked freely of his deeds and misdeeds.

“Only one man that ever got the drop on me,” the outlaw said one evening when they were lying on their blankets, enjoying the long inhalations from their after-supper cigarettes, “and that was ol’ Jim Burnett over in Charleston, two years ago.”

He paused a moment to roll another smoke. A coyote clamored shrilly beyond the next rise; a horse blew luxuriously feeding in the bunch-grass. Curly Bill launched into his tale.

“He was justice of the peace and used to hold co’t in those days whenever he’d run on to a man he wanted. Always packed a double-barrel shotgun and he’d usually managed to throw it down on a fellow while he tried the case and named the fine.

“Well, me and some of the boys was in town this time and things was slack. Come a Sunday evenin’ and I heard how some married folks had started up a church. I hadn’t been inside of one since I could remember and we all made up our minds to go and see what it was like.

“Things had opened up when we come into the door and we took our seats as quiet as we could. But the jingle of our spurs made some people in the congregation—the’ wasn’t more’n a dozen of ’em—look around. And of co’s’e they knew us right away. So, pretty quick one or two gets up and leaves, and soon afterward some more, until first thing we knew our bunch was all the’ was stickin’ it out.

“Along about that time the preacher decided he’d quit too, and he was edging off to head for the back door when I got up and told him to stop. Folks said afterwards that I throwed down my fo’ty-five on him but that wasn’t so. Wasn’t any need of a gun-play. I only said that we’d come to see this deal out and we meant to have it to the turning of the last card and if he’d go ahead everything would be all right.

“So he did, and give out a hymn and the boys stood up and sang; and he preached a sermon, taking advantage of the chanc’t to light into us pretty

rough. Then it come time for passin' round the hat and I'll bet the reg'lar congregation never done half so well by the collection as we did.

"Well, sir, next mo'nin' I was sittin' in front of the hotel in the shade of those big cottonwoods, sort of dozing, having been up kind of late after the church-going; and the first thing I knew somebody was saying—

"'Hanzup.'

"I opened my eyes and here was ol' Jim Burnett with that double-barrel shotgun throwed down on me, I knew there was no use tryin' to get the play away from him, either; only a day or two before that he'd stuck up Johnny Harker and fined him a bunch of three-year-old steers for shootin' up the town. So I obeyed orders and—

"'Curly Bill,' says he, 'yo' 're tried herewith and found guilty of disturbin' the peace at the Baptis' Church last evenin'; and the sentence of this co't is twenty-five dollars' fine.'

"I shelled out then and there and glad to do it, too. Them two muzzles was lookin' me right between the eyes all the while."

Up in the San Simon country they ran short of grub and after going two days on scanty rations—

"The' 's a cañon fifteen miles south of here," the outlaw said. "I reckon some of the boys might be camping there now."

They rode hard that afternoon and reached the place some time before sundown. The boys of whom Curly Bill had spoken were there all right, ten of them, and none of the number but was known at the time over in Tombstone either as a rustler or a stage-robber. His guide introduced Breckenbridge with the usual terseness of such ceremonies among his kind.

Whatever of constraint there was at the beginning wore away during the progress of the evening, and on the next morning before they left the gorge the young deputy worked his way into the good graces of his hosts by winning twenty dollars from them shooting at a mark.

By this time they were nearing the end of their tour and it was only a few days later, when they were crossing the Sulphur Springs valley toward the frowning Dragoons, that Curly Bill bestowed a final confidence upon his

companion. They were nooning at the time and somehow or other the usual question of revolver-handling had come up.

“I’m goin’ to tell yo’-all something,” said Curly Bill, “that mebbe it will come in handy to remember. Now here.”

He drew his forty-five and held it forth butt foremost in his right hand.

“Don’t ever go to take a man’s gun that-a-way,” he went on, “for when yo’ are figuring that yo’ have the drop on him and he is makin’ the play to give it up—Jest reach out now to get it.”

Breckenbridge reached forth with his right hand. The outlaw smiled. His trigger-finger glided inside the guard; there was a sudden wrist movement and the revolver whirled end for end. Its muzzle was pressing against the deputy’s waist-band.

“Did it slow so’s you could see,” said Curly Bill. “Now yo’ understand.”

And Breckenbridge nodded, knowing now the manner in which Marshal White had met his death on the day when his companion had fled from the law.

In no-man’s-land they shook hands at parting.

“So-long,” said Curly Bill. “See you later.”

And the deputy answered with like brevity, then rode on to Tombstone. Those who had banked on the big issue wherein Breckenbridge would smell the other man’s powder-smoke were disappointed. And there were some among them who shook their heads when the young fellow’s name was mentioned, saying, as they had said in the beginning:

“Wait till the show-down comes; then we’ll see how he stacks up.”

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But Sheriff Johnny Behan was open in his rejoicings. For the sheriff’s enemies were many and some of them were powerful, and his conduct in office was being subjected to a great deal of harsh criticism, oftentimes, it must be admitted, with entire justice. So when the smiling young deputy returned from a region where Cochise County had hitherto been unable to gather any taxes, and deposited a sum wherein every property-owner in that region was properly represented, here was good news with which to counteract accusations of laxity.

And that was not all. As far as law and order went, the country east of the Dragoons was a foreign land; and when Breckenbridge had told the story of his journeyings with Curly Bill, explaining how the outlaw had been zealous in nosing out those citizens whose property was assessable, how he had safeguarded the county's money, then the sheriff saw how he had on his force one whom he could use to good account.

Other officials were unable to carry the law into no-man's-land; but he had, thenceforth, at least an envoy. And he knew that there would be times when diplomatic representation was going to come in very handy.

From that day on, when anything came up in the Sulphur Springs valley or in the San Simon, Billy Breckenbridge was despatched to attend to the matter. Time and again he made the journey until the cow-men in the lowlands came to know his face well; until the sight of a deputy sheriff's star was no longer an unwonted spectacle in Galeyville. And as the months went by he enlarged the list of his acquaintances among the outlaws.

But his errands were for the most part concerned with civil matters. Now and again there was a warrant for stock-rustling, but the rustlers carried on their business in the open at that time and there were few who dared to testify against them. Bail was always arranged by the accommodating cattle-buyer at Galeyville, so that such arrests invariably turned out to be amicable affairs.

Among those who were sitting back and waiting for the big show-down there was a little stir of anticipation when young Breckenbridge rode forth armed with a warrant for John Ringo. For Ringo was a bad man of larger caliber than even Curly Bill. He was the brains of the outlaws, and the warrant charged highway robbery.

But the thrill died away when the deputy came riding back with his man; and there was something like disgust among the waiting ones when it was learned that the prisoner had stayed behind in Galeyville to arrange some of his affairs and had ridden hard to catch up with his captor at the Sulphur Springs ranch.

Anticipation flamed again a little later and it looked as if there was good reason for it. For this time it was a stolen horse and Breckenbridge had set forth to recover the animal. A rustler might be willing to go through the

formalities of giving bail at the county court-house, or even to stand trial, but when it came to turning over stolen property—and doing it without a struggle—that was another matter. Moreover, this horse, which had been taken from the Contention Mine, was a thoroughbred, valued high and coveted by many a man. There was good ground for believing that the fellow who had made off with him would put up a fight before letting him go again.

Now when he left Tombstone on this mission Johnny Behan's young diplomatic representative was riding a rented pony, his own mount being fagged out from a previous journey; and this fact has its bearing on the story later on. The wild country is always easier ground in which to trace a fugitive or stolen property than the crowded places for the simple reason that its few inhabitants are likely to notice every one who passes; besides which there are few travelers to obliterate tracks.

And Breckenbridge learned before he had gone very many miles that the badly wanted horse was headed in the direction of the McLowery ranch. The McLowery boys were members of the Clanton gang of rustlers and stage-robbers. It did not need a Sherlock Holmes to figure out the probabilities of where that horse was being pastured now. Breckenbridge pressed on to the McLowery place.

Night had fallen when he arrived and the barking of many dogs heralded his approach to all the surrounding country. Breckenbridge knew the McLowery boys well, as well as he knew the Clantons and a dozen other outlaws, which was well enough to call one another by their first names.

But these were ticklish times. The big Earp-Clanton feud was nearing its climax. The members of the latter faction—several of whom were wanted on Federal warrants which charged them with stage-robbery—were keeping pretty well holed up, as the saying is, and it was not unlikely that if any of them were in the ranch-house at the time, the visitor who was not extremely skilful in announcing himself would be shot first and questioned afterward.

So when Billy Breckenbridge came to the house he did not draw rein but kept right on as if he were riding past. Fortune had favored him by interposing in his path an enormous puddle, almost a pond, the overflow from a broken irrigation ditch. He pulled up at this obstacle and hallooed loudly.

“Any way through here?” he shouted. “This is Breckenbridge.”

A moment’s silence, and then a streak of light showed where the front door had been opened a crack.

“Sit quiet on that there hoss,” a gruff voice commanded, “and lemme see if you *be* Breckenbridge.”

“Hallo, Bill,” the deputy sheriff answered. “Yes, it’s me all right.”

And Curly Bill opened the door wider, revealing his burly form.

“Put up yo’r pony in the corral,” he said, “and come in.”

When Breckenbridge had complied with the last part of the invitation he found the bare room filled with men. The McLowery boys were there, two of them, and the Clantons. Half a dozen other outlaws were lounging about, and Curly Bill himself was looking none too pleasant as he nodded to the visitor.

“Cain’t tell who might come ridin’ in these nights,” he growled by way of explanation for his curt welcome. “Set up and eat a bite now yo’ ’re here.”

The lateness of the meal and the general dishevelment of the room’s occupants made it clear to the guest that every one had been riding hard that day. It was an awkward moment and the constraint endured long after the last man had shoved back his chair and rolled his brown-paper cigarette.

Curly Bill found an opportunity to get young Breckenbridge off to one side during the evening.

“What’s on yore mind?” he asked.

The deputy told him.

“The superintendent owns that horse,” he explained, “and he’s a good friend of mine. Not only that, but if I get it back it means a whole lot to the office; it’ll put Behan solid with those people over at Contention, and that helps me.”

The outlaw nodded but made no remark by way of comment. Some time later he sat up at the oilcloth-covered table talking quietly with Frank McLowery. And Breckenbridge saw McLowery scowling. Then he felt

reasonably sure who had stolen that blooded animal and who was going to bring it back to Tombstone in the morning.

Bedding-rolls were being unlashd within the half-hour. McLowery brought Breckenbridge a pair of blankets.

“Reckon you’ll have to make down on the floor same as the rest of the boys,” the outlaw growled and then, as if it were an afterthought, “That there boss yo’ ’re looking fer is near the ranch.”

And that was all the talk there was on the subject during the evening. But Breckenbridge spread his blankets and lay down among the rustlers serene in mind. Evidently the horse was going to be in his possession the next morning.

McLowery’s sullenness seemed to have been contagious and there were no good-nights said to the guest. He knew every man in the room; some of them he had known ever since that evening when Curly Bill had taken him to the rustler’s camp is the San Simon. But the best he got from any of them was an averted look; several were scowling openly. Even Curly Bill had put aside his usual heavy joviality. It was clear that the burly leader had strained a point in going as far as he had. Some men might have felt uneasy in dropping off to sleep under the circumstances, but Breckenbridge understood his hosts well enough to be certain that, so long as he was on the ranch, the sacred rites of hospitality were going to be observed. So he closed his eyes and the last thing he heard was the snoring of outlaws and murderers.

The next morning he awakened to find that several of the company had departed. No one made any comment on that fact and there was no mention of the stolen horse. But when the deputy had downed his last cup of coffee Frank McLowery took him outside and showed him the animal tethered to a hitching-rack.

“Much obliged, Frank,” said Breckenbridge.

The stage-robber gave him a sour grin.

“Bet yo’ never fetch him back to Tombstone,” he answered quietly.

The two looked into each other’s eyes and smiled. You may have seen a pair of fighters smiling in that same way when the gong has sounded and they

have put up their hands at the beginning of a finish contest.

Now under these circumstances and remembering the absence of several¹²⁶ of the best horsemen in the bunch from the ranch-house, many a man would have put his saddle on the thoroughbred that morning. But Breckenbridge had managed to assimilate some of the wiles of diplomacy during these last few months and he reasoned that if there were a pursuing-party waiting for him to leave the ranch they would be prepared for that same contingency. Better let them think him unready; then perhaps they would let him get the lead. And once he got it, luck would have to help him carry out his plan. He saddled the hired pony and rode away, leading the recovered animal.

Before he had gone a half-mile beyond the ranch buildings he saw that he had figured rightly. The floor of the Sulphur Springs valley did not hold so much as a bush by way of cover; and here, off to the left, his eyes fell on a group of horsemen. Evidently they had been watching him ever since he left the corrals and knew the poorness of his mount, for they were making no effort to overhaul him as yet.

But he realized that the gang must have graver business on hand than the recovery of the thoroughbred; they were not going to waste any too much time over this affair and he would not be allowed to travel far if they could help it. Just then a wagon outfit climbed out of a dry wash directly ahead of him and he saw how luck had given him his chance.

He rode on, leisurely closing in upon the train. Off there to the left the outlaws were keeping pace with him, but as yet they were making no attempt to lessen the distance between them. He came up with the last¹²⁷ wagon, turned off the road beside it, and had the clumsy covered vehicle between him and the rustlers. Then he dismounted.

The wagons kept on moving; now and again the teamsters glanced toward him curiously. He barely heeded them save to see that they made no sign to the now invisible outlaws. It took all the skill that he owned to keep both his horses walking while he unsaddled the one and threw the saddle upon the other. But at last the change was made and he flung himself upon the thoroughbred's back. Shouting to the nearest teamster to lead the abandoned pony back to Tombstone, he put spurs to his fresh mount and came out in the road ahead of the foremost span of leaders on a dead run.

There were six of the outlaws and they were less than half a mile away. Breckenbridge had been out of sight behind the wagons just a little too long to suit them and they were cutting in toward the road now at top speed.

From the beginning it was a stern chase and they had only one hope of winning. Nothing less swift than a bullet could ever catch that thoroughbred. They pulled up at once and began shooting. But although some of the slugs from their rifles came uncomfortably close none found its mark and Breckenbridge was fast drawing away from them. However, they were not the men to give up so long as there was any chance remaining, and they swung back into their saddles to “burn up the road” in his wake.

Now all hands settled down to make a long race of it, and it was not until he was climbing the first slopes toward South Pass in the Dragoon Mountains that Breckenbridge looked back for the last time and saw the shapes of those six horsemen diminishing in the distance as they jogged back toward the McLowery ranch.

So through the good-will of Curly Bill young Breckenbridge recovered the thoroughbred from the man who had stolen it and brought it to Tombstone without being obliged to reach for his own gun. And moreover there were no hard feelings about it when he rode back into no-man’s-land the next time. So far as Frank McLowery and the Clanton boys were concerned the incident was closed. The deputy had won out and that was all there was to it.

As a matter of fact only a month or so later a horse-thief from Lincoln County, New Mexico, came to grief at Galeville because he did not understand Breckenbridge’s status in the rustlers’ metropolis. This bad man from the Pecos had a pretty sorrel pony and the deputy, who was in the place on civil business, happened to notice the animal at the hitching-rack in front of the hotel.

“Say,” he said to its possessor, who was standing near by, “that’s a nice horse; where’d you get him?”

The remark was a careless one in a country where ponies often changed owners overnight, and the man from the Pecos was sensitive enough on the subject to resent the question from one who wore a star. He answered it by drawing his gun.

Breckenbridge, who was as dexterous with his left hand as with his right, reached down as the weapon came forth from its holster and gripped the stranger's wrist. He gave a sharp wrench and the revolver clattered down on the sidewalk. And then Curly Bill, who had witnessed the incident, stepped forward and ordered the visitor out of Galeyville.

"Yo'-all don't need to think," the desperado added, "that you can come here and make a gun-play on our deputy. We get along all right with him and I reckon we ain't going to stand for any cow-thieves from Lincoln County gettin' brash with him."

Something like two years had passed now since young Billy Breckenbridge first rode across the Dragoon Mountains into no-man's-land and, as the old-timers who had been watching him all this time well knew, things could not go on in this way forever. The show-down was bound to come. It came one day at the Chandler ranch and the old-timers got the answer to their question.

There were two young fellows by the name of Zwing Hunt and Billy Grounds who had been working at Philip Morse's sawmill over in the Chiracahua Mountains.

Somehow or other they had got mixed up with the stock-rustlers and the temptation to make easy money proved too strong for them. One evening they went over to the Contention mill and held up the place, killing the man in charge.

Johnny Behan was out of town at the time with several deputies after the Earps who had departed from Tombstone. The under-sheriff detailed Breckenbridge on the case and drafted a posse of three men to help him.

"No, sir," the former said when the young deputy remonstrated against the presence of these aides. "This ain't a case of talking John Ringo into coming over and putting up a bond. This here's murder and those lads are going to show fight."

Orders were orders; there was no use arguing further. The erstwhile diplomat made the best of a bad matter and rode away with his three companions. It was evening when they left Tombstone and the Chandler ranch lay several hours distant. Those who saw them leave the camp spread

the news. And now the old-timers settled down, certain that when Billy Breckenbridge returned they were going to know just what he was made of.

He came back the next evening, riding alongside a lumber-wagon. In those days the mining companies maintained a hospital at the edge of the town. The vehicle made one stop at this institution and unloaded three of its occupants. It made a second stop before the establishment of a local undertaker, where two bodies were removed. And then young Breckenbridge rode on alone to the court-house. Two outlaws and four men in the deputy sheriff's party makes six altogether. Out of the six he was the only one left on his feet.

"And the hull thing didn't last five minutes," said "Bull" Lewis, the driver of the wagon. "I was asleep in the ranch-house along with these two outlaws when some one knocked on the door. Right away I heard a shot in the next room and I busted out with my hands up and yelling that I was a nootral. Before I'd gone twenty yards Hunt and Grounds had killed two of the posse and by the time I was over that rise behind the house they'd laid out the other. And then I watched this little deputy get the two of them.

"He was out in the open and they were inside, and both of 'em were sure burnin' powder mighty fast. But he waited his chance and tore the top of Grounds's head off with a charge of buckshot when he stepped to the door to get a better shot. And a second or two later Zwing Hunt came out of the cabin, firing as he ran. The little fellow dropped him with a bullet from his forty-five before he'd come more 'n a half a dozen jumps."

But Breckenbridge was a long way from being jubilant when Johnny Behan and the under-sheriff congratulated him on his behavior.

"If you hadn't wished those three fellows on me I'd have brought both these boys back without firing a shot," he told the under-sheriff. "The blamed posse made such a noise coming up to the cabin that the two of 'em thought 't was a lynching-party and opened fire on us. Yes, sir. I could have talked them into coming—if I'd only been alone."

And so when it did finally come to the show-down all hands learned of just what material young Breckenbridge was made.

THE PASSING OF JOHN RINGO

There were all kinds of bad men in the days of the old West. John Ringo was one sort and Buckskin Frank was another. While this tale deals most with the former, still it concerns the two of them.

In its wild youth the town of Tombstone knew both men. To this day the old-timers who witnessed the swift march of events during the years 1879, 1880, and 1881 will tell you of their deeds. But things were happening fast when those deeds took place. There was, if one may be allowed to use a poetic figure, a good deal of powder-smoke floating in the air to obscure the vision. And so although no men were ever more just in passing judgment than these same old-timers, the story has its sardonic ending.

John Ringo was the big “He Wolf” among the outlaws, a man of quick intelligence who did not seem to care much whether he or the other fellow died. To him who wants the ornate trappings of the motion-picture bad man or the dialect which makes some desperadoes popular in fiction, Ringo would prove a disappointing figure as he showed up in southeastern Arizona.

For he wore no hair chaps, nor do those who saw him tell of a knotted colored handkerchief about his throat. Like most of those riders who drifted into the territory when other portions of the West had grown too hot for them, his costume was unobtrusive: light-colored jean breeches tucked into his boot-tops, a flannel shirt and the gray Stetson peculiar to the country west of the Pecos, a limp-brimmed hat with a high crown, which may be creased after the old “Southern Gentleman” fashion but was most often left with such dents as come by accident. Of hardware he carried his full share; sometimes two forty-five revolvers and a Winchester; but if he were in town the arms were as likely as not concealed.

It would take a second look to separate him from the herd. That second look would show you a fine, lean form whose every movement was catlike in its grace, a dark face whose expression was usually sullen, whose eyes were nearly always somber; slender hands and small feet. And his speech,

whenever you heard it, was sure to be comparatively free from the idioms of the region; the English was often more correct than otherwise. A man of parts, and he looked it; they all say that.

This was John Ringo. He had fought in one of those numerous cattle wars which raged throughout western Texas during the seventies. Before that period a certain California city had known him as the reckless son of a decent family.

And in passing note the fact that he still got letters from his people after he came to Tombstone with a price on his head. Which helps to explain that somber demeanor, the whisky which he drank—and the ending of his life's story.

Buckskin Frank fulfils the requirements of some traditions much better when it comes to externals. He wore leathern fringes on his shirt and breeches, and his sombrero was bedecked with much silver. His weapons were always in evidence; a pair of silver-mounted revolvers were the most noticeable among them.

Because he called himself a scout some men used the term in speaking of him. He did not ride with the outlaws, although he often vanished from Tombstone for considerable periods; in town he was always to be found in some gambling-house or dance-hall.

Of women there were many who fancied him. And he could shoot to kill—from in front if the occasion demanded it; from behind if the opportunity was given him. A handsome fellow, and he had a persuasive way with him.

Whisky got the best of him in his later years, but that was after the period with which this narrative has to deal; and when he drank, it was not because of any brooding. The past held no regrets for him; thus far he had managed to handle every situation to his own satisfaction.

These are the two men; and as for Tombstone, it was booming. The mines were paying tremendously; business was brisk twenty-four hours a day. An era of claim-jumping, faro-playing, dance-halls, the Bird-Cage, Opera House, Apache scares, stage hold-ups; and, of course, gun-fighting.

The Earps virtually ran the town government; they enforced the local laws against shooting up the place and so forth very much after the manner of Dodge City; and they were strong, resolute men. Buckskin Frank was on

good terms with their henchmen; he was, if the statements of the old-timers¹²⁵ are to be believed, anxious to remain in the good graces of these stern rulers.

John Ringo, on the other hand, was at outs with them; and soon after their advent into power he drifted away from Tombstone along with the other outlaws. To use the expression of the times, he was “short” in the mining town, which means that when he came there he had to be ready at all times to defend his life and liberty.

And now that you have seen the men and the town, the tale can go on; it is a mere recital of certain incidents which took place during the last year or two of John Ringo’s life; incidents which show the difference between his breed of bad man and the breed to which Buckskin Frank belonged. To the chronicler these incidents appeal for that very reason. The days of the old West strike one as being very much like the days of old knighthood; they were rude days when some men tried hard to live up to a code of chivalry and some men made themselves mighty by very foul means indeed. And while we may not always be sure that the names which have come down to us—from either of these wild eras—are those that should have been coupled with fame, still we can be certain of one thing: the chivalry existed in both periods.

According to the code in the Middle Ages the challenge and the single combat were recognized institutions; and they say that knights-errant used to go riding through the country seeking worthy opponents. And according to the cow-boy code in southeastern Arizona during the early eighties¹²⁶ among the outlaws, a champion must be ready to try conclusions in very much that same way on occasion.

It was one of those traditions which some men observed and some—wisely—ignored. This desperado John Ringo was among those who observed it; and one day, like poor old *Don Quixote*, he found himself trying to force conclusions with men whose ideas were more modern than his own, which led him—like Cervante’s lean hero—into a bad predicament and also brought him to a strange friendship.

The Earp brothers and their followers, as has been said, were ruling Tombstone, and the outlaws had fled into the country east of the Dragoon Mountains. But the outlaws did not fancy remaining out in the open

country; sometimes they came back to town in force and hung about the place for days; always they were hoping to return permanently. And always the Earps were looking to drive them out of the country for good and all.

Eventually the situation came to a climax in the great Earp-Clanton gunfight, and there was a long period when this battle was brewing. During this period whenever they came to town the desperadoes used to stay at the Grand Central Hotel; and Bob Hatch's saloon, where the Earp boys and their friends were accustomed to take their "morning's morning," was directly across the street. Things came to a pass where the noon hour would often find a group of outlaws on the sidewalk before the hotel and a number of the Earp faction in front of the saloon, both outfits heavily armed, the members of each glowering across the street at those of the other.

Now Wyatt Earp, Doc Holliday, and others of the law-and-order party had come here with big reputations from Dodge City, where they had taken part in more than one affair when the lead was flying. They had sustained those reputations by their deeds in Tombstone; they were champions—"He Wolves." And so one noontime when he was standing on the sidewalk among his fellow outlaws, John Ringo was seized with an idea.

He looked across the street at the members of the Earp party, who were regarding the desperadoes in ominous silence. The idea grew more powerful, until it owned him. He stepped down from the sidewalk's edge into the roadway, crossed it, and came to a halt within a few feet of his enemies. Addressing Wyatt Earp by name—so goes the story—

"This sort of thing," John Ringo said, "has been going on for a long time now. Pretty soon there's bound to be a big killing if it keeps up. Now I've got a proposition. You, or Doc Holliday if you'd rather have him, step into the street here with me, and the two of us will shoot it out, and, if you're game, why we'll do it holding the opposite corner of a handkerchief in our teeth. I give my word, my gang will stand by the result."

Wyatt Earp made no answer. What temptation that offer held to him one can judge only by the fact that he was a bold man who had a long record of large deeds to his credit. But also he was the recognized head of a movement for law and order, a movement which had already stopped indiscriminate street-shooting in Tombstone; just at this time he was being

groomed in certain quarters as a candidate for sheriff, and the banner of his party was emblazoned with the word Reform.

It is easy enough to see how John Ringo was behind the times when he made that proposition on Tombstone's main street. It is easy also to imagine his feelings when without a word by way of answer or acknowledgment the members of the Earp faction stood regarding him. He turned his back upon them and he recrossed the street, and when he had gained the opposite sidewalk they were gone within Bob Hatch's saloon.

Johnny Behan was sheriff then, politically an enemy of the Earps and politically friendly to the outlaws. He was sitting in his office with young William Breckenbridge, his diplomatic deputy, when some one brought word that John Ringo had made a gun-play and was holding down the main street with drawn revolvers.

"Go and fetch him in," the sheriff bade Breckenbridge.

The latter found the outlaw pacing up and down before the Grand Central Hotel after the fashion of the cow-boy who has shot up a saloon and driven all hands out of the place. The two had met months before when the deputy was out in the eastern part of the county collecting taxes with Curly Bill as his guide and protector.

"What's up?" the youthful officer demanded, and John Ringo recited his version of the affair.

"Well," the other told him when he had finished, "the sheriff wants to see you."

The desperado shrugged his shoulders, but went along quietly enough; bail was easy to arrange in those days, and this was not a serious matter.

In his office Johnny Behan heard the tale and frowned. There were times when his cow-boy constituents became a source of embarrassment to him; this was one of them.

"Guess you'll have to turn over those guns of yours," he bade the prisoner.

Ringo handed the revolvers to him, and he put them into a desk drawer. There followed several moments of awkward silence. At length Johnny Behan arose and started to leave the room.

“Going to lock me up?” Ringo asked. “I’d like to fix it to get bail, you know.”

“No charge against you,” the sheriff said in the doorway. “You can go back downtown whenever you want to.”

With which he passed out into the corridor and forgot all about the matter. In the office Ringo stood scowling at the deputy.

“That’s plain murder,” he said at length. “Before I get a block away from here without my guns those coyotes will kill me.”

Breckenbridge had been doing some thinking on his own account during the last few moments, and he realized the justice of this argument. But the law was the law, and the sheriff was boss. It was not his business to interfere. He looked Ringo in the eyes, got up from his chair, opened the desk drawer—and left the room. And when he came back the guns and their owner had departed.

In itself the incident wasn’t much to talk about. In those times all sorts of things were being done according to different standards from those which rule now. But it brought its consequences.

The days went by. In Tombstone politics seethed; the law-and-order party was making things hot for Johnny Behan, whose sympathies with the cow-boys gave him the support of the desperadoes, a support which in its turn brought the accusation that he was extending leniency to wanted men.

Over in the Sulphur Springs valley and the San Simon John Ringo nursed his grudge against the sheriff for having disarmed him when his guns were so sorely needed; he cherished that unpleasant memory while he directed the movements of Curly Bill and their followers, while he rode forth from Galeyville with them to raid the herds of border cow-men, or to ambush bands of Mexican smugglers, or to rob the stages.

And so gradually it became known among his fellows that their leader held a grievance against the sheriff, that he was biding his opportunity to play even with Johnny Behan for that blundering piece of thoughtlessness. John Ringo was the biggest man among them all, the brains of the whole crowd; they wanted to see in what manner he would settle the score. And finally the time came when he got his chance.

A man who rejoiced in the name of Kettle-Belly Johnson was the indirect means of bringing about this opportunity. He enters the story on a blistering afternoon in the little town of Galeyville.

It has been told in another of these tales how Galeyville was the bad men's metropolis, headquarters for all the rustlers and stage-robbers of Cochise County; how the place enjoyed a brisk prosperity through the enterprise of a wide-awake citizen who had established a cattle-buying business—and no questions asked. On the afternoon in question John Ringo was the only outlaw in the place; his followers were absent on some wild errand or other and he was putting in the time at a poker-game.

There were four men seated around the table in the dingy bar-room, silent as four owls, mirthless as high priests at a sacred rite. Observing the full ceremonials which dignify draw-poker, they let the chips and cards do all the talking—and made signs when they chose to pass.

It has been said that John Ringo's face was sullen and his eyes were somber; the depth of his unpleasant expression had grown this afternoon as the shabbiness of his luck increased. Or was it luck?

He sat, of course, facing the door, and Kettle-Belly Johnson occupied the opposite chair. On the two other players, one of whom was flanking John Ringo on each side, there is no need to waste words; they belonged to the same breed as the poetically rechristened Johnson, the breed that got its name from shaking dice against Mexicans out of tin horns.

It was no more than natural that the desperado should ask himself whether he was right in blaming fortune for the cards which he drew. There came a new deal and time to draw again.

"Two," John Ringo muttered.

Kettle-Belly Johnson held up a single finger; and when he had got his card, performed one of those prestidigital feats by which he made his living. And when this was accomplished—with the aid of a device known as a "hold-out"—his moist, plump fingers clutched a full house—jacks on kings. The betting went briskly to the bitter end.

John Ringo scowled down on the hand which beat his; pushed back his chair, fumbled briefly at his vest, and laid his gold watch on the table.

“Lend me a hundred,” he growled. “She’s worth a hundred and fifty.” But Kettle-Belly Johnson shook his head.

“Easy come,” said he, “easy go. Get out and rustle some more cows or hold up the stage again. We ain’t a-runnin’ no pawn-shop.”

John Ringo left the room without more words, and the three tin horns fell to cutting for low spade to while away the time. They had been at it just as long as it would take a man to go down to the corral, saddle his pony, and bring the animal up in front of the building, when the outlaw reëntered. His single-action Colt’s forty-five revolver was in his right hand; its muzzle regarded the trio at the table like a dark, baleful eye.

The bearer of the weapon uttered a single word, a word which is not found in any dictionary although it has come down from the time when the first Englishman took to the highway to seek his daily meat.

“Hanzup!”

They obeyed and the ensuing silence was broken by the pleasant chink of money as John Ringo’s left hand raked the winnings into his pocket. There was no pursuit as he rode away down Galeyville’s main street; but he spurred his pony hard, for self-righteousness was boiling within him and he had to find relief some way.

“Damn bunch of robbers!” he told the horse.

Ordinarily the incident would have closed then and there; but fate so willed it that Kettle-Belly Johnson came to Tombstone a few days later and voiced his complaint in Bob Hatch’s saloon, where he found himself suddenly surrounded by sympathizers. He did not know—and if he had he would not have cared one way or the other—that the new law-and-order party had grown to a point where it wanted to get action in the courts; that its members were looking for an opportunity to swear out a warrant against some of the bigger outlaws in order to “show up” Johnny Behan, who—so men said—was unwilling to arrest any of the cow-boy faction. The grand jury was in session; they got Kettle-Belly Johnson sober enough to face star-chamber inquisition and led him to the court-house in the morning.

So it came that young Billy Breckenbridge, whose business was serving warrants and not bothering over the whys and wherefores of their issuance, knocked at the door of John Ringo’s cabin in Galeyville a few days later;

and then, being a prudent man, stepped to one side where he would be beyond the zone of fire.

“Got a warrant for you,” he announced when the desperado had demanded to know who was there. “Highway robbery.”

There was a bit of parleying through the closed door and finally—

“Man by the name of Johnson is the complaining witness,” young Breckenbridge elucidated. “According to what I hear, the play came up along of a poker game.”

John Ringo swore lightly.

“Come in,” he bade the deputy. “I’ll get my clothes on in a minute.”

He laughed sourly as he was pulling on his boots some moments later.

“Looks as if the grand jury’s hard up for something to do,” he observed.

He rose and belted on his gun, a proceeding about which his custodian, being unburdened with any desire to burn powder over such hair-splitting technicalities as a man’s right to wear weapons on his way to jail, made no comment.

“We’ll go down the street,” the prisoner suggested as they were leaving the cabin, “and I’ll fix it up to get bail.”

But the accommodating cattle-buyer who arranged such matters for the bigger outlaws was out of town and would not be back until evening. Breckenbridge’s horse was jaded, and if he wanted to reach Tombstone in good time he should be setting forth at once.

“You go ahead,” John Ringo bade him. “I’ll catch up with you before you pass Sulphur Springs ranch.”

Those were queer days, and if you judge things from our twentieth-century point of view you will probably find yourself bewildered.

John Ringo was known to be a cattle-rustler, stage-robber, and—according to the law—a murderer. And Breckenbridge, whose duty it was to enforce the statutes, set out for the county seat alone on the strength of that promise. Nor was he in the least surprised when his prisoner, who had ridden all night to make good his word, overtook him in the middle of the valley.

Queer days indeed! And the threads of some men's lives were sadly tangled. Such desperadoes as Curly Bill were easy enough to read; just rough-and-tumble cow-boys who had taken to whisky and bad company. But behind the somber mask of John Ringo's face there lurked a hidden history; something was there which he did not choose to reveal to the rest of the world.

The mail had come to Galeyville after young Breckenbridge left. There is nothing more conducive to confidences than a long ride through a lonely country. And when these two were jogging across the wide, arid reaches of the Sulphur Springs Valley the outlaw pulled a letter from his pocket; the envelope was already broken. Evidently he had read its contents before; now he scanned them for a long time and his dark face was set. He thrust the paper back into its enclosure; then suddenly, as one who yields to impulse, reined his pony closer to his companion and held forth the envelope for him to read.

"Look at that writing," he said quietly.

The hand was unmistakably that of a woman of education.

"My sister," he added, and shoved the letter into his pocket.

They rode some distance in silence and then—

"And I'm here," John Ringo added in the same even voice. "She writes me regularly. Thinks I'm doing fine!"

He did not bring up the subject again; it was as if he had opened a curtain a little way and let it fall at once; but the deputy, who came from good people himself, had been able to see much during that brief glimpse into the outlaw's hidden life. And having seen those tangled threads he was able to understand certain matters all the better when the end came.

Now while Deputy Sheriff Breckenbridge and John Ringo were riding toward Tombstone things were brewing in that wild young mining camp. The law-and-order party was preparing to make a clean-up of the desperadoes.

And when the pair arrived the news went forth; the hour was late, but late hours meant little in those days of all-night gambling; a number of the leaders gathered in Bob Hatch's saloon and discussed the situation. It

looked promising, for Ringo was the brains of the bad men; with him in custody it should be easy to lay hands on Curly Bill, who was at the time over in the lawless town of Charleston on the San Pedro. They made their plans toward that end; and, just to make doubly sure, they arranged with the district attorney to see that Ringo should be kept in jail for at least twenty-four hours.

That was the situation when the pair arrived from no-man's-land; there was no chance of getting bail at this time of night. The outlaw slept behind the bars; and when the morning came he sent for the lawyer who was always retained by the stock-rustlers, a criminal attorney by the name of Goodrich.

Goodrich brought news that the law-and-order party were preparing an expedition to Charleston to round up Curly Bill. Knowing the habits of his burly aide, John Ringo was reasonably sure that the crusaders would find the latter the worse for whisky and bring him back a captive. His natural itching to depart from custody was aggravated by the feeling that his presence in the cow-town by the San Pedro was badly needed. He urged Goodrich to hurry to the bank and get the bail-money.

The conference took place in Johnny Behan's office, and after the lawyer's departure on this errand the outlaw remained there pacing the floor. Half an hour passed; a man had brought Ringo's pony from the O.K. corral and left it at the hitching-rack before the court-house. Everything was in readiness—except the cash. Finally Goodrich returned.

“All right,” he told the sheriff, who was seated at his desk. “I’ve got the bail here, Johnny. Everything’s arranged.”

And Johnny Behan, who was, if the truth be owned, a very easy-going peace officer indeed, bade his prisoner depart. He did not know—and Goodrich did not know—that on this occasion the bailing out of John Ringo was going to be something more than a mere formality.

So it came about that a number of people met with surprises this same morning. Included in these were a delegation from the law-and-order party who rode over to Charleston to gather in Curly Bill but got no further than the approach to the bridge which spanned the San Pedro River. A solitary figure at the other end of the structure made them draw rein. John Ringo's voice reached them from across the stream.

“Come on,” he called. “I’m waiting for you.”

Something had gone wrong, and when something goes wrong the wise general does well to investigate before continuing his advance. The posse deliberated briefly; and then turned back for Tombstone. But their astonishment at finding the leader of the desperadoes at large was as nothing compared to Johnny Behan’s bewilderment when he met the district judge in the court-house corridor some time near noon.

“I’ll be ready to take up the matter of that man Ringo’s bail in a few minutes,” Judge Stilwell said pleasantly.

The sheriff remained inarticulate for several seconds. Finally—

“Ringo!” he managed to gasp. “Why, he’s gone. I thought—”

Perfervid language followed. Johnny Behan had been a cow-boy in his time, and the court had—in his unofficial capacity—a rather large vocabulary of his own. In the end certain facts began to outline themselves through the sulphuric haze: the district attorney had offered objections to the proffered bail.

“I’ll take this matter up,” the judge told the stricken sheriff, “to-morrow morning, and I’ll hold you responsible for the appearance of the defendant in court at that time.”

The news flew fast, and when the posse returned from Charleston they found the town of Tombstone discussing Johnny Behan’s predicament. Being wise politicians, the leaders of the law-and-order party kept to themselves the information as to John Ringo’s whereabouts. That evening they called a meeting of their followers, and a second posse set forth through the darkness for Charleston.

There were some fifty-odd of them, well armed and enthusiastic. Their purpose was to bring the outlaw to the court-house the next morning. Thereby the reform movement should gain much prestige—and the sheriff lose standing.

But Charleston was full of stock-rustlers and bad men that night, and when the members of the law-and-order party rode into the place they found themselves surrounded by a half a hundred of the worst men in the Territory of Arizona. John Ringo had been looking for further trouble, and his forces

were so well disposed that the invaders had their choice between surrender and being massacred.

They yielded to necessity like wise men and gave over their arms to their captors, who forthwith took them to the nearest saloon and bought them many drinks. It was during this portion of the proceedings that Curly Bill, who had led the ambushing-party, learned whom the prisoners were seeking. He brought the news to John Ringo.

“So it’s me they’re after,” the outlaw said.

“And it looks,” said Curly Bill, “like Johnny Behan is in a mighty tight box, the way things has turned out.”

Knowing the grudge which his friend held against the sheriff, he was not surprised to see John Ringo’s face grow darker and the light in his eyes more devilish.

“I tell you what,” the latter bade him after some moments of thinking. “You keep those fellows here to-night. Don’t let one of them leave Charleston.”

And Curly Bill departed to see that the command was obeyed. They say that the celebration which attended the holding of the captives was one of the large events in the tumultuous history of the cow-town by the San Pedro, and those who witnessed it are unanimous in stating that the Tombstone contingent upheld the reputation of their camp when it came to whisky-drinking. It was late the next day before the last of them rode back through the foot-hills of the Mule Mountains to their homes. But all of this is apart from the story.

The point is that John Ringo saddled up that very night and journeyed to Tombstone, where he sought out young Billy Breckenbridge.

“Heard there was some trouble about my being turned loose,” he announced when he had roused the deputy from his slumbers, “and I didn’t know but what maybe you’d lose your job if Johnny Behan got turned out of office.”

Wherefore it came about that when court convened in the morning and the matter of John Ringo’s bail was brought up the prisoner was produced to the utter astonishment of all concerned—except himself and the man who had allowed him to recover his confiscated revolvers.

Within the hour John Ringo walked out of the court-house under bond to insure his appearance at the trial. And no one expected the case to come to anything. In short, the situation was unchanged, and the head men of the reform movement settled down to bide their opportunity of killing off the bigger desperadoes, which was apparently the only way of settling the issue.

So John Ringo went his way, a marked man, and many a trigger-finger itched when he appeared in Tombstone; many a bold spirit longed to take a shot at him. But the knowledge of his deadliness kept him from being made a target.

He went his way, and it was a bad way. Dark deeds piled up to fill the debit pages of his life's ledger.

If he was influenced by those letters, which came regularly to remind him of gentle womanhood disgraced by his wild career, it was only to make him drink harder. And the more he drank the blacker his mood became. Those who rode with him have said so. A bad man, there is no doubt about it; and big in his badness, which made it all the worse.

There came a blazing day in the late summer, one of those days when the Arizona sun flays the wide, arid valleys without surcease, when the naked rock on the mountain heights is cloaked in trembling heat-waves and the rattlesnakes seek the darkest crevices among the cliffs. Deputy Sheriff Breckenbridge on his way back to Tombstone from some errand in the eastern end of the county was riding through Middle Pass in the Dragoons.

As he came forth against the flaring sky-line at the summit he saw a rider coming toward him from the west. He turned to one side where the lay of the land gave him a vantage-point, loosened his revolver in its holster, and awaited the traveler's closer approach.

Some moments passed; the pony drew nearer, and the deputy withdrew the hand which was resting on his weapon's butt. His face relaxed.

"Hello there, John," he called, and Ringo rode up to him in silence. "Hot day," Breckenbridge announced cheerfully.

The desperado swore at the sun in the drawling monotone wherein your artist at profanity intones his curses when he means them. His face was a

good shade darker than usual; his eyes were satanic. He reached to his hip and brought forth a flask of whisky.

“Have a drink.” He uttered it rather as a demand than an offer.

The deputy took the bottle and made pretense of swallowing some of the lukewarm liquor. The outlaw laughed sourly, snatched it from him, and drained it.

“Got another quart,” he announced as he flung the empty flask against a boulder.

“Better hit it mighty light,” Breckenbridge advised. “The sun’s bad when you get down there in the valley.”

He waved his hand toward the wide flat lands which lay shimmering like an enormous lake a thousand feet below them. Ringo raised his somber face toward the blazing heavens and launched another volley of curses upon them before he rode away. And that was the last time young Breckenbridge saw him alive.

The thing which took place afterward no man beheld save John Ringo, and his lips were sealed for all time when others came upon him. But the desert holds tracks well, and the men of southeastern Arizona were able to read trails as you or I would read plain print. So they picked the details of that final chapter from the hot sands of the Sulphur Springs Valley as they are set down here.

Morning was drawing on toward noon when John Ringo’s pony bore him downward from the living granite pinnacles to the glaring plain. Noon was passing as he jogged onward across the Sulphur Springs Valley.

To this day, when ranchers have drawn floods of limpid water from the bowels of the earth, the place sees long periods whose heat is punishing. At that time the whole land was a desert; a flat floor, patched in spots by alkali deposits, girded round by steep-walled mountain ranges. Cacti grew there, and huge tufts of Spanish bayonets.

John Ringo’s pony jogged on and on; the fine dust rose from its hoofs, surrounding animal and rider like a moving wraith of fog, settling down upon their sweating skins in a whitish-gray film which stung like fire.

Before them the mirage wavered like an enormous, vague tapestry stirring in a breeze.

But of breeze there was none, nor was there any sign of water save that phantom of a lake—dead now for ages—which kept its distance always ahead. And the sun climbed higher; its scourgings grew ever fiercer.

Scourged also by thoughts and memories which he had never revealed to men—save only as he had hinted at them on that other afternoon to Breckenbridge—the bad man drank the lukewarm whisky as he rode. And the liquor did its work until when he had gone two hours from the foot of the pass he realized that it was overcoming him.

He drew rein, dismounted, and sought the shade of a clump of soto-bushes. But before he flung himself upon the baking sands he took off his boots and, tying their tops together, hung them over his saddle-horn. The pony he turned loose with the reins down cow-boy fashion. After which he yielded to the whisky and knew no more.

The sun was still glaring in the cloudless sky when he came back to his senses; and the torture of that thirst which comes after heavy drinking was upon him. He got to his feet. The pony had gone. Afterward the searcher's tracked the animal to the Sulphur Springs ranch, where it had come with the boots hanging to the saddle-horn.

John Ringo was alone, a speck in the middle of the shimmering plain, and there was no water for miles. He started walking eastward toward the pass which leads over into the San Simon. The cactus did its work; the alkali sands scalded his bleeding feet; he took off his shirt, tore it into strips and bound them round his ankles for footgear; and when the strips were cut through he used his undershirt, until finally he walked barefooted and the blood-drops showed beside his tracks.

Toward the end the same blindness which comes to thirst-maddened cattle seized upon him. When they found him he was within a stone's throw of water and the sound of the stream must have been in his ears, for his footprints showed where he had circled and zigzagged, striving to reach the spot whence that limpid murmuring came. Among the cartridges in his belt were two whose lead was deeply dented by his teeth as he chewed upon them in the vain hope of moistening his lips.

He was seated on a boulder between two dwarf live-oaks and his big forty-five revolver lay beside him, with one empty shell. The bullet-hole was fairly between his eyes, all powder-marked.

And so they knew just how he died; and young Billy Breckenbridge, who came over into no-man's-land a day or two later, was able to piece out the story by backtracking along that trail through the sands; able to read those signs from the foot of the Dragoons on across the valley; and able also⁴⁵⁵—because he had seen that letter—to realize the torture of memories which had come along with the torture of thirst to goad John Ringo on to self-destruction.

In this manner it came about that the outlaws of Cochise County lost their leader; and now that the man of brains was gone it became possible for events to shape up, as they did soon afterward, toward the big Earp-Clanton gun-fight.

The old-timers are unanimous in saying that had John Ringo been alive that battle wherein the leaders of the Earp faction slew several of the biggest desperadoes would never have taken place as it did. The forces would have been differently disposed than they were on that bloody morning when Billy Clanton and the McLowery boys died in Tombstone's street by the O.K. corral; the chances are the victory would have gone the other way. To this day they tell how Ringo's passing was the beginning of the end; how Curly Bill vanished soon afterward; how the stage-robbers and rustlers became disorganized and were no longer any match for the law-and-order faction.

And when the old-timers, who witnessed these wild doings, recount the history of the wind-up, laying the cause as has been stated, they give the credit to the man whom they believe entitled to it; which brings us back to Buckskin Frank.

On that blazing day when John Ringo rode out into no-man's-land Buckskin Frank was away from Tombstone. And this time there were more urgent reasons for his departure from the camp than the mere seeking after plunder. He was, as has been said, a bad man; a bad man of the type who can ⁴⁵⁶kill from in front but relishes best that opportunity which offers the back of his enemy as a target.

During the long period while the outlaws were swaggering down Tombstone's streets, defying the leaders of the law-and-order movement, the two-gun man managed to cling to the good graces of the Earp faction; just as in these days you may have seen a crooked ward-heeler hanging to the skirts of a good-government crusade. Nobody loved him, but there were those who thought he might be useful. He traded on their names and—when there was dirty business to be done, as there always has been since politics began—he was there to do it. Also he was right there to ask favors in return.

So it came that the knowledge of his killings spread abroad; men told how he had slain one victim who was drinking in a dance-hall when the bullet entered his back; how another had fallen, shot from behind in a dark alley. But prosecutions never followed, and the buckskin-clad figure with its bad, handsome face became a sinister object in Tombstone's streets.

However, a man can not keep up this sort of thing forever without getting an ill name, and the time came when Buckskin Frank was beginning to be a source of embarrassment to those who had thus far tolerated him. On top of which his prestige was suddenly threatened.

There was, in the camp, a fellow by the name of Nigger Jim, one of those black negroes whose blood is undiluted by the white man's; a former slave; more than six feet tall and—to this very day—as straight as a ramrod. He had fought Apaches and on more than one occasion held his own against outlaws; and the early settlers, of whom he was one, treated him as an equal.

This Nigger Jim had staked a silver claim over Contention way, and one day Buckskin Frank jumped the property. The owner heard that the bad man had put up new location notices in place of his own and hastened to the place to investigate. He found Frank camped on the ground, well armed and ready to maintain possession.

What followed does not amount to much when it comes to action with which to adorn a tale.

Nigger Jim walked up to the bad man, his hand on his revolver-butt. The luck which sometimes looks out for the righteous party in a quarrel was with him to the extent of seeing to it that the meeting took place out in the open where there was no chance for ambush.

The break was even. And the black man was determined to see the issue through, willing to abide by whatever consequences might follow. Moreover he had earned his reputation with a six-shooter. So, as has been said, he came walking up to Buckskin Frank—from in front.

And Buckskin Frank allowed him to approach until the two stood facing each other out there among the rocks and Spanish bayonets. Then the two-gun man spoke, holding forth his right hand.

“I heard some parties were jumping your claim, Jim,” said he, “and, being near, I thought I’d come over and look out for you.”

“Thanky,” said Nigger Jim, but made no offer to take the extended hand; nor did he turn his back upon the bad man, who evidently did not think the claim worth the hazards of an honest gun-fight, for he left soon afterward.

In Tombstone Nigger Jim kept silent regarding the incident, but the news leaked out within a week or two when Buckskin Frank tried to slay the black man from behind and was prevented by a woman who threw her arms over him and held him until the prospective victim turned his head and took in the situation. With the spread of the story Frank saw that Tombstone was no place for him at present and he left the camp. Whereby it happened that he was over in the San Simon on that hot day when John Ringo came across the Dragoon Mountains. And on the morning when the body was discovered he was riding through the pass on some dubious errand or other.

News traveled slowly in those days. Frequently it came to its destination sadly garbled. On this occasion young Billy Breckenbridge was the only man who brought the facts back to Tombstone; and he arrived there long after Buckskin Frank.

For the two-gun man had seen his opportunity to make men forget that incident wherein he had figured so poorly against Nigger Jim, and had spurred his pony all the way to the county seat, where he told his story—how he had seen the desperado sitting under the dwarf live-oaks, had stalked him as a man stalks big game, and shot him through the head. And just to give his tale versimilitude he said he had done the killing from behind.

The times were brisk; one shooting came so fast on the heels of its predecessor that every affair in its turn swiftly passed from public attention.

By the time that Deputy Sheriff Breckenbridge arrived with the facts people were turning their minds to the big Benson stage hold-up. And so Buckskin Frank's story lived, and to this day in speaking of that bad man the old-timers give him grudging credit for having slain the big "He Wolf."

JOHN SLAUGHTER'S WAY

It was springtime in southwestern Texas and John Slaughter was gathering a great herd near the mouth of Devil's River for the long drive northward over the Pecos trail. Thousands of cattle were moving slowly in a great mass, obliterating miles of the landscape, trampling out clouds of dust which rose into the blue sky; the constant bellowing came down the wind as a deep, pulsating moan which was audible for miles.

The Man from Bitter Creek reined in his horse and turned in the saddle to look back upon that scene. He was a small man with hard, quick eyes; they grew harder as they rested on that wealth of beeves.

In the wild country farther up the Pecos the Man from Bitter Creek was known by the name of Gallagher. Among the riders who roved over that Land Beyond the Law, taking their toll from the north-going herds as gray wolves take it under cover of the night, he passed as the big "He Wolf," the leader of the pack. Wyoming's sage-brush hills gave sepulture to eleven of his dead, and since he had fled hither he had added two graves to the boot-hill cemeteries of the Southwest.

Now as he gazed over John Slaughter's cattle, he promised himself that when they came on into the region where he maintained his supremacy, he would seize them and, at the same time, increase his grim list of victims to fourteen.

It was an era in some respects very much like the feudal days of Europe¹⁶¹, a time of champions and challenges and deeds of arms, a period when strong men took definite stands for right or wrong and were ready at all times to defend those positions with their lives. The Man from Bitter Creek had received John Slaughter's gage within the hour. He had dismounted from his pony at the cattle-buyer's camp, attracted by the spectacle of that enormous herd destined to pass through the country where he and his companions held sway, and he had hung about the place to see what he could see.

He noted with satisfaction that the cattle were sleek and fat for this time of the year; and the satisfaction grew as he peered through the dust-clouds at the riders who were handling them, for every one of the wiry ponies that passed him carried a swarthy vaquero—and half a dozen of those Mexicans would not be a match for one of the hard-eyed rustlers who were waiting along the upper Pecos in that spring of 1876. Just as he was congratulating himself on such easy pickings the cattle-buyer noticed him.

John Slaughter was in his early thirties but his lips had settled into an unrelaxing line, and his eyes had grown narrow from the habit of the long sun-smitten trails. He was black-bearded, barely of middle stature, a parsimonious man when it came to using words. When he was a boy fighting under the banner of the Lost Cause he sickened, and his colonel sent him home, where he did his recuperating as a lieutenant of the Texas rangers fighting Comanche Indians and border outlaws.

Then he drove cattle into Kansas over the Chisholm and Western trails and got further seasoning in warfare against marauders, both red and white. To maintain his rights and hold his property against armed assault had become part of his every-day life; guardedness was a habit like those narrowed eyes. And when he recognized the Man from Bitter Creek, whose reputation he well knew, he lost no time in confronting him.

So they faced each other, two veteran paladins who had been riding under hostile banners ever since they first bore arms; and John Slaughter delivered his ultimatum in three syllables.

“Hit the trail,” he said, and clamped his lips into a tight line as if he begrudged wasting that many words.

His eyes had become two dark slits.

It was a case of leave or fight and the Man from Bitter Creek had never allowed such a challenge to go unanswered by his gun. But during the moment while he and John Slaughter stood looking into each other’s eyes he reflected swiftly, and it occurred to him that it would be wise to postpone this killing until the cattle-buyer had brought the herd on into the upper country where, without their employer, the Mexican vaqueros would be of no more consequence than so many sheep.

That was an inspiration: thousands of cattle for his own, where he had hoped to steal a few hundred at the very outside. He felt that he could well afford to mount his pony and ride away in silence. Now as he settled himself in his saddle after that last look backward, his heart was light with the thought of the wealth which was to come to him within the next two months. He urged the pony forward at a gallop toward the Land Beyond the Law.

The days went by, and late springtime found the Man from Bitter Creek in the upper river country which lies just west of the great Llano Estacado. Among those lonely hills the badness of the whole frontier had crystallized that year. Outlaw and murderer, renegade, rustler, and common horse-thief—all for whom the eastern trails had been growing too hot—had ridden into this haven beyond the range of the boldest sheriff until even the vigilance committee could not function here for the simple reason that there were too many to adorn the ropes and too few to pull them.

The ranchers of Lincoln County were starting in business, and the temptation to increase one's herds by means of rope and running-iron—a temptation which was always strong on the frontier—was augmented among some by a wholesome regard for their own lives and property: better to give shelter to outlaws and buy stolen cows for a dollar or two a head, than to defend your own stock against an overwhelming force of dead shots. There were others—and these included several of the bigger cow-men—who held that this was their territory and, deeming all outsiders interlopers, levied such toll of plunder on them as the old feudal barons levied on travelers by the Rhine in medieval times.

That was the way they reasoned; and the rustlers had easy pickings, stampeding range cattle across the bedding-grounds of the trail herds, gathering unto themselves the strays, disposing of their loot right on the spot. They were taking full advantage of the opportunity, and the Man from Bitter Creek was getting his share of the spoils.

But all of this struck Gallagher as petty business now; he was waiting impatiently for John Slaughter's herd. At Chisum's ranch, where he and a number of his companions had enforced their presence as unbidden guests since the passing of the spring, he proclaimed his plan openly after the manner of his breed; and he even went so far as to exhibit a forged power of

attorney by virtue of which he intended selling the beeves in the Northern market, after he had killed their owner and driven off the Mexicans.

“I’ll lay for him up Fort Sumner way,” he told his fellow-wolves, nor did he take the trouble to lower his voice because he saw several cow-boys from neighboring outfits among his auditors. It was a tradition among those who lived by the forty-five thus to brag and then—make good. And it was a firmly established habit in Lincoln County to mind your own business; so the project, while it became generally known, created no excitement.

The Man from Bitter Creek went up the river to the neighborhood of Fort Sumner when John Slaughter’s herd drew near the Chisum ranch. He made his camp and bided the arrival of the cattle; but that arrival did not materialize. He was beginning to wonder what could have delayed them, for the fords were good and this particular section was one where no drover cared to linger. And while he was wondering a rider came to him with tidings that brought oaths of astonishment to his lips. John Slaughter had taken his herd off the trail and made camp at the Chisum ranch. 165

Now every one in the country knew that the Man from Bitter Creek was holding down the Chisum place that season, and the action was nothing more nor less than a direct challenge. It did not matter whether sublime ignorance or sublime daring prompted it; it was defiance in either case. There was only one thing for Gallagher to do—get the killing over in quick time. Moreover he must attend to the affair by himself—for just as surely as he took others to help, his prestige was going to be lowered. So he saddled up at once and rode back to Chisum’s with a double-barreled shotgun across his lap and two single-action forty-five revolvers at his hips.

He was an old hand at ambush and so he took no chances when he drew near the ranch but reconnoitered a bit from a convenient eminence. The house stood on the summit of a knoll; the land sloped away before it to the river, bare of shrubs or trees. Those of the Mexicans who were not riding herd were down among the cottonwoods by the stream, busy over some washing. In the middle of the open slope, two hundred yards or so from the ranch buildings and a good quarter of a mile from the nearest vaqueros, a solitary figure showed. It was the cattleman. No chance for ambush here. The Man from Bitter Creek spurred his pony to a dead run and came on blithely to shoot his way to wealth.

John Slaughter watched him approaching and waited until he was within easy range. Whereat he picked up a forty-four caliber rifle and shot his horse from under him.

Pony and rider crashed down together in a thick cloud of dust. The Man from Bitter Creek sprang to his feet and the flame of his revolver made a bright orange streak in the gray-white haze. He left his shotgun where it had fallen; the distance was too great for it.

As a matter of fact it was over-long range for a Colt forty-five; and now, as he came on seeking to close in, it occurred to Gallagher that his prospective victim had used excellent judgment in selecting a weapon with reference to this battleground. Evidently he was engaged with one who knew some things about the deadly game himself.

He took good care to keep weaving about from side to side during his advance, in order that the bead of that Winchester might find no resting-place with his body outlined before it. And he kept his revolvers busy throwing lead. One bullet was all it needed to do the work and he was trying hard to put one into the proper place, using all the skill he had attained in long practice under fire, when a shot from John Slaughter's rifle broke his arm. The Texan was firing slowly, lining his sights carefully every time before he pressed the trigger. The Man from Bitter Creek was darting to and fro; his revolver bullets were raising little clouds of dust about the cattleman. He was nearing the area wherein the forty-five revolver was more deadly than the clumsier rifle, when John Slaughter shot him through the body.

But he was made of tough fiber and the extreme shock that would leave some men stunned and prostrate only made him stagger a little. His revolver was spitting an intermittent stream of fire and it continued this after a second slug through his lungs had forced him to his knees. He sank down fighting and got his third fatal wound before the cow-boys carried him up to the ranch-house to die. There, after the manner of many another wicked son of the border, he talked the matter over dispassionately with his slayer and in the final moment when death was creeping over him he alluded lightly to his own misdeeds.

"Anyhow I needed killing twenty years ago," he said.

No one mourned the passing of the Man from Bitter Creek; the members of the pack who hunt the closest to the big he wolf are always the gladdest to see him fall. Nor was there any sorrowing when John Slaughter departed for the north. On the contrary both outlaws and cow-men watched the dust of his herds melting into the sky with a feeling of relief.

The outlaws continued as the weeks went by to speak his name with the hard-eyed respect due one whose death would bring great glory on his slayer; the cow-men cherished his memory more gratefully because hundreds of cattle bearing his road-brand were grazing on their ranges. All hands were more than willing to regard the incident as closed—all save John Slaughter.

That was not his way. And in the season of the autumn round-up when the ranchmen of Lincoln County were driving their cattle down out of the breaks into the valley, when their herds were making great crawling patches of brown against the gray of the surrounding landscape, the black-bearded Texan came riding back out of the north. He visited every outfit and greeted the owner or the foreman with the same words in every case.

“I’ve come to cut your herd for my brand.”

That was the law of the cattle-trails; every man had the right to seek out his strays in the country through which he had passed. But it was not the custom along the Pecos. In that Land Beyond the Law the rule of might transcended any rule of action printed in the statute-books. And the new possessors did not fancy giving up the beeves which had been fattening on their ranges during all these weeks. In those lonely hills John Slaughter made a lonely figure, standing on his rights.

But those who gathered around him when he made the declaration always noticed that he had his right hand resting on his pistol-butt and the memory of what had taken place at Chisum’s ranch was still fresh in every mind. So they allowed his vaqueros to ride into their herds and in silence they watched them drive out the animals which bore his brand. Sometimes the affair came to an issue at this point.

Chisum, who was an old-timer in the country and had fought Comanches all along the river before others had dared to drive up the trail, produced a bill

of sale for sixty rebranded cattle which the Texan's vaqueros had cut out. John Slaughter allowed his tight lips to relax in a grim smile.

"You bought 'em all right—but too cheap," he said, and ordered his foreman to take them away.

Chisum stormed a bit, but that was as far as it went. And John Slaughter rode off behind his vaqueros without so much as looking back.

At Underwood's there was trouble. The cattle-buyer had recovered 110 steers from a bunch of 160, and when Underwood heard about it that evening he stated, in plain and profane terms, that he would kill John Slaughter unless those beeves were turned back to him. He had a reputation as a dead shot and he took two friends, who were known as good gunmen, along with him. They set forth for the Texan's camp. All three were armed with rifles beside their six-shooters.

But John Slaughter saw them coming, for he was keeping his eyes open for visitors these days, and dismounted on the opposite side of his pony. He received them with his Winchester leveled across his saddle and he answered their hail without lifting his eyes from the sights.

"Where's Underwood?" he demanded.

The cow-man announced his identity; it took more than the muzzle of a rifle to silence him.

"I bought those cattle and I paid for them," he shouted.

"And I'll pay you," Slaughter proclaimed across his sights, "just as sure as you try to take them away."

This was about all there was to the debate. The Texan was never strong when it came to conversation and the other party seemed to realize that further words would merely amount to so much small talk under the circumstances. It was a show-down—shoot or ride away. And the muzzle of that rifle had an unpleasant way of following any one of the trio who made a move in the saddle. They were men of parts, seasoned fighters in a fighting land, but they were men of sense. They rode away.

Some miles farther down the river John Slaughter was biding the arrival of two half-breeds and a pair of rustlers who had announced their intention to get him, when a vaquero whom he had summoned to help him receive the

guests showed symptoms of reluctance. While the vaquero was talking the invaders came into view, riding fast.

“Fight or hit the road,” John Slaughter bade his swarthy aide.

The latter announced his choice in Spanish; and the cattle-buyer paid him off with one hand while he pulled his rifle from its sheath with the other. The discharged vaquero did not wait to gather his scanty personal possessions and started down the road as fast as his legs could take him, but before he was out of sight his former employer had fortified himself behind his pony and brought the rustlers to a stand.

A cattleman by the name of Richardson tried swearing out a warrant as a means of recovering the beeves which John Slaughter cut out of his herds, but the deputy returned with the paper unserved.

“He told me to keep it in my pocket,” the officer explained. “Said I couldn’t serve it.”

Richardson met the cattle-buyer riding to his ranch the next day, having heard in the meantime some stories of what had taken place farther up the river.

“I’ve made up my mind to withdraw that complaint,” the ranchman said. “I saw a chance to buy cheap cattle and I guess I got off wrong.”

So John Slaughter rode on southward taking with him such of his cattle¹⁷⁴ as he could find, and men who boasted that they would kill him before nightfall came back to their companions in the evening, glad that they were there to tell the tales of their defeats. Finally he vanished down in Texas with his vaqueros and the salvaged herd.

When he had come up the river that spring one man was seeking his life; now he left behind him a full score who were as eager to slay him as the Man from Bitter Creek had been. But the outlaws of Lincoln County did not see him again for three years.

The next spring he began breaking trail to a new market through a country where others did not dare to drive their herds. The market was southeastern Arizona, on whose ranges the grass grew belly-deep; its stockmen, who were beginning operations in 1877, were in sore need of cattle. But the interval between the Rio Grande and these virgin pastures was a savage land; Victorio's bands of turbaned Apache warriors lurked among its shadowed purple mountains; there were long stretches of blistering desert dotted with the skeletons of men and animals who had died of thirst.

John Slaughter brought his first herd west of the Pecos with the coming of the grass, and his cow-boys lined them out on this forbidding route. They crossed wide reaches of sand-dunes and alkali flats—ninety miles was the length of one of those dry drives—where they never saw a water-hole for days, until the cattle went blind from thirst and sun-glare and wandered aimlessly over the baked earth lolling their tongues, moaning for drink, ignoring the red-eyed riders who spurred their famished ponies through the stifling dust-cloud and sought by shouts and flaming pistols to hold them to the proper course.

The Apaches watched them coming from the heights and crept down to ambush them, but John Slaughter had learned Indian-fighting while he was still in his teens until he knew its tricks as well as the savages themselves; and he led his cow-boys out against them, picking his own ground, swooping down on them from vantage-points, routing them.

The herd came on into the long thin valleys which reach like fingers from northern Mexico to the Gila River. On the San Pedro the cow-boys turned

them southward and the outfit made its last camp near where the town of Hereford stands to-day.

Here the Texan established his home ranch, for he had made up his mind to forsake the valley of the Rio Grande for this new country; and hither now, over the trail which he had broken, his men drove other herds; he sold them to the cow-men of southeastern Arizona as fast as they came in. From now on he devoted himself to stocking the ranges of the Santa Cruz, the San Pedro, the Sulphur Springs, and the San Simon, turning a tawny wilderness into a pastoral commonwealth.

For he brought more than Texas cattle into this land which had heretofore been the hunting-ground of Apaches, the wild refuge of white renegades more savage than the Indians. Where he came he took with him the law. It was his way—the way he had taken on the Pecos and he kept it now—to stand for his own rights, to fight for them if need be, until he established them; thus he maintained a rule of action, a rule that accorded with the definition of the old English jurist, “prescribing what is right and prohibiting what is wrong.”

During those days he rode on far journeys, eastward to the Rio Grande, northward to the country where the land breaks toward the gorges of the Colorado; and because a cattle-buyer was always a marked man, carrying large sums of money with him, there were many who sought his life. But these he slew or drove away.

There came a time when the demand for stock was so heavy that he looked about him for a new point of supply and saw Mexico. Troops of bandits rode through the southern republic, gathering tribute where they willed. He loaded down pack-mules with dobie dollars, led his cow-boys down across the boundary, played hide and seek with bands of swarthy murderers in the mountains, and battled with them at the desert water-holes.

His fame spread until forty-five guerrillas came riding up from Sinaloa to gain wealth and glory by murdering his little company. They found John Slaughter and two cow-boys encamped in a hamlet down beyond Moctezuma with the nucleus of a herd which they were gathering. A sharp-eyed scout reported two pack-mules, their aparejos bulging with dobie dollars, in the train. Immediately thereafter the Mexicans whom the drover

had employed as vaqueros and guides deserted him; the people of the hamlet closed their houses against the trio of gringos.

The bandits watched their prospective victims going from door to door, seeking four walls to shelter them against attack, and laughed. That was fine sport to their way of thinking; they held off, just as a cat holds off from a cornered mouse; there was plenty of time for the killing, no use of hurrying.

The shadows lengthened between the little adobe buildings; dusk came on. They had a final round of drinks in a mescal groggery, swung into their saddles, and went jingling down the street to enjoy the massacre.

Bad news travels fast. The tidings sped northward like a stray horse running home. One day a rider came to the ranch on the San Pedro with the story: how John Slaughter was last seen alive in the dismal hamlet at the foot of the Sierra Madre, abandoned by his Mexicans, with two cow-boys as his only companions, and half a hundred well-armed bandits on their way to murder him. A grim tale for the ears of a woman who was waiting word from Mexico.

A woman heard it out—John Slaughter's young bride. He had brought her to the ranch-house a few months before and in these first days of her happiness, a happiness made the more poignant by those deep anxieties which the brave-souled women of the frontier had to bear, she listened to the announcement which abiding dread had foreshadowed during many a lonely night. When the rider had departed she ordered a team harnessed to the buckboard and set forth for Mexico within the hour.

It was growing late when she passed the customhouse; they had no confirmation of the rumor for her there, nor contradiction either; the best they could do was to try to hearten her and to advise her to wait. But she shook her head at the advice and drove on southward in the darkness. She was alone. Blackness hid the land before her; save for the drumming of the hoofs and the scrape of the wheels in the rough roadway there was no sound. The wilderness remained silent, invisible, offering no sign of what tragedy it held for her.

The night passed; gray dawn came; the sky flamed above the ragged crests of the Sierra Madre; the sun climbed past the mountain wall; morning grew on toward noon. Far to the south—so tenuous at first that it barely showed

against the clear air, now thickening until it was unmistakable at last—a gray-brown dust column was climbing into the cloudless sky. It came on toward her as she urged on the jaded team, the signal of an advancing herd.

She strained her eyes and saw the thin, undulating line beneath it; the sun gleamed on the tossing horns of the cattle, their lowing sounded faint with distance, growing into a deep pulsating moan. She distinguished the dots of horsemen in the van; and now one rode on swiftly before the moving mass. She recognized her husband from afar.

John Slaughter had seized his opportunity while the bandits were drinking to their own good luck and his death in the mescal shop. He and John Roberts, his foreman, had taken the treasure-laden mules up a steep-walled cañon five miles away. When the murderers followed the hot trail they found themselves, with the coming of darkness, in the narrowest part of the defile, so neatly ambushed that they wheeled their horses and rode down the gorge in full flight before the fight had fairly begun.

John Slaughter's wife was a brave woman. She rode beside him now on many an expedition; into the sand-hills of southwestern New Mexico, and down across the border into northern Sonora. She saw the smoking remnants of wagon-trains beside the road, the bodies of Apaches' victims sprawled among the ruins. She looked upon the unutterably lonely crosses which marked the graves of travelers where Victorio's turbaned warriors had traveled before her into Mexico. She slept beside her husband where the desert night wind whispered of lurking enemies; and watched enshadowed soap-weeds beyond the ring of firelight taking on the semblance of creeping savages.

He beheld her drinking deeply from the cup of dread which was the bitter portion of the strong-hearted women of the frontier. And when he journeyed away without her he had for company the constant knowledge of what other men had found on return to their ravaged homes—what might be awaiting him when he came back. And so he enlarged the scope of his warfare, which heretofore had been confined to the defensive; he began a grim campaign to keep the Apaches out of his portion of the San Pedro valley for all time.

He led his own war-parties out to hunt down every roving band who passed through the country. He used their own science of reading trails to track

them to their camping-places; and their own wiles to steal upon them while they rested. He improved on their methods by making his raids during the darkness when their superstitions made them afraid to go abroad.

One midnight he was deploying a company of Mexicans about the mesquite-thicket which sheltered a band of warriors. As he was about to give the whispered order to close in, the unknown dangers which awaited them within the blackness became too much for his followers. They balked, then began to fall back. He drew his forty-five.

“First man that shows another sign of hanging back, I’ll kill him,” he said in Spanish, and drove them before him to the charge.

Gradually the Apaches began changing their warpaths into Mexico, and as they swung away from his ranges John Slaughter increased the radius of his raids until he and his cow-boys rode clear over the summits of the passes in the Sierra Madre which lead eastward into Chihuahua.

With nine seasoned fighters at his heels he attacked a war-party in the heights of the range on the dawn of a summer morning; and when the Indians fled before the rifle-fire of the attackers—scurrying up into the naked granite pinnacles like frightened quail—they left a baby behind them. The mother had dropped it or missed it in her panic, and the little thing lay whimpering in the bear-grass.

John Slaughter heard it and stopped shooting long enough to pick it up. With the bullets of her people buzzing around his ears he carried the brown atom down the mountain-side and took her home on his saddle to his wife.

That was one of his last expeditions, for his name had become a byword among the tribes, and Geronimo himself gave instructions to his people to leave John Slaughter’s herds inviolate, to avoid his range in traveling. With this degree of peace ensured, the cow-man had bought an old Spanish grant not far from where the town of Douglas stands to-day and was settling down in the security for which he had been fighting, when the Tombstone rush brought the bad men from all over the West into the San Pedro and Sulphur Springs valleys; and with them came the outlaws of the Pecos who had been waiting to kill him during these three years.

In the wild cow-town of Charleston where the lights turned pale under the hot flush of every dawn the desperadoes from the Pecos learned how John

Slaughter had established himself before them in this new land; how his cow-boys patrolled the range which he still held on the San Pedro and the new range farther to the east, guarding his herds by force of arms; and how the silent Texan had already declared war on the whole incoming tribe of cattle-thieves by driving Ike and Billy Clanton from his old ranch at revolver's point, bidding them never to show their faces there again.

They heard these things in the long adobe dance-halls while rouge-bedizened women went whirling by in the arms of bold-eyed partners wearing revolvers on their hips. From stage-robber, stock-rustler, horse-thief, and the cold-faced two-gun man who sold his deadly talents to the highest bidder, the stories came to them. And then, to the beat of the piano and the cornet's throbbing blare, the bad men of the Pecos told of the passing of the Man from Bitter Creek, and how his slayer came back down the river recovering his stolen cattle in the autumn.

Now another champion had risen among the bad men of the Pecos since the day of Gallagher, a burly, headstrong expert with the forty-five, known by the name of "Curly Bill." Already he had shot his way to supremacy over the other "He Wolves" who had flocked into the new country; he had slain Tombstone's city marshal and defied the Earps when they came into power in the booming mining camp.

When it came to a question of single combat he was acknowledged champion among those who lived by what toll they could exact at the muzzles of their deadly weapons; when it came to warfare he was the logical leader. And so, when John Slaughter's name was spoken in Charleston's dance-halls, the eyes of his followers were turned on him. He saw those glances and he read the unspoken question which they conveyed; he met it with a laugh.

"I'll go and get that fellow," he proclaimed. "I'll kill him and I'll fetch his herd in to Charleston myself."

He started forth to make good his boast, and twenty-five hard-eyed followers went riding at his heels. It was a wild project even in that wild era and Curly Bill deemed it wise to do his massacring down in Mexico, where it was every man for himself and coroner's juries were not known. He took his company across the boundary and lay in wait for John Slaughter on a mesa overlooking a little valley, down which the herd must pass.

Mesquite-thickets gave the outlaws good cover; the slopes below them were bare brush; the valley's floor was open ground. They bided here and watched the country to the south. The dust column showed one cloudless morning and they saw the undulating line of cattle reveal itself beneath the gray-brown haze. The herd came on down the valley, with dust-stained riders speeding back and forth along its flanks, turning back rebellious cows, urging the main body forward. Curly Bill spoke the word of command and the twenty-five bad men rode forth from their hiding-place.

The sun gleamed on their rifle barrels as they spurred their ponies down the open slope. They rode deep in their saddles, for the ground was broken with many little gullies and the horses were going at a headlong pace. They drew away from the shelter of the mesquite and descended toward the valley bed. Some one heard a rifle bullet whining over his head. The man glanced around as the sharp report followed the leaden slug; and now every face was turned to the rear. Twelve cow-boys were following John Slaughter keeping their ponies to a dead run along the heights which Curly Bill and his band had so blithely forsaken.

It was a custom as old as Indian-fighting; this bringing on of the main force over the high ground whence they could guard against surprise and hold the advantage over luring enemies. By its result the ambuscaders were ambushed, riding headlong into a trap.

It was a simple situation, apparent to the dullest mind. Who lingered on the low ground would never steal cattle again. The outlaws wheeled their ponies to a man; and now as they raced back up the hill they saw the cow-boys coming onward at a pace which threatened to cut them off from the shelter of the mesquite. Then panic seized them and it held them until the last cow-thief had spurred his sweating horse into the thickets. By the time Curly Bill had re-gathered his scattered forces the herd was nearly out of sight.

He did not seek renewal of the attack. He let it go at that. And when he came to Charleston he announced that so far as he was concerned the incident was closed; he was going to do his cattle-rustling henceforth over San Simon way where cow-men did not maintain rear-guards and scout out the country ahead of them for enemies. He changed his base of operations to Galeyville within a month and came to Charleston for pleasure only.

The story spread and every man who deemed himself as bad as Curly Bill saw his opportunity to demonstrate his qualifications as a killer by succeeding where the leader had failed. Doc Holliday tried it one night on the Charleston road. Next to Wyatt Earp he ranked as the highest in the faction that was ruling Tombstone. Unquestionably he was an artist with deadly weapons, and the trail of his wanderings through the West was marked by wooden headboards. On the evening in question—it was the evening after the bloody and unsuccessful attempt to rob the Benson stage, and several men were riding hard toward home and help and alibis—he was spurring his sweating horse to Tombstone when he got sight of John Slaughter's double rig ahead of him.

The cattle-buyer had drawn ten thousand dollars from the bank that afternoon and was taking the specie home with him; the fact was known in Charleston where Doc Holliday had stopped within the last hour. The vehicle was rounding a long turn; the horseman cut across country through the mesquite; he reached the farther end of the curve just in time to draw alongside the team.

John Slaughter's wife was beside him on the driver's seat. She saw the rider bursting out of the gloom, and then her eyes fell on the forty-five which he was in the very act of "throwing down."

"That man has a gun in his hand," she cried.

Without turning his head her husband answered, "So have I."

She glanced down at his cocked revolver; its muzzle was moving, to follow the enshadowed figure in the saddle less than ten feet away. She raised her eyes; the horseman had lowered his weapon and was wheeling his pony off into the night.

"Knew his bronco as soon as I saw that blazed face show," John Slaughter said in explanation of his quick draw.

That same vigilance, which had grown to be second nature with him, combined with an almost uncanny swiftness in putting two and two together, which latter had come to him during the years when guarding his life was a part of his trade, kept the cow-man a step ahead of his enemies on every occasion. These things were instinctive from long habit; he prepared himself to meet a situation just as an expert gunman draws his forty-five—

just as a scientific boxer blocks a blow—without wasting an instant in thinking.

It was thus with him when Ed Lyle and Cap Stilwell waylaid him on the road to the Empire ranch over near Port Huachuca. These two, who had endured humiliation under the muzzle of the Texan's pistol on the Pecos trail, brought four others along with them and planned to do the murder¹⁸¹ in the night. Three took their stations on one side of the wagon track and three on the other, all well armed. They had spotted the victim's buckboard several miles back.

Now when it came on to the spot which they had selected, the two trios galloped up to do the killing—and found John Slaughter leveling a double-barreled shotgun while his wife held the reins. One glimpse of that weapon at the cattle-buyer's shoulder was enough; they did not wait for him to pull the trigger but fled.

John Slaughter was wearying of this sort of thing. Lyle and Stilwell were men of parts; good men of whom to make examples. He sought the former out in Charleston. They met in front of a saloon on the main street. John Slaughter drew and, as he threw down—

“I've got no gun,” Lyle cried.

“If you were armed,” the cow-man said, “I'd kill you now. But if I ever see you in this country again, I'll kill you anyhow.”

Lyle left and Cap Stilwell, receiving his sentence of banishment in the same manner, departed within a week. From that time the bad men let John Slaughter alone; he was too big for them. He took his family to his new San Bernardino ranch and it was beginning to seem as if the days of constant warfare were over. He was settling down to enjoy peace in his home, when a call for help made him forsake the security which had been so hard to earn.

That security was unknown elsewhere in Cochise County. The strong men who had seized the reins in Tombstone, wielding their power for their own selfish ends, were gone; they had ridden away with warrants out against them. The outlaw leaders were dead: John Ringo, Curly Bill, the Clantons, and others who had swaggered where they willed, had met violent ends.¹⁸⁴

With their passing the courts were trying to administer the statutes, but the courts were impotent. The statutes were mere printed words. For the rank and file of the bad men were raiding and murdering under the guidance of new leaders who furnished them with food and ammunition, notified them of the movements of the officers, procured perjured witnesses to take the stand in their behalf, and bribed jurymen.

Money and influence were taking the place of deadly weapons to uphold a dynasty whose members reigned unseen and under cover, whose henchmen looted express-cars, stole cattle, and murdered men on the highways, until things had come to such a pass that President Arthur had issued a proclamation threatening martial law in Southeastern Arizona.

And now the people of Tombstone, grown sick with blood and much violence, called to John Slaughter to take the office of sheriff and bring the law to them. It meant the abandonment of his herds just as he was getting them well started, the putting aside of plans which he had cherished through the years. But he answered the call and forsook the San Bernardino ranch for the dingy little room beside the court-house entrance. Before he had got fairly acquainted with the new quarters war was on.

Cochise County was being used as a haven by bandits throughout the Southwest. Four train-robbers fled hither from Mexico, where they had looted an express-car and killed the messenger, soon after John Slaughter's term began. He took his chief deputy, Bert Alvord, and two others and followed their trail high into the Whetstone Mountains. In the night-time the posse crawled through the brush and rocks to the place where they had located the camp of the fugitives.

A man must leave many things to chance when it comes to choosing his position in the dark, and it so happened that when dawn came the sheriff and his deputy found themselves right under the nook where the bandits were ensconced; the other members of their party had become separated from them.

They had the enemy nicely cornered, with a cliff to cut off escape to the rear, but they were themselves in the open; two men against four and the four entrenched behind outcroppings of the living rock.

A small space of time was jammed with many large incidents immediately after this discovery. Men attaining supreme exaltation died in the instant of that attainment; pulses that leaped with the joy that comes when sight lines with bead, bead with living target and the trigger-finger begins to move, ceased their beating more abruptly than a machine stops when the power is turned off.

The leaden slugs snarled as thick as angry wasps when the nest has been disturbed; the crackling of the rifles was as a long roll; little geysers of dust spouted among the rocks; the smoke of black powder arose in a thin blue haze.

A bullet clipped away a little portion from John Slaughter's ear. He called to Alvord:

"Bert; you're shooting too high; pull down; I see you raising dust behind 'em every time."

Alvord, fighting his first battle, clenched his teeth and lowered his front sight. John Slaughter had prefaced his advice by killing one of the bandits; he supplemented it by putting a bullet through a head that bobbed above the rocks. And when the other two members of the posse came to take part in the fight, there was only one train-robber living. They found him breathing his last where he had crept away among the cliffs.

But killing desperadoes would not eradicate the reign of lawlessness unless a man slew the entire pack; and John Slaughter had no intention of instituting a St. Bartholomew's eve in Cochise County. Thus far he had managed to get along with less bloodshed than many a man who had not accomplished nearly as much as he. So now he went on with his task as he had gone about his business always and proceeded to smoke out the men who were responsible for this state of affairs.

It was not so hard to learn their identity as it was to get the proof of what they were doing. That was slow work. But he had hired Bert Alvord as his deputy with just this end in view. For Alvord was hail-fellow-well-met in every bar-room of the county; owner of a multitude of friends, many of whom were shady characters. In later years he gained his own dark fame as an outlaw, but that was long after John Slaughter left the office of sheriff.

At present Alvord was working honestly and hard, getting such information as he could concerning who was who among the desperadoes, gathering data as to their movements. The facts began to accumulate: a word dropped in a gambling-hall, a name spoken before a noisy bar, a whispered confidence from a prisoner who felt his companions had not done all they might in his behalf.

Gradually the evidence took the shape of a long finger pointing toward Juan Soto, who was living in the little town of Contention, as the leader who was handling matters in the San Pedro valley. About this time John Slaughter began riding out of Tombstone under cover of the night. The days went by; the sheriff came back to Tombstone morning after morning, red-eyed with weariness, put up his pony, and went about his business saying nothing as usual.

One day news came to the county seat that two cattle-buyers had been robbed and murdered down near the Mexican line. John Slaughter saddled up and rode over to Charleston that morning, and when Juan Soto came into town he met the sheriff who addressed him over the barrel of a leveled forty-five.

“I’ll just take you along with me to-day,” John Slaughter said.

It was a good tight case. Tombstone was startled by the news that Juan Soto had been a member of a bandit band in California. The sheriff was able to give some first-hand testimony concerning the defendant’s nocturnal habits. But the community’s excitement slumped to sullen anger when the jury brought in its verdict and Juan Soto smiled as he departed from the courthouse a free man.

Things had reached a pass where a vigilance committee appeared to be the appropriate climax. But that was not John Slaughter’s way; if any one were going to take the power of the high justice he proposed to be the man. He rode over to Contention and camped in front of Juan Soto’s house late in the evening. The night passed, and when the bandit leader came riding home from Charleston with the dawn, he saw the sheriff standing before his door.

Both men reached for their revolvers at the same moment, but John Slaughter’s hand was quicker. It was his chance to kill; according to the ethics of the gun-play he had that right. But he chose a different course.

“Leave the country,” he said. “If you’re here after ten days, I’ll kill you on sight.”

Soon after Juan Soto departed on his exile, the town of Wilcox over in Sulphur Springs valley was treated to a sensation, in the banishment of Van Wyck Coster. Every one thought Coster had enough money and influence to keep him immune from legal proceedings, but John Slaughter wasted none of the county’s money in arrest or trial.

“I’ve known what you were doing for a long time now,” he announced, holding his revolver leveled on his auditor while he spoke. There was some debate, but the sheriff clinched his argument by going into details, and when he had finished outlining the prosecution’s case he delivered his ultimatum: “Get out or I’ll kill you.”

Coster joined Juan Soto in exile. And then it became a simple matter of hunting down outlaws and bringing them in for trial. The arm of the law was limbered and justice functioned in the Tombstone court-house as well as it does in any city of the land; far better than is the case in some more pretentious communities. There was of course plenty of work left. Tombstone is full of stories of John Slaughter’s exploits.

A desperado, seeking to kill him, threw down on him as he was entering a saloon. Caught unawares for once, the sheriff flung up his hand and, as he grasped the pistol, thrust his thumb under the descending hammer. Meantime he drew his own weapon and placed the man under arrest. Two train-robbers sought to lure him to Wilcox by a decoy letter stating that his nephew had been killed. The instinct which had saved him from other ambushes made him investigate; and when he learned that his nephew was living he summoned a friend who made the journey with him. The spectacle of these two old-timers emerging from opposite doors of the day coach, each with a double-barreled shotgun under his arm, drove the conspirators from the station platform. Years afterward one of them confessed the details of the plot.

John Slaughter served two terms as sheriff, and when he retired from office Cochise County was as peaceable as any county in the whole Southwest. The old-timers who witnessed the passing of events during his régime invariably speak of him when they are telling of great gunmen. Yet, from the time when he started up the Pecos with that herd in the spring of 1876

until the day when he went to his San Bernardino ranch to take up life as a peaceful cattleman, he slew fewer men than some whose names are absolutely unknown. What he did he managed to accomplish in most instances without pulling a trigger. That was his way.

COCHISE

Darkness had settled down upon the wide mesquite flat, smoothing off all irregularities, hiding outlines until the tallest thickets were but deeper shadows merging into the lesser shades of the open places. Only one object showed, a Sibley tent glowing from the light within.

Under the flaming yellow stars it stood out luminous, marking the exact center of an enormous circle; a circle roofed by the radiantly flecked heavens, bounded by mountains which rose against the sky-line, abrupt as a wall, black as ink. In the different segments of this far-flung ring the peaks of the Chiracahuas, the Grahams, the Dragoons, and the Galiuros betrayed their ranges by varying outlines.

But to the eye they all formed portions of one huge circumference, whose center was a glowing point, the Sibley tent.

On the translucent walls of canvas there was a weird design of black shadows, a design which was constantly shifting and taking on new shapes. And as the shadows moved, sometimes with grotesque effect and swiftly, sometimes slowly, voices filtered through the gleaming cloth to mingle with the whispering of the night wind in the bear-grass, the dull stamping of tethered horses, the intermittent jingling of bitt-chains and the steady soft footfalls of two sentries.

The voices changed as often as the shadows on the tent-wall; now it was the abrupt, clipping speech of a white man and now the deep, inflectionless bass of an Indian. But most often it was the droning monotone of the post interpreter, uttering his translations in English or in the tongue of the Apache.

Of what was taking place within those luminous walls of canvas, official records still exist; and of what followed there are whole volumes of further records in Washington. Dry reading in themselves, they hold the meat of a remarkable story, a story whose colorful narration has been given by its own main characters and thus has come down among the true chronicles of the old-timers.

On that evening in 1859 two groups of men faced one another, and the lantern which hung on the center-pole of the Sibley tent shone down on their faces, revealing the growing passion in their eyes. One of the groups was composed of soldiers, wearing the blue uniforms, the queer straight-visored caps, and the huge wide-topped boots which our cavalry used during those times; a guard of sunburnt troopers under a hard-bitten nom-com.; and standing a pace or so ahead of them, a young second lieutenant fresh from West Point: Lieutenant Bascom, a stranger in a strange, harsh land, just a little puzzled over the complications which he saw arising here, but dead sure of himself and intolerant of the men with whom he was treating. That intolerance showed in his stare as he regarded them.

There were half a dozen of the Apaches, chiefs every one of them, a ragged group clad in a mixture of their native garb and cast-off clothes of the white man; frowzy hair hanging to their shoulders and bound round at the brows by soiled thin turbans. But they stood erect and there was a dignity in the way they held their heads back, a dignity in their immobility of feature and in their slow, grave speech. It was the dignity of men who knew that they were leaders of their people; who felt themselves on entire equality with the leader of the white man's warriors; who felt the gravity of this occasion where they had been invited into conference with this blue-clad representative of a mighty government. Their head man was Cochise.

Like Lieutenant Bascom, he stood a pace ahead of his followers, a lean Apache, with a thinner face than most of his tribesmen and a remarkably high forehead. And as he looked into the eyes of the young man in blue who had just come from the far cities of the east coast there began to come into his own eyes the shadow of suspicion. The talk went on; the interpreter droned out one answer after another to his speeches, and that shadow in the eyes of Cochise deepened.

In itself the matter at issue was a small one. A settler had lost a cow and he had accused the Apaches of stealing the animal. Young Lieutenant Bascom had summoned the chiefs to conference and they had come—they said—to help him find the culprit. After the manner of the Indian, of whose troubles the passing of time is the very least, they talked slowly, listened to the interpreter's rendition of the lieutenant's answers, and then talked more.

They did not know the man who had stolen the cow; that was the sum and substance of their speeches. And Lieutenant Bascom, fretting with the passage of the hours, looked on the ragged group in their dirty nondescript garments and chafed with fresh intolerance.

Cochise read that intolerance in the eyes of the smooth-cheeked officer and, being an Apache, managed to conceal the suspicion in his own eyes. He did not want trouble with the white man. He had never yet had trouble with soldier or settler. Ever since he had been a chief among the Chiracahua Apaches he had held down the turbulent spirits in his portion of the tribe; he had out-intrigued savage politicians and had smoothed over more than one difficulty like this. As a matter of fact he was assimilating some of the white man's ways; he was getting into business; working a crew of his people at wood-cutting, selling cord-wood to the stage company at the Stein's Pass station. He was doing well, saving money, and saw ahead of him the time when he would own many cattle, like some of the settlers.

All of this was very comfortable and to his taste, and because he liked it he held a firm stand against the suasions of warring chiefs from his and other tribes. He even came to cool terms with his relative Mangus Colorado, the greatest leader the Apaches had ever known. But while he was keeping to his position he had to listen to many an argument and many a tale of the white man's treachery, and a man cannot listen often without sometimes finding himself inclined to believe.

Settler and soldier, so said Mangus Colorado and other men of parts among his people, regarded their promises to the Indians as nothing; they were forever trying to entice the Apaches into conference and then taking advantage of them—sometimes by massacre. While he argued slowly against the impatient utterances of Lieutenant Bascom, reading the growing intolerance in the other's eyes, Cochise remembered some of the stories which he had frowned down when his people told them.

That was the state of affairs when Lieutenant Bascom, with the cocksureness of the young and the intolerance of the Easterner for frowzy Indians, made a decision. To him it was evident that these tattered savages were lying, they were a treacherous lot at the best, and always thieves. So, now that he was getting sick of the whole drawn-out business, he turned from the interpreter to his sergeant.

“Arrest ’em,” he said.

Cochise heard him and slipped to the rear of the tent as the troopers stepped forward. The other chiefs, who could understand no English, did not need an interpreter to tell them the meaning of this movement. At once the quiet of the Arizona night was shattered by the thud of blows and savage outcries. The crowded space within the tent was filled with struggling men.

And while that fight went on, Cochise, aflame with hatred, outraged by this violation of the sacred custom of conference, believing now every word that had been spoken to him by Mangus Colorado and the other war-chiefs, whipped out his knife. The sound of the blade as it rent the canvas was drowned by the other noises, and when Lieutenant Bascom and his breathless troopers surveyed their bound captives Cochise was in full flight across the darkened plain.

Now word was sent by courier to the agency, and government runners ¹⁰⁵went forth that night to all parts of the reservation, but they found no Indians to receive their messages. The Chiracahua Apaches were already riding toward their mountains where Mangus Colorado and the renegade members of their tribe were biding on the heights, like eagles resting on the rocky peaks before they take their next flight.

Like roosting eagles the warriors of Mangus Colorado scanned the wide plains beneath the mountains. Their eyes went to the ragged summits of the ranges beyond. Now as the day was creeping across the long, flat reaches of the Sulphur Springs valley, tipping the scarred crests of the Dragoons with light off to the west, touching the distant northern pinnacles of the Grahams with throbbing radiance, one of these lookouts beheld a thread of smoke unraveling against the bright morning sky.

Under the newly-risen sun Cochise and his followers were traveling hard away off there to the northward. The turbaned warriors came on first, half-naked, armed some of them with lances, some with bows and poisoned arrows, and a goodly number bearing rifles. Their lank brown legs moved ceaselessly in rhythm with the trotting of the little ponies; their moccasined heels thudded against the flanks of the animals.

In the rear of the column the squaws rode with the children and the scanty baggage. As they traveled thus, an outrider departed from the column to

leave his horse upon an arid slope and climb afoot among the rocks above until he stood outlined against the clear hot sky, kindling a wisp of flame. Now he bent over the fire, casting bits of powdered resin upon the blaze, holding a square of tattered blanket over it after the first puff of black smoke had risen, feeding it then with a scattering of green leaves which in their turn gave forth a cloud of white fumes.

And so the smoke thread unwound its length, showing itself in black and white; spelling forth, by the same system of dot and dash which the white man employs in his telegraph, the tidings of what had taken place back there in the Sibley tent.

From his nook in the Chiracahuas the watching warrior read its message. And long before the first faint haze of mounting dust betrayed the approach of the fugitives, Mangus Colorado knew that his nephew and his nephew's people had quit the reservation and the rations of meat and flour to make their living henceforth, as their savage forebears had made theirs as far back as the memory of the oldest traditions went—by marauding. So he gathered all his forces and welcomed Cochise into a council, where they planned their first series of raids against the white men.

In this manner Cochise reverted to the customs of his ancestors; customs which had come gradually to the Apaches when they wandered down from Athabasca, passing southward through regions held by hostile tribes snatching their sustenance from these enemies, fleeing before superior forces of warriors, until they reached the flaming deserts down by the Mexican border, past-masters of the arts of ambush and raid and retreat, owning no longer any love of home or knowledge of tepee building; nomads who made their lodges by spreading skins or blankets over the tops of bushes which they had tied together; to whom the long march had become an ingrained habit and all the arts of bloody ambush an instinctive pleasure.

Now he devoted all his mind and bent his talents to these wiles of Apache warfare; he directed his young men in making a living for the rest of the tribe by theft and murder.

His uncle, Magnus Colorado, was the most skilful leader the Apaches had ever known, a marvelously tall savage with an enormous head. Cochise learned from him and in time surpassed him as a general. For nearly a

decade and a half he made a plunder ground of southeastern Arizona and southwestern New Mexico, extending his forays away down across the line into Sonora and Chihuahua until a remarkable man among his white enemies came to him, and by a daring bit of frontier diplomacy, put an end to the bloodiest outbreak in the history of the Southwest.

But in the beginning there was neither diplomat nor general among the white men. The days before the Civil War witnessed a withdrawal of the troops from Arizona, and the Apaches had things very much their own way. From their home in the Chiricahua Mountains they rode westward across the wide reaches of the Sulphur Springs valley to the ridges of the Catalinas away beyond the San Pedro, then turned southward, making their way toward Mexico by the Whetstone and the Huachuca ranges.

Now, as they trekked along the heights, they paused at times to send bands of warriors down into the flat lands which lie along the course of the Santa Cruz. Here were ranches and a few small settlements. It was the custom of the raiders to steal upon these places, always in force superior to that of their enemies, camouflaging themselves by bits of brush and handfuls of earth which they stuck among the folds of their turbans and spread over their bare backs until one looking at them from a distance of twenty-five yards would never suspect the presence of lurking warriors.

In this manner they lay along the roadside biding the wagon-trains and stages, or crept up on ranch-houses, or wormed their way toward sleeping prospectors at the hour of dawn. And when they felt sure that the issue was safely in their hands they opened fire.

During the Civil War times they put the Butterfield stage line out of business and were an important factor in determining the northern route for the carrying of the United States mails to California; they wiped out the ranches of the valleys until cattle-raising and agriculture ceased entirely; they raided the pueblo of Tubac until its people finally fled for safety to Tucson and then they burned the deserted buildings. They made a howling waste out of southeastern Arizona.

Travel was suspended; there was no ranching and nearly every mine in this portion of the territory was abandoned. Of northern Sonora they made a source of supply for their horses and drove whole herds out of Mexico,

using the surplus animals for food, keeping the rest for mounts until these knuckled under from hard treatment.

During the years that followed the Civil War those fat days came to an end. Fresh troops were sent out from Washington. Mangus Colorado was captured by a detachment of cavalry and, according to the story of one present, was killed in his blankets by the troopers who guarded him. White settlers, stung to reprisals by the barbarity of successive massacres, hunted down several bands of the Apaches at their rancherias and wiped them out in night attacks, men, women, and children. Cochise found himself faced with a new set of conditions and changed his tactics to meet them.

It was the habit of the Apaches to rest between the long forced marches of their raids, choosing always a spot high in the mountains where the mescal plant grew. Here they would gather the roots of the thorny vegetable, bury them in the earth, kindle roaring fires over them, and bake them. Thus they got the sugar which their wasted bodies needed; and during the days at these camps they gained the rest which their aching bones craved.

But the white man's cavalry, guided by scouts recruited from the Touto Basin Apaches and from settlers who knew the country, began tracking the renegades to their aerial refuges, and sometimes massacred whole bands of them. Failing to steal upon them, the cavalry always managed to get them on the run once more, and that meant scant rations when full bellies were long overdue.

In this manner the soldiers and the settlers were making the Chiracahuas too hot for Cochise and his people.

Then the war-chief led his tribe across the Sulphur Springs valley to the northern end of the Dragoon Mountains where the peaks rise straight from the mesquite flat lands, two thousand feet of sheer walls whose summits command a view for many miles; whose pinnacles and overhanging rocks give endless opportunity for hiding and ambush. In this sanctuary they found rest between raids during the early seventies; and the place is known to this day as Cochise's Stronghold.

Here one time a force of several hundred soldiers made camp in the lowlands, and strung a series of strong outposts through Middle Pass, cutting off the northern part of the range from all the rest of the world,

holding it inside a ring of armed men. It was such a siege as the warriors of the Middle Ages used to wage, starving their walled-in enemies to surrender. For weeks the soldiers bided and sometimes got glimpses of the turbaned heads of Apache warriors who were gazing down on them from the rocks above.

Then, one dark night, Cochise took his entire tribe, numbering somewhere between two and three hundred men, women, and children, down the niches among the cliffs. Carrying their arms and their scanty baggage, the Apaches wormed their way from the crest to the plain two thousand feet below and crawled through the line of the besiegers. So adroitly was the thing manœuvered that no one cut their trail, and two days passed before the escape was discovered. By that time the whole band were raiding down along the headwaters of the San Pedro, getting new horses from the herds of ranchers on the border.

In the old days this northern end of the Dragoon Mountains, which towers above the flat lands of the Sulphur Springs valley on the one side and the rolling plains of the San Pedro on the other, had been known among the Apaches as the abode of the dead. Here, they said, the departed spirits of their ancestors whispered among the granite caves and pinnacles every evening with the coming of the night wind.

But from now on they forgot the tribal legends and looked upon the place³⁰⁴ as their inviolable refuge.

Time after time the blue-clad troopers chased them as far as the base of the cliffs, but never pressed them farther. For Cochise had developed into a consummate strategist and, for the first time in their history, the Apaches learned the art of making a stand against superior forces.

To this day the rolling hills under those pinkish granite precipices show traces of the camps which the troopers occupied during successive sieges, only to abandon them on learning that their turbaned enemies had stolen away in some other quarter to resume their raiding all along the border.

In some of the cañons which lead up toward the ragged crests of naked rock one can still pick up old brass cartridge-shells, the relics of grim battles where the soldiers always found themselves at a disadvantage, targets for

the frowzy, naked savages who slipped and squirmed among the granite masses above them like rattlesnakes.

Far to the southward the Sierra Madre reared its lofty crests toward the flaring sky; and there Cochise established another sanctuary where his people could rest and hunt when the chase became too hot in Arizona. His breech-clouted scouts discovered some dry placer diggings here, and he bade the squaws mine the dust which he exchanged with crooked-souled white traders for ammunition.

And now, having mastered the art of flight as he had mastered the art of raiding, the war-chief of the Chiracahua Apaches waged his vendetta against the white men more remorselessly than any of his forefathers had done in their time.

But few men are absolutely consistent and Cochise had some idiosyncracies, which it is just as well to note in passing, for they give an inkling of a side of his character that was instrumental in bringing an end to the whole bloody business.

For one thing he could not enjoy torturing his prisoners. He tried that once on a Mexican down Agua Prieta way. After the custom of his nation he pegged out the luckless prisoner near an ant-hill, with his mouth propped open by a wooden gag and a trail of honey leading into it.

But when he settled down that night to enjoy the torments of the man, he found that pleasure would not come to him; and during the long hours that followed, the groans of the slowly dying Mexican became a punishment to his savage captor, a punishment which endured for years afterward, for in his sleep Cochise sometimes heard those moanings when he was an old man, and hearing them sweated in agony of mind.

Another of his peculiarities was a love of the truth. He was no hand at lying like the ordinary Indian. In an era when the white men were careless with their compacts, an era when Washington set the fashion in breaking treaties with the hostile Indians, he came out with the reputation of always keeping his word.

“If you can not tell the truth,” he said, “keep silent or avoid the subject.”

That was the way he put it to Captain Thomas Jonathan Jeffords, to whom he also confessed the weakness which had overcome him in the case of the

tortured Mexican. And the knowledge of this side of Cochise's character³⁰² helped Captain Jeffords to pave the way for the wind-up of the war-chief's maraudings. That knowledge came after a long strange intimacy which began in a remarkable manner.

This Captain Thomas Jonathan Jeffords owned a wagon outfit and not only contracted for government freighting in those times when teaming was a perilous venture, but rode as an express messenger for various military posts along the border. During the days when Cochise was using the northern end of the Dragoon Mountains as his stronghold, the days before these two men became acquainted, the lean brown warriors made several attacks on Jeffords's wagon-trains and on more than one occasion forced the old-timer himself to do some extremely hard riding.

Finally when he had lost fourteen employees and property amounting to thousands of dollars in ambushes and raids, Jeffords decided that it was high time to put an end to this sort of thing as far as he was concerned. He had tried reprisals on his own account but although he and his leather-skinned followers had managed to kill off numerous Apaches, there were more warriors in the tribe than he could ever hope to massacre.

He had worked with the soldiers as a scout but had found the cavalry hampered by too many conflicting orders from Washington, and in some cases too inefficiently officered in high places, to be very formidable. Cochise was too much for them to handle and that was all there was about it. Now he made up his mind to try a new scheme.

Captain Jeffords had mixed a great deal with Apaches of various tribes³⁰⁴, until he knew their customs as well as they did themselves. He could speak their tongue and he knew the sign language which was the lingua Franca of the western tribes. He could read smoke signals; he had made friends among those of the renegades who sometimes took a long chance and drifted down to the government posts in company with peaceful Indians. Gradually he got such information as he could, and as he got it he stored it away in his mind until he felt he was as well equipped with knowledge as he could hope.

Then he set forth one day to pay a visit to Cochise in person. It was a risky venture but the old-timers never balked at taking long chances; else they would never have come west of the Rio Grande. Jeffords induced an

Apache who had been with Cochise to accompany him part way on the journey; and before the Indian back-tracked for the military post, he had him send up a smoke signal announcing the visit and stating that its nature was peaceable.

When the last shreds of smoke vanished in the clear sky the native departed and Jeffords resumed his journey toward the Dragoons. No answering sign had come from those scarred granite peaks; and as he rode on across the blazing plain they stood forth against the cloudless sky, frowning, inscrutable. For all that the eye could see they might have been deserted, without life among them since the beginning of time; or they might be at this moment sheltering hundreds of biding enemies. He had to wait until he got among those rocks before he knew what they held in store for him.

He rode to the edge of the plain and from the lowlands up the first slopes³⁰⁵ of talus at the mouth of a long, steep-walled cañon. He pressed his horse on up the narrow gorge. On either side the cliffs loomed above him; in places they were so close together that he could have tossed a pebble from one to the other. There was no sign of life; no sound, no movement.

But this tall lean rider knew that somewhere among those granite pinnacles which stood out against the sky-line before him and on either side, scores of venomous black eyes were watching him. He knew that for every pair of eyes there was a rifle; and that many a crooked brown finger was fairly itching to press the trigger.

Thus he rode his sweating pony up and up where the gorge wound toward the summit, up and up until he reached the nests of enormous granite boulders which hang seemingly poised between the heavens and the flat plain beneath. And finally he saw before him the lodges made of bended bushes with skins and blankets spread over their curved sides. He reined in his horse, dismounted, and walked into the camp of the renegades.

Cochise was sitting in his lodge, which was but a bare shelter from the sun's rays—a number of bushes bound together at their tops formed the ribs for a haphazard sort of tent made of outspread skins,—and whether he was awaiting this visit no man knows. For the war-chief showed no sign of surprise or of welcome when Captain Jeffords entered the place. But when the tall white man had seated himself upon the skins which covered the dry earth and announced his purpose, Cochise betrayed astonishment.

“I have come here,” Jeffords said with the deliberation which one must use²⁹⁶ when he is talking with an Indian, “to see you, to know you better, and to talk over certain matters with you. I will stay here two days or maybe three; and while I remain—to show my good faith—one of your squaws may keep my weapons.” With which he laid aside his rifle and revolver.

After a silence whose length would have been disconcerting to any other than an old-timer owning a knowledge of the Indian ways, Cochise called a squaw, who picked up the firearms at his bidding and took them away with her. Then these two men of parts settled down to talk business.

It took them two days and two nights, for Jeffords was careful not to crowd matters in the slightest, hanging to the savage custom of long silences and few words at a time between them. As the hours went on he sat there patiently listening to the war-chief recounting at great length his experiences with the white men, reciting the stories of bad faith and broken compacts; and when these recitals were finished he continued to sit in silence for long intervals, before he resumed his own arguments.

Thus the talk went on in the little brush shelter during the hot days and the cool evenings; and what it all came to was this:

Jeffords said that this war between Cochise and the soldiers was not his war. It was, he maintained, no business of his excepting when the officers who carried the authority of the great father in Washington, bade him to do their bidding and act as a guide or scout. Otherwise, why should he take up his good time and risk his life in fighting a people against whom he held no²⁹⁷ personal grudge?

And why should that people bother their heads and risk their lives in fighting him? He followed that question by reminding Cochise of the reprisals which he had launched against the Chiracahua Apaches. They had killed fourteen of his men and stolen much of his property; but he and his men had killed several times fourteen of Cochise’s warriors and had wrought devastation in proportion. Did that pay the Apaches?

Well, then, why keep on with it? He knew good things of Cochise and had respect for him. Cochise knew who he was and the sort of man he was. No need for them to go on injuring each other and each other’s people. They could call it a draw and quit right now.

If the white soldiers demanded Jefford's services, all well and good; he would go and serve them as scout or interpreter or guide, and do what fighting one must do when he is on the war-path. And on such occasions, if the warriors of Cochise could kill him or capture him, all right; it was their privilege. But no more of this attacking each other out of season. If Cochise would let his men and property alone, he would no longer make any raids on Cochise's people.

That was the gist of it and it took a long time to say; a long time during which Cochise told Jeffords many things and Jeffords spoke with Cochise of many subjects outside the direct line of discussion. For that was the Indian manner; they must feel each other out and satisfy themselves each as to the other's personality.

In the end they shook hands on their bargain, and Captain Thomas Jonathan Jeffords got back his weapons from the squaw, saddled up his pony, and rode forth from the camp of the Apache war-chief, the party of the first part to a compact such as never had been heard of up to that time in the history of Indian warfare.

That compact stood. And there were times when its observance was a delicate matter; times when Captain Jeffords had to draw fine lines between his duty as a government scout and his obligations to Cochise. But he managed to perform those duties and to keep the faith; and although he went forth with the cavalry troopers on many an occasion, serving them faithfully and well, he never fell out with the war-chief of the Chiracahuas.

In fact their friendship grew as the years went by and they came to regard each other as brothers. During such visits as he paid to the stronghold in lulls of the border warfare, Jeffords got to know much of Cochise's history, of his grievances, and of his point of view.

During these same years there came a change in the command, and General George Crook, who is looked upon by the old-timers as perhaps the greatest of our Indian-fighters, led the cavalry against the Apaches. Crook's understanding of the Indian was perfect; and not only was he able to beat the natives at their own game of ambush but he thoroughly sympathized with their cause. He knew how Washington and incompetent officers had blundered and lied to them.

It was therefore with the utmost willingness that he combined his campaign of savage fighting with another and quieter campaign of diplomacy which was being waged by General O. O. Howard.

The latter had been sent out by President Grant to get the Chiracahua Apaches back on the reservation. And one day he made up his mind to open negotiations with the war-chief in person.

He asked his scouts for a man who could find where Cochise was hiding at the time and conduct him to the place, and they told him that there was only one man in the territory of Arizona, who stood a chance of doing this—Captain Jeffords.

General Howard sent for Jeffords and the two conferred in the presence of a number of cavalry officers. And when the general had announced his purpose a dispute arose; the officers advised him to take along a strong escort of troops if he intended making this call. Jeffords declared flatly that such an escort would need all the cavalry along the border. No troops or else an army, was his way of putting it; and if there were an army he did not purpose accompanying the expedition. On the other hand he would willingly take General Howard alone. They compromised by sending along a single aide, a captain.

Then these three men journeyed to the northern end of the Dagoon Mountains; and as they crossed the wide plains toward the somber range, they halted two or three times while Captain Jeffords built a little fire. The general and his aide watched the old-timer standing by the wisp of flame, sprinkling upon it now one sort of fuel and now another, occasionally smothering the rising fumes with his saddle blanket. And as they rode onward they saw the smoke of Apache signal-fires rising from the ragged summits ahead of them. They saw these things, and it is a fact that they thought but little of them.

So they marveled when Captain Jeffords chose his route into the mountains without hesitation; and their wonder grew when he pointed to a group of enormous boulders which topped the ridge ahead of them, saying—

“We will find Cochise’s people camped there to-day.”

They rode on upward and came into the camp of the Apaches. Here and there a ragged squaw peered out of a dirty lodge at them; they saw a group

of children scattering like frightened quail. There were no warriors, only one or two old men.

“Where is Cochise?” General Howard asked.

“He will be here within an hour,” Jeffords answered, “and when he comes you will know him because you will see riding ahead of him the ugliest-looking Apache in Arizona carrying a lance.”

And because Jeffords had exchanged no word as yet with the Indians, the two white men marveled again.

The old-timer led them to the chief’s lodge, where they sat down and waited.

Within the hour a group of Apaches came riding up the nearest gorge, and at their head General Howard saw one whose sinister face conformed to the description which Jeffords had given him. The warrior was carrying a lance. And behind him rode the war-chief. Cochise dismounted and entered his lodge. After the Mexican fashion he kissed Jeffords on both cheeks embracing him warmly. Then—

“What is it these men want?” he asked.

Jeffords introduced General Howard and the aide, and stated the former’s motive in making this visit. Cochise sat silent for some moments. At length, pointing to General Howard—

—“Will he keep his word if we exchange promises?” he demanded.

“I have advised him not to promise too much, as is the habit of many white men,” Jeffords answered, “and I believe he is honest.”

The old war-chief fell silent again. Finally he turned to General Howard.

“Some of my young men,” he said slowly, “are away now. They are making their living. They may come back at any time. And when they come back there may be trouble. It would be better if you were not here then.”

And General Howard knew enough about the Apaches and their habits to be sure in what manner those young men were making their living; what sort of trouble would probably follow their arrival in the camp. It would be an awkward situation if he were to be in this place during a battle between the savages and his fellow-soldiers. But he was not a young man and the

prospects of a long ride back to the nearest military post were not alluring. He said as much.

“Four of my young men will take you to a good place,” Cochise told him, “and after the third day they will bring you back.”

On the advice of Jeffords this course of action was agreed to; and four Apaches took General Howard down into the valley as far as the point where the Sulphur Springs ranch buildings now stand.

Jeffords and the aide bided here on the heights with the Indians. And on the second day, true to Cochise’s prophecy, a band of renegades came riding hard up the gorge. The spot where the Indians were encamped was a saddle at the summit, some hundreds of feet lower than the adjoining ridges. Now as the fugitive warriors threw themselves from their lathered ponies, announcing that two troops of cavalry were close behind them, the aide of General Howard witnessed one of those spectacles which are easier to tell than to believe.

With the announcement of this emergency, the camp moved. In the same time that it takes to say the foregoing sentence, it moved—men, women, children, and every bit of impedimenta. It was like one of those magic transformations of which we used to read in fairy-tales when we were children.

One moment the Apaches were squatting among their lodges; and in the next moment people and goods and wickiups were gone; the place was bare.

Every warrior and squaw and child seized what objects were nearest at hand, overlooking none, and scampered off with them. Within a few minutes of the arrival of the fugitives, the entire band was scattered among the boulders and pinnacles on the higher portion of the ridge; Cochise was disposing his warriors to the best advantage to repel the attack.

But the cavalry made no advance beyond the cañon mouth, and there was no fight. When General Howard returned at the end of the next day he saw the manner in which the war-chief had deployed his men and was struck with admiration. No general, he said in telling of the incident afterward, no matter how highly schooled in the arts of modern warfare, could have disposed of his forces to better advantage than this savage had done.

Then General Howard, his aide, and Captain Jeffords were given one of those primitive lodges and settled down here among the lofty heights of Cochise's stronghold, isolated from all white men, surrounded by the most bloodthirsty savages in America, rubbing elbows with naked warriors who had spent the years of their manhood perfecting themselves in the fine arts of ambush and murder.

Cochise saw to it that they were well supplied with robes and blankets; by his orders they were feasted as became ambassadors; and General Howard ate with a relish one evening a stew which he afterward learned was made from the meat of a fat half-grown colt.

The conference went on at a leisurely rate; but at that it was conducted much more swiftly than most discussions in which Indians have taken part, for since the party had come to these heights they had sent back no word of how they were faring, and they dared not drag out the business to too great a length lest an expedition come after them. Such a development would effectually stop the negotiations and, in all probability, forever prevent their renewal.

General Howard told Cochise his purpose in coming to Arizona, and dwelt with emphasis on the fact that President Grant had sent him. The name of this famous warrior of the white men had weight with the leader of the Chiracahuas. If the man who led the armies of the great father to victory was behind this movement, he must at least respect the overtures. Howard went on to say that all the President wanted was peace with the Indians; to get them back on the reservation and to treat them fairly.

Cochise replied with a long statement of his own grievances beginning with the incident wherein Lieutenant Bascom was a main figure; he told of other cases wherein the white man had not shown up well. Many promises had been made to the Apaches but none had been kept. Still he was willing to go on with this thing; President Grant was a mighty warrior, and Captain Jeffords had vouched for his envoy's honesty.

Thus they sat within the rude shelter of boughs and skins, smoking and talking while the naked braves passed outside eying them through the doorway with sharp sidelong glances, and lean withered squaws cackled all day long among the vermin-ridden lodges about them.

Then Cochise announced that he and his people would go back to live upon a reservation and to eat the white man's rations—on certain conditions. The reservation must be in their own country; he named a portion of the Sulphur Springs valley and the adjoining Chiracahuas. And the agent must be Captain Jeffords.

There was justice in these conditions. The tribe had always roved over the country which Cochise named. As for the agent, it was a notorious fact that about nine-tenths of the Indian troubles originated through dishonesty of officials; either they were thieves or their friends were, which amounted to the same thing. And Jeffords was honest.

When General Howard had heard out the war-chief, he at once accepted the stipulations. President Grant had given him carte blanche in this matter; he was sure that he could keep his promises. But Captain Jeffords interposed an obstacle.

The last thing that he wanted was to be an Indian agent. The government owed him about twenty thousand dollars and if he took the office it would prevent his collecting the claims which were then under adjudication in Washington. Besides he well knew the political forces which were always working on an Indian agent, the strings which were being pulled in Washington, the various grafts, big and petty, to which one must shut his eyes if he wanted to remain in charge of a reservation. He stated his position.

Cochise remained firm. No agent other than Jeffords. That was his ultimatum. He would rather go on fighting until his people were extinct than to take them back and have them robbed. General Howard turned in appeal to the old-timer. And Captain Jeffords then capitulated—under conditions.

He would give up the hope of collecting the money which the government owed him and he would take charge of the new reservation. But if he did these things he must be in complete control. His word must be law and there must be no outside interference. If he gave the order, no white man—not even the commander of the United States army—could come within the boundaries of the district set apart for the Indians. Beyond his judgment there could be no appeal. He did not purpose to have matters taken to Washington over his head.

And, to make a long story short, General Howard not only consented to all of this, but he saw to it that President Grant confirmed his promises. He made a special trip to Washington and placed the matter before the nation's chief executive, who issued the necessary orders. And so late in 1872 Cochise and his people came back to the reservation.

That was not all, either. They lived there, during the lifetime of Cochise, in peace and quiet. There were thefts and there were cases of whisky-peddling with their inevitable accompaniments in the way of murder. There were times when the young men got restless; when passing Apaches from the White Mountains tried to induce the tribe to rise and leave the reservation with them, when medicine-men from these other clans preached bloody war.

But Cochise and Captain Thomas Jonathan Jeffords attended to all of these things as they came up. They ferreted out the criminals; they hunted down the whisky-peddlers; they drove the recalcitrant spirits from other tribes away and quelled the dissatisfaction which they had stirred up.

And because there was no appeal beyond their judgment; because no hungry politician could bring it about that his friends got the chance to swindle the Apaches or to rob them of their rations—as was being done with other Indians all over the West at the time—these two old men were able to enforce their edicts and to keep at peace the most warlike savages in the whole Southwest. They kept the faith with the government, those two; and they kept the faith with each other; and the friendship which had begun that day when Jeffords rode up into Cochise's stronghold, grew closer and closer.

That friendship never wavered until the day of Cochise's death. And when he knew that the end was coming he called for Jeffords, who was brought to his bedside. It was about two hours before noon.

"To-morrow at this time in the morning," Cochise said, "I will die. I want to say good-by to you."

They talked for some time over things that had happened in days gone by. And finally Cochise asked the old-timer whether he believed in a hereafter. Jeffords, like many another man, could only hope that there might be such a thing.

“Well,” Cochise told him finally, “I believe that after I am gone I will see you again, my friend.”

And those were their last words together. The next morning, at the hour which he had named, Cochise breathed his last.

ONE AGAINST MANY

Maybe you will get an insight into certain traits of the old-timers and so will find it easier to believe the facts set forth in this chronicle, if I begin with the tale of “Big Foot” Wallace.

Away back in the days before the Mexican War this Big Foot Wallace, lusty then and in his prime, was taking part in a bushwhacking expedition into Northern Chihuahua; and his little company was captured by the soldiers of the southern republic. No one was losing any sleep in those parts over the laws of nations, and the officer commanding the victorious enemy was in a hurry to be moving on. Wherefore, like many another handful of Americans, the prisoners soon found themselves surrounding a jar within whose hidden depths were white and black beans, in number corresponding to their own.

The idea was that each man must draw his bean, and he who got a white one lived, while he who picked a black kernel was lined up with his luckless friends before the nearest wall and shot within an hour. Thus the Mexican commander intended to reduce by one-half the number of his prisoners, and at the same time afford his troops a little entertainment in witnessing the drama of the bean-picking.

There was in Big Foot Wallace’s company a young fellow with a wife and children waiting for him back in Texas, and as the tattered group crowded around the jar to thrust their hands within and draw forth their different fates this soldier broke down. The thought of the woman and the babies was too much for him.

Big Foot Wallace had just plunged in his hand when the man began to sob. He glanced down at the white bean which his fingers clutched and turned to the stricken youth.

“Here,” he whispered with an oath thrown in to show his indifference to the heroics, “take this, I’m feeling lucky to-day.”

With which he turned over his precious bean and—proceeded to draw another white one.

The tale is told to this day by white-bearded men who maintain that it came to them from the lips of Big Foot Wallace. It has been used as the basis for at least one bit of fine fiction, but in its original form it illuminates for us of a later generation the characters of those extraordinary men who won the great Southwest away from the Apaches. They were, whenever occasion came, perfectly willing to take a long chance against ugly death. That willingness made every one of the old-timers a host in himself.

During the decades between the end of the Mexican War and the coming of the railroads these men drifted westward from the Rio Grande and the Pecos. A lean and sunburned crew, they came by saddle-horse and wagon, by thorough-brace Concord stage-coach and by bull team, dribbling into the long, thin valleys which reach northward from the Mexican border to the Gila River.

They found such spots as suited them; there they built their cabins, gouged their prospect-holes from the rocky hillsides, and dug the irrigation-ditches for their ranches. There were few settlements and these remote from one another; the military posts were so insufficiently garrisoned that the troopers had all they could do to look out for themselves; and the Apaches roamed unhindered whither the lust for plunder led them.

These savages had owned the valleys and the ragged mountain ranges between them. They saw the white men drifting in, in twos and threes; they saw the lonely camps and cabins, tenanted by little groups of settlers, beyond all reach of help; they saw the wagon-trains and stages traveling without convoys. Their chiefs were wily, their warriors past masters of the art of ambush. They started in to kill off the new-comers; and they undoubtedly would have succeeded in depopulating most of New Mexico and Arizona if it had not been for that one trait of which Big Foot Wallace furnishes an example.

Therein lies the key-note to the incidents within this little chronicle; the contemptuous disregard for danger, the willingness to take the supreme risk, which made those old-timers perform exploits that were seemingly impossible; which made them outface their naked enemies—who were always looking out for their own swarthy skins—and come forth unscathed

from situations wherein death seemed the only means by which they could emerge; which made them win in many a grim fight where the odds were one man against many.

One man against many. That was the case with Uncle Billy Rhodes. Back in the early sixties he and his partner had taken up some land down in the Santa Cruz valley near the pueblo of Tubac. If you drive southward in your car to-day from Tucson you will pass the spot where Tubac stood until the Apaches laid waste the town during Civil War times, and go within a stone's throw of the place where Uncle Billy Rhodes ran one of the biggest and finest bluffs in all the history of Indian-fighting.

It was the custom of the Apaches to raid southward from their reservations into Mexico, scooping up such loot and lives as they could during their journeys. Usually at this particular time they traveled by way of the Santa Catalina Mountains, keeping well to the heights until they reached the Pantano Wash, where they frequently swooped down on the Butterfield stage-station before climbing to the summits of the Whetstones and the Huachucas. Clinging to the rocky ridges, they went on southward and watched the lowlands for signs of victims.

Such a war-party descended into the Santa Cruz valley one afternoon and found Billy Rhodes's partner alone at the ranch. When they got through with him there was little left in the semblance of a man, but they took good care to postpone burning the ranch-buildings, contenting themselves with promiscuous looting.

The idea was that smoke creates a warning signal and Uncle Billy Rhodes would never come within rifle-shot of the spot once he got sight of the ascending cloud. He was their meat; they possessed their souls in patience and settled down to await his home-coming.

Afternoon was waning and the first long shadows of early evening were beginning to steal across the plain from the base of the mountains when Uncle Billy rode his jaded pony down the faint wagon-track toward the ranch-house. He was weary from the saddle, for he had come a long distance that day—so long a distance that the horse was unfit for much more travel.

He passed his first rude fence and was within two hundred yards or so of the cabin when something made him pull up. He did not know what that something was; but the bronco added to his suspicions by its behavior. And then, while he was reconnoitering, an over-eager brave took a pot-shot at him.

The bullet missed, as most Apache bullets had a habit of doing. Next to the courage of the old-timers the utter inability of the North American Indian to grasp the necessity of pulling down his front sight was perhaps the largest factor that helped the white man to win the country west of the Mississippi River. Uncle Billy Rhodes whirled his pony and started back in the direction he had come from.

But the ponies of the Apaches were fresh from the rest they had enjoyed while their masters were prolonging the death agonies of Uncle Billy's partner. It took but a short time for the Indians to catch them up and within a minute or two something like fifty warriors, turbaned, naked from the waist up, were crowding their frenzied mounts in the wake of the fugitive.

The chase, as might have been expected, was a short one. Before he had gone a half-mile Uncle Billy saw that he was going to be overtaken. Already the savages were spreading out, and he could hear the yells of those who were drawing up on each side.

It was the proper time for a man to despair; but Uncle Billy was too busy looking about him for a point of vantage to indulge in any such emotion as that. He had an old-fashioned cap-and-ball revolver, all of whose chambers were loaded; and it was his intention to make those six bullets if possible account for six Apaches before he resigned himself to unkind fate.

The river-bed was close at hand; in places the road skirted the willow thickets which lined the stream. Before the fugitive a particularly thick clump of the green shrubs showed; all about it the ground was open. Uncle Billy hardly bothered to check his pony's lame gallop before casting himself bodily into the midst of this shelter. And thereafter the affair took on a different complexion.

The Apache was never foolhardy. Possessed of marvelous patience, he was willing to wait when waiting was the more prudent course of action. And in

the beginning the pursuers, who had encircled the willow thicket, contented themselves with shooting from a distance where they could keep to cover.

But evening was growing on, and these savages were imbued with more superstitious fears of the dark than the members of most Indian tribes. It became evident that they must rush matters if they would go to camp before the night enwrapped them.

So the forty-odd came wriggling down the surrounding slopes toward the willow thicket, keeping as close to the earth as possible, striving to close in before they made their open charge. Uncle Billy waited until he got a good shot, and "turned loose" for the first time. A spattering of bullets answered his, but he had the satisfaction of seeing one naked form lying motionless on the hillside.

There came a yell, and now the Apaches showed themselves as they ran forward. The old revolver spoke again and then the third time. The charge broke in its inception; and the retreating enemy left two more of their number behind them when they went back to cover.

There followed an interval of silence. It was succeeded by another rush. Uncle Billy fired twice from the depths of his thicket, and both shots scored. The Apaches sought the rocks once more; but the old-timer lay among the willows with a broken elbow from one of their bullets. There was no time, nor were there means, for dressing the wound. He gritted his teeth, dug the elbow into the soft sand to stanch the flow of blood, and waited for the next onset.

It came within a few minutes, and Uncle Billy fired his last shot. The good luck which sometimes helps out a brave man in time of trouble saw to it that the ball from his revolver found the chief of the party. When they saw him fall the Indians retired in bad order.

And now, where force had failed them, the Apaches resorted to diplomacy. All they wanted was to get their hands on the white man, and a little lying might be the means to help them to it. In Spanish one of them called from his cover, bidding Uncle Billy give himself up as a prisoner. He had, the herald said, been so brave that they would observe the amenities of the white man's warfare; they would not harm a hair of his head. But if he refused they surely would come on this time and kill him.

To which Uncle Billy Rhodes replied profanely inviting them to make the charge.

“Because,” he ended, “I’m plumb anxious to get some more of you.”

And then he sat back biding their coming—with his empty revolver. But the silence continued uninterrupted; the shadows merged to dusk; twilight deepened to darkness. The Apaches had stolen away, and Uncle Billy Rhodes crept forth from the willows to catch up his horse and ride with his broken arm to Tucson, where he told the story.

Now there is no doubt what would have happened to Uncle Billy had he been gullible enough to believe that statement of the Apaches as to his personal safety in case of surrender. As a matter of cold fact neither Indian nor white man had any particular reason to look for favor or expect the truth from his enemy during this long struggle.

Just to get an idea of the relentlessness of their warfare it is worth while noting this incident in passing—one of those incidents which were never reported to Washington for the simple reason that Washington could never understand them.

A band of renegade Apaches had left the reservation to go a-plundering down in Mexico. A certain troop of cavalry was riding after them with the usual instructions from Washington to bring them back without bloodshed.

The captain of the troop was a seasoned Indian-fighter, and he managed to keep the fugitives moving so fast that they got next to nothing to eat. When you are traveling without rations along the ridges during an Arizona summer and there is no time to stop for hunting, no time to bake mesquite roots; when you need every pony for riding and you have eaten the last lean dog; then bellies draw in and the ribs begin to stand out.

There were a number of squaws and children in the Apache outfit, and by the time the chase had been going on for two weeks or so with back-trackings, twistings and turnings, and every march a forced one, why then the pace of the fugitives began to slacken. And the troopers overtook them one fine day right out in the open where there was no opportunity for stand or ambush.

According to his instructions from the men who ran our Indian affairs in Washington, the captain of the troopers must bring these renegades back

unharmd or face the necessity of making a great many explanations. So he drew up his men in formation and rode forward to parley with the half-starved savages. He rode right up to them, and their chief came forth to have a talk with him.

This captain was a fine figure of a man, and those who watched him say that he made a noble picture on his big troop-horse before the frowzy band whose gaunted members squatted in the bear-grass, their beady eyes glinting on him under their dirty turbans. And he was a good, persuasive talker. He promised them safe-conduct to the reservation and assured them that their truancy would be overlooked, were they to come back now.

He went on to tell of the rations which would be issued to them. He dwelt on that; he mentioned the leanness of their bodies and described at length the stores of food that were awaiting for them in the reservation warehouse.

And the words of the captain were beginning to have an effect. There was a stirring among the warriors and a muttering; men glanced at their squaws and the squaws looked at their children. The captain went on as if unconscious that his eloquence was bearing fruit.

All the time he was speaking a girl just grown to womanhood kept edging toward him. In the days when food was plenty she must have owned a savage sort of beauty; but her limbs were lank now and her cheeks were wasted. Her eyes were overlarge from fasting as they hung on the face of the big captain.

So she stood at last in the very forefront of her people, quite unconscious that other eyes were watching her. And behind her her people stirred more and more uneasily; they were very hungry.

Under the hot, clear sky the troopers sat in their saddles, silent, waiting. The lieutenant who had been left in charge watched the little drama. He saw how the moment of the crisis was approaching; how just one little movement in the right direction, one word perhaps, would turn the issue. He saw the half-starved girl leaning forward, her lips parted as she listened to the big captain. He saw an old squaw, wrinkled and toothless, venom in her eyes, crouching beside the hungered girl.

Suddenly the girl took an eager step forward. As if it were a signal a full half of the band started in the same direction.

And just then with the turning of the scales, just as the captain's eloquence was winning, the old squaw sprang to her feet. She whirled an ax over her head and brought it down upon the girl. And before the body had fallen to the earth a warrior leveled his rifle and shot the captain through the heart.

The lieutenant started to turn toward his troopers. But he never had a chance to give his order. The whole blue-clad band was charging on a dead run. What followed did not take long. There was not a single prisoner brought back to the reservation.

When men are warring in that relentless spirit, no one who is blessed with the ordinary amount of reasoning power looks for mercy even if it be promised. And Uncle Billy Rhodes did well to run his bluff down there in the willows by the river.

Sometimes, however, the Apaches felt themselves forced to show respect for their dead enemies. There was, for instance, the short-card man from Prescott. Felix was his name; the surname may be chronicled somewhere for all the writer knows; it ought to be. A short-card gambler, and that was not all; men say that he had sold whisky to the Indians, that he was in partnership with a band of stock-rustlers, and that on occasion he had been known to turn his hand to robbery by violence. In fact there is no good word spoken of his life up to the time when the very end came.

In Prescott he owned none of that friendship which a man craves from his fellows; respect was never bestowed upon him. He walked the streets of that frontier town a moral pariah.

Those who associated with him—those who made their living by dubious means—looked up to him with an esteem born only of hard-eyed envy for his prosperity. For he was doing well, as the saying goes; making good money.

Felix had managed to find a wife, a half-breed Mexican woman; and she had borne him children, two or three of them. He had a ranch some distance from the town, and many cattle.

And on the great day of his life, the day when he became glorious, he was driving from the ranch to Prescott with his family: a two-horse buckboard and Felix at the reins; the woman and the children bestowed beside him and about him.

Somewhere along the road the Apaches “jumped” them, to use the idiom of those times. A mounted band and on their way across-country, they spied the buckboard and started after it. The road was rough; the half-broken ponies weary; and the renegades gained at every jump. Felix plied the whip and kept his broncos to the dead run until their legs were growing heavy under them and the run slackened to a lumbering gallop.

Prescott was only a few miles away. They reached a place where the road ran between rocky banks, a place where there was no going save by the wagon-track.

Felix slipped his arm around his wife and kissed her. It was perhaps the first time he had done it in years; one can easily believe that. He kissed the children.

“Whip ’em up,” he bade the woman. “I’ll hold the road for you.”

And he jumped off of the buckboard with his rifle and sixteen rounds of ammunition.

In Prescott the woman told the story and a relief party rode out within a half-hour. They found the body of the short-card man and stock-thief with the bodies of fourteen Indians sprinkled about among the rocks. And the surviving Apaches, instead of mutilating the remains of their dead enemy as was their custom on such occasions, had placed a bandanna handkerchief over his face, weighting down its corners with pebbles lest the wind blow it away.

It was near Prescott—only four miles below the village—that a woman fought Apaches all through a long September afternoon. The Hon. Lewis A. Stevens was in town attending a session of the Territorial Legislature and his wife was in charge of the ranch near the Point of Rocks that day in 1867. A hired man was working about the place.

One hundred yards away from the house an enormous pile of boulders rose toward the nearer hills. Beneath some of the overhanging rocks were great caves, and the depressions between the ridges gave hiding-places to shelter scores of men.

Shortly after noon Mrs. Stevens happened to look from the window of the kitchen where she was at work. Something was moving behind a clump of spiked niggerheads between the back door and the corrals; at first glance it

looked like a dirty rag stirring in the wind, but when the woman had held her eyes on it a moment she saw, among the bits of rock and the thorny twigs with which it had been camouflaged, the folds of an Apache warrior's head-gear.

Now as she stepped back swiftly from the window toward the double-barreled shotgun which was a part of her kitchen furnishings and always hung conveniently among the pots and pans, she caught sight of more turbans there in her back yard. With the consummate patience of their kind some twenty-odd Apaches had been spending the last hour or so wriggling along the baked earth, keeping to such small cover as they could find as they progressed inch by inch from the boulder hill toward the ranch-house.

The majority of the savages were still near the pile of rocks when Mrs. Stevens threw open her kitchen door and gave the warrior behind the niggerheads one load of buckshot; and the more venturesome among them who had been following their luckless companion's lead broke back to that shelter at the moment she fired. Fortunately the hired man was out in the front and the roar of the shotgun brought him into the house on a run. By this time more than twenty Apaches were firing from the hill; the tinkling of broken glass from the windows and the buzzing of bullets was filling the intervals between the banging of their rifles.

Like most Arizona ranch-houses in those days, the place was a rather well-equipped arsenal. By relaying each other at loading Mrs. Stevens and the hired man managed to hold down opposite sides of the building. Thus they repelled two rushes; and when the enemy made an attempt to reach the corrals and run off the stock, they drove them back to their hillside a third time.

The battle lasted all the afternoon until a neighbor by the name of Johnson who had heard the firing came with reinforcements from his ranch. That evening after the savages had vanished for good Mrs. Stevens sent a message into Prescott to her husband.

"Send me more buckshot. I'm nearly out of it," was what she wrote.

During the late sixties and the seventies the stage-lines had a hard time of it, what with Apaches driving off stock and ambushing the coaches along the road. There were certain stations, like those at the Pantano Wash and the

crossing of the San Pedro, whose adobe buildings were all pitted with bullet-marks from successive sieges; and at these lonely outposts the arrival of the east or west bound mail was always more or less of a gamble.

Frequently the old thorough-brace Concord would come rattling in with driver or messenger missing; and on such occasions it was always necessary to supply the dead man's place for the ensuing run. Yet willing men were rarely lacking, and an old agent tells how he merely needed to wave a fifty-dollar bill in the faces of the group who gathered round at such a time to secure a new one to handle the reins.

In those days an Indian fight wasn't such a great matter if one bases his opinion on the way the papers handled one of them in their news columns. Judge by this paragraph from the "Arizonian," August 27, 1870:

On Thursday, August 18, the mail buggy from the Rio Grande had come fifteen miles toward Tucson from the San Pedro crossing when the driver, the messenger, and the escort of two soldiers were killed by Apaches. The mail and stage were burned. Also there is one passenger missing who was known to have left Apache Pass with this stage.

You are of course at liberty to supply the details of that affair to ^{yourself} suit yourself; but it is safe to say there was something in the way of battle before the last of these luckless travelers came to his end. For even the passengers went well armed in those days and were entirely willing to make a hard fight of it before they knuckled under; as witness the encounter at Stein's Pass, where old Cochise and Mangus Colorado got the stage cornered on a bare hilltop with six passengers aboard one afternoon. The writer has given that story in detail elsewhere, but it is worth mentioning here that it took Cochise and Mangus Colorado and their five hundred warriors three long days to kill off the Free Thompson party—whose members managed to take more than one hundred and fifty Apaches along with them when they left this life.

But drivers were canny, and even the Apache with all his skill at ambush could not always entrap them. In the "Tucson Citizen" of April 20, 1872, under the heading "Local Matters," we find this brief paragraph:

The eastern mail, which should have arrived here last Monday afternoon, did not get in until Tuesday. The Apaches attacked it at Dragoon Pass and the driver went back fifteen miles to Sulphur Springs; and on the second trial ran the gauntlet in safety.

Which reads as if there might have been considerable action and much manœuvering on that April day in 1872 where the tracks of the Southern

Pacific climb the long grade up from Wilcox to Dragoon Pass.

There was a driver by the name of Tingley on the Prescott line who had the run between Wickenburg and La Paz back in 1869. He had seen much Indian-fighting and was sufficiently seasoned to keep his head while the lead was flying around him. One February day he was on the box with two inside passengers, Joseph Todd of Prescott and George Jackson of Petaluma, California.

Everything was going well, and the old Concord came down the grade into Granite Wash with the horses on the jump and Tingley holding his foot on the brake. They reached the bottom of the hill, and the driver lined them out where the road struck the level going.

And then, when the ponies were surging into their collars, with the loose sand and gravel half-way to the hubs, somewhere between thirty and forty Apaches opened fire from the brush on both sides of the wagon-track.

The first volley came at close range; so close that in spite of the customary poor marksmanship of their kind the Indians wounded every man in the coach. A bullet got Tingley in the wrist. He dropped the reins, and before he could regain them the team was running away.

The six ponies turned off from the road at the first jump and plunged right into the midst of the Indians. Tingley could see the half-naked savages leaping for the bridles and clawing at the stage door as they strove to get hand-holds; but the speed was too great for them; the old Concord went reeling and bumping through the entire party, leaving several warriors writhing in the sand where the hoofs of the fright-maddened broncos had spurned them.

By this time Tingley had drawn his revolver, and the two passengers joined him in returning the fire of the enemy. Now he bent down and picked up the reins, and within the next two hundred yards or so he managed to swing the leaders back into the road.

From there on it was a race. The Apaches were catching up their ponies and surging along at a dead run to overtake their victims. But Tingley, to use the expression of the old-timers, poured the leather into his team, and kept the long lead which he had got.

The stage pulled up at Cullen's Station with its load of wounded; and word was sent to Wickenburg for a doctor, who arrived in time to save the lives of the two inside passengers, although both men were shot through the body.

Stage-driver and shotgun messenger usually saw plenty of perilous adventures during the days of Mangus Colorado, Cochise, Victorio, Nachez, and Geronimo; but if one was hungry for Indian-fighting in those times he wanted to be a mule-skinner. The teamsters became so inured to battling against Apaches that the cook who, when the savages attacked the camp near Wickenburg one morning before breakfast, kept on turning flapjacks during the entire fight and called his companions to the meal at its conclusion, is but an example of the ordinary run of wagon-hands. That incident, by the way, is vouched for in the official history of Arizona.

Bronco Mitchel's experiences afforded another good illustration of the hazards of freighting. In the latter seventies and the early eighties, when Victorio, Nachez, and Geronimo were making life interesting for settlers, he drove one of those long teams of mules which used to haul supplies from Tucson to the military posts and mining camps of southeastern Arizona. Apparently he was a stubborn man, else he would have forsaken this vocation early in the game.

At Ash Springs near the New Mexican boundary a wagon-train with which he was working went to camp one hot summer's day. They had been warned against the place by some one who had seen Apaches lurking in the vicinity; but the animals needed water and feed, and the wagon-master took a chance. Bronco Mitchel, who was young then, and a foreigner who was cooking for the outfit were placed on sentry duty while the mules were grazing.

The heat of the early afternoon got the best of Bronco Mitchel as he sat on the hillside with his back against a live-oak tree; and after several struggles to keep awake, he finally dropped off. How long he had been sleeping he never was able to tell, but a shot awakened him.

He opened his eyes in time to see the whole place swarming with Apaches. The cook lay dead a little way from him. The rest of his companions were making a desperate fight for their lives; and a half-dozen of the Indians, who had evidently just caught sight of him, were heading for him. There

was one thing to do, and no time to lose about it. He ran as he had never run before, and after a night and day of wandering was picked up, all but dead, by a squad of scouting cavalry.

One evening two or three years later Bronco Mitchel was freighting down near the border, and he made his camp at the mouth of Bisbee Cañon. The mules were grazing near by, and he was lying in his blankets under the trail-wagon, with a mongrel puppy, which he carried along for company, beside him.

Just as he was dropping off to sleep the puppy growled. Being now somewhat experienced in the ways of the Territory, Bronco Mitchel immediately clasped his hands over the little fellow's muzzle and held him there, mute and struggling.

He had hardly done this when the thud of hoofs came to his ears; and a band of Apaches appeared in the half-light passing his wagon. There was a company of soldiers in camp within a mile or two, and the savages were in a hurry; wherefore they had contented themselves with stealing the mules and forbore from searching for the teamster, who lay there choking the puppy as they drove the plundered stock within three yards of him.

Now it so happened that Bronco Mitchel's team included a white mare, who was belled; for mules will follow a white mare to perdition if she chooses to wander thither. And knowing the ways of that mare, Bronco Mitchel was reasonable certain that she would seize the very first opportunity to stray from the camp of her captors—just as she had strayed from his own camp many a time—with all the mules after her. So when the Indians had gone far enough to be out of earshot he took along his rifle, a bridle, and canteen, and dogged their trail. He did not even go to the trouble of seeking out the soldiers but hung to the tracks alone, over two ridges of the Mule Mountains and up a lonely gorge—where, according to his expectations, he met his stock the next day and, mounting the old bell mare, ran them back to Bisbee Cañon.

Other encounters with Victorio's renegades enriched the teamster's store of experience, but his narrowest escape remained as the climax of the whole list during the days when old Geronimo was off the reservation. One torrid noon he had watered his mules and drawn his lead and trail wagons off the road over in the San Simon country.

At the time it was supposed that no renegades were within a hundred miles, and Bronco Mitchel felt perfectly safe in taking a siesta under one of the big vehicles. Suddenly he awakened from a sound sleep; and when his eyes flew open he found himself gazing into the face of an Apache warrior.

The Indian was naked save for his turban, a breech-clout, his boot-moccasins, and the usual belt of cartridges. Even for an Apache he was unusually ugly; and now as he saw the eyes of the white man meeting his, he grinned. It was such a grin as an ugly dog gives before biting. At that instant Bronco Mitchel was laying flat on his back.

An instant later, without knowing how he did it, Bronco Mitchel was on all fours with the wagon between him and the renegade. In this posture he ran for some distance before he could gather his feet under him; and to stimulate his speed there came from behind him the cracking of a dozen rifles. He rolled into a shallow arroyo and dived down its course like a hunted rabbit.

Once he took enough time to look back over his shoulder and saw the turbaned savages spreading out in his wake. After that he wasted no energy in rearward glances, but devoted all his strength to the race, which he won unscathed, and kept on teaming thereafter until the railroad spoiled the business.

Such incidents as these of Bronco Mitchel's, however, were all in the day's work and weren't regarded as anything in particular to brag about in those rough times. As a matter of fact the "Weekly Arizonian" of May 15, 1869, gives only about four inches under a one-line head to the battle between Tully & Ochoa's wagon-train and three hundred Apaches, and in order to get the details of the fight one must go to men who heard its particulars narrated by survivors.

Santa Cruz Castañeda was the wagon-master, an old-timer even in those days, and the veteran of many Indian fights. There were nine wagons in the train, laden with flour, bacon and other provisions for Camp Grant, and fourteen men in charge of them. The Apaches ambushed them near the mouth of a cañon not more than ten miles from the post.

Somehow the wagon-master got warning of what was impending in time to corral the wagons in a circle with the mules turned inside the enclosure. The

teamsters disposed themselves under the vehicles and opened fire on the enemy, who were making one of those loose-order rushes whereby the Apache used to love to open proceedings if he thought he had big enough odds.

Before the accurate shooting of these leather-faced old-timers the assailants gave back. When they had found cover they sent forward a warrior, who advanced a little way waving a white cloth and addressed Santa Cruz in Spanish.

“If you will leave these wagons,” the herald said, calling the wagon-master by name, “we will let all of you go away without harming you.”

To which Santa Cruz replied:

“You can have this wagon-train when I can’t hold it any longer.”

The Apache translated the words and backed away to the rocks from behind which he had emerged. And the fight began again with a volley of bullets and a cloud of arrows. At this time there were about two hundred Indians in the ambushing party, and they were surrounding the corral of wagons.

Occasionally the Apaches would try a charge; but there never was a time on record when these savages could hold a formation under fire for longer than a minute or two at the outside; and the rushes always broke before the bullets of the teamsters. Between these sorties there were long intervals of desultory firing—minutes of silence with intermittent pop-popping to vary the deadly monotony. Once in a while the surrounding hillsides would blossom out with smoke-puffs, and the banging of the rifles would merge into a sort of long roll.

Always the teamsters lay behind the sacks of flour which they had put up for breastworks, lining their sights carefully, firing with slow deliberation. Now and again a man swore or rolled over in limp silence; and the sandy earth under the wagons began to show red patches of congealing blood.

By noon the forces of the enemy had been augmented by other Apaches who had come to enjoy the party until their number now reached more than three hundred. And the afternoon sun came down hot upon the handful of white men. Ammunition began to run low.

The day dragged on and the weary business kept up until the sun was seeking the western horizon, when a squad of seven cavalymen on their way from Camp Grant to Tucson happened to hear the firing. They came charging into the battle as enthusiastically as if they were seven hundred, and cut right through the ring of the Apaches.

Under one of the wagons the sergeant in charge of the troopers held counsel with Santa Cruz Castañeda. Cartridges were getting scarce; the number of the Apaches was still growing; there was no chance of any other body of soldiers coming along this way for a week or so at the least.

“Only way to do is make a break for it,” the sergeant said.

The wagon-master yielded to a fate which was too great for him and consented to abandon the train. They bided their time until what seemed a propitious moment and then, leaving their dead behind them, the sixteen survivors—which number included the seven soldiers—made a charge at the weakest segment of the circle. Under a cloud of arrows and a volley of bullets they ran the gantlet and came forth with their wounded. Hanging grimly together, they retreated, holding off the pursuing savages, and eventually made their way to Camp Grant.

Now the point on which the little newspaper item dwells is the fact that the Indians burned the entire wagon-train, entailing a loss of twelve thousand dollars to Tully & Ochoa and of twenty thousand dollars to the United States government. On the heroics it wastes no type. It seems to have been regarded as bad taste in those days to talk about a man’s bravery. Either that, or else the bravery was taken for granted.

In that same cañon near Camp Grant two teamsters died, as the berserks of old used to like to die, taking many enemies with them to the great hereafter. James Price, a former soldier, was the name of one, and the name which men wrote on the headboard of the other was Whisky Bill. By that appellation you may sketch your own likeness of him; and to help you out in visualizing his partner, you are hereby reminded that the gray dust of those Arizona roads used to settle into the deep lines of the mule-skinners’ faces beyond all possibility of removal; the sun and wind used to flay their skins to a deep, dull red.

Whisky Bill and Jim Price with an escort of two cavalry troopers were driving two wagons of Thomas Venable's, loaded with hay for Camp Grant, when fifty Apaches ambushed them in the cañon. Price was killed at the first volley and one of the soldiers was badly wounded in the face.

The three living men took refuge under the wagons and stood off several rushes of the savages. Then the soldier who had been wounded got a second bullet and made up his mind he would be of more use in trying to seek help at Camp Grant than in staying where he was. He managed to creep off into the brush before the Indians got sight of him.

Now Whisky Bill and the other soldier settled down to make an afternoon's fight of it, and for three hours they held off the savages. Half a dozen naked bodies lay limp among the rocks to bear witness to the old teamster's marksmanship when a ball drilled him through the chest and he sank back dying.

There was only one chance now for the remaining trooper, and he took it. With his seven-shot rifle he dived out from under the wagon and gained the nearest clump of brush. At once the Apaches sallied forth from their cover in full cry after him.

Heedless of their bullets, he halted long enough to face about and slay the foremost of his pursuers; then ran on to a pile of rocks, where he made another brief stand, only to leave the place as his enemies hesitated before his fire. Thus he fled, stopping to shoot when those behind him were coming too close for comfort; and eventually they gave up the chase.

In Camp Grant, where he arrived at sundown, he found his fellow-trooper, badly wounded but expected to live, under care of the post surgeon. And the detachment who went out after the renegades buried the two teamsters beside the road where they had died fighting.

One against many; that was the rule in these grim fights. But the affair which took place on the Cienega de Souza, fifteen miles above the old San Simon stage-station and twenty-five miles from Port Bowie, tops them all when it comes to long odds. On October 21, 1871, one sick man battled for his life against sixty-odd Apaches and—won out.

R. M. Gilbert was his name; he was ranching and for the sake of mutual aid in case of Indian raids he had built his adobe house at one end of his

holding, within two hundred yards of his neighbor's home. The building stood on bare ground at the summit of a little rise near the Cienega bottom, where the grass and tulles grew waist-high.

Early in the month of October Gilbert was stricken with fever, and Richard Barnes, the neighbor, moved into his house to take care of him. The patient dragged along after a fashion until the early morning of the twenty-first found him wasted almost to skin and bone, weak, bedridden. And about six o'clock that morning Barnes left the house to go to his own adobe.

The Apaches, according to their habit when they went forth to murder isolated settlers or prospectors, had chosen the dawn for the hour of attack, and they were lying in the tall grass in the Cienega bottom when Barnes emerged from the building. They let him go almost to the other adobe before they opened fire; and he dropped at the volley, dying from several wounds.

Then Gilbert, who had not stirred from his bed for many days, leaped from his blankets and took down a Henry rifle from the cabin wall. He had been weak; now that thing which men call "sand" gave strength unto him; and he ran from the house to rescue his companion.

The Apaches were rushing from the tulles toward the prostrate form. He paused long enough to level his rifle and fire; then came on again. And the savages fell back. It was easier to bide in the shelter of the tulles and kill off this mad white man than to show themselves and run a chance of getting one of his bullets.

They reasoned well enough; but something mightier than logic was behind Gilbert that morning. With the strength which comes to the fever-stricken in moments of supreme excitement he reached his friend, picked him up, and while the bullets of his enemies kicked up dust all about him bore him on his shoulders back into the cabin. There he laid him down and proceeded to hold the place against besiegers.

The Apaches deployed until they were surrounding the house. Then they opened fire once more, and as they shot they wriggled forward, coming ever closer until some of them were so near that they were able to place their bullets through the rude loopholes which the settler had made for defense of his home.

All the morning the battle went on. Sometimes the savages varied their tactics by rushes and even thrust the barrels of their rifles through the windows. The room was filled with smoke. During lulls in the firing Gilbert heard the groaning of his companion; he heard the moans change to the long, harsh death-rattle.

Some time during the noon-hour as he was standing at a loophole shooting at a bunch of naked, frowzy-haired warriors who had appeared in front of the building, an Apache brave who had stolen up behind the adobe took careful aim through a broken window and got him in the groin. But the sick man bound a handkerchief about the wound and dragged himself from window to window, loading his rifle, firing whenever a turban showed.

About midafternoon a venturesome group of warriors rushed the side hill, gained the cabin wall and flung bundles of blazing fagots on the roof. And within ten minutes the inside of the place was seething with smoke-clouds; showers of sparks were dropping on the floor; flaming shreds of brush were falling all about the sick man.

He groped his way to the bed and called Barnes. There was no answer. He bent down and peered through the fumes at the other's face. Death had taken his friend.

Gilbert loaded his rifle and a revolver. With a weapon in either hand he flung open the door, and as he ran forth he saw in the hot afternoon sunshine the shadow of an Indian who was hiding behind a corner of the building. He leaped toward the place and as the warrior was stepping forth shot him in the belly. Then he fled for the tulles in the Cienega bottom.

Under a shower of bullets he gained the shelter of the reeds. And during all the rest of that afternoon he lay there standing off the Apaches. When darkness came he crawled away. All night and all the next day he traveled on his hands and knees and finally reached the hay camp of David Wood, sixteen miles away.

Wood dressed his wounds and sent word to Camp Bowie, and a troop of cavalry chased the renegades into the Chiracahua Mountains, where they eventually escaped, to make their way back to the reservation in time for next ration-day.

These tales are authentic, and are but a few examples of the battles which the old-timers fought during the years while they were winning the Southwest away from the Indians. Some of those old-timers are living to this day.

There is one of them dwelling in Dragoon Pass, where the mountains come down to the lowlands like a huge promontory fronting the sea. Uncle Billy Fourrs is his name; and if you pass his place you can see, on a rocky knoll, the fortress of boulders which he built to hold his lands against the renegades back in the seventies.

Not many years ago some Federal agents had Uncle Billy up in Tucson on a charge of fencing government land, for according to the records he had not gone through the formality of taking out some of the requisite papers for proper possession. That case is one instance of a man pleading guilty and getting acquittal.

For Uncle Billy Fourrs acknowledged the formal accusation and still maintained the land was his own.

“How,” asked the government prosecutor, “did you get it?”

“I took it away from the Indians,” was the answer. And the jury, being an Arizona jury, promptly acquitted him. Which, was, when you come to think over such incidents as the foregoing, only simple justice.

THE OVERLAND MAIL

From the time when the first lean and bearded horsemen in their garments of fringed buckskin rode out into the savage West, men gave the same excuse for traveling that hard road toward the setting sun.

The early pathfinders maintained there must be all manner of high-priced furs off there beyond the sky-line. The emigrants who followed in the days of '49, informed their neighbors that they were going to gather golden nuggets in California. The teamsters who drove the heavy freight-wagons over the new trails a few years later told their relatives and friends that they were going West to better their fortunes. And when the Concord coaches came to carry the mail between the frontier settlements and San Francisco, the men of wealth who financed the different lines announced there was big money in the ventures; the men of action who operated them claimed that high wages brought them into it.

So now you see them all: pathfinder, argonaut, teamster, stage-driver, pony-express rider, and capitalist, salving their consciences and soothing away the trepidations of their women-folk with the good old American excuse that they were going to make money.

As a matter of fact that excuse was only an excuse and nothing more. In their inmost hearts all these men knew that they had other motives.

There was one individual who did not try to hoodwink himself or others about this Western business, and if you will but take the time to look into his case you will be able easily to diagnose an itching which was troubling all the rest of them.

That Individual was usually taken most acutely with his ailment on a warm May morning, one of those mornings when the lawless youths of the village decided to play hooky in the afternoon and test the temperature of the swimming-hole. On such a morning he was to be found somewhere near the center of the school-room, this being the point most remote from the distraction of open windows and hence selected for him by the teacher. He was seated at a small desk whose top was deeply scored by carven initials

and monograms of rude design, all inked in to give them the boldness of touch necessary when one would have his art impress the beholder. An open book lay on that desk-top but the eyes of the Individual were not focused on its pages.

He was gazing—aslant so that the teacher would not detect him at it—through one of those remote open windows. And he was not seeing the roofs of the little town or the alluring line of low wooded bluffs across the river. He was seeing swarms of Indians mounted bare-back on swift ponies.

Swarms and swarms of them, stripped to the waist, befeathered, trousered in tightly fitting buckskin, they were defying all the laws of gravitation by the manner in which every one clung by a single heel to his mustang, allowing his body to droop alongside in a negligently graceful attitude. These savages were circling round and round a stage-coach. And on the top of that stage-coach, with his trusty rifle at his shoulder—while the driver beside him died a painful death,—sat the Individual himself. None other. And he was certainly playing havoc with those redskins.

We need not undergo the weary ordeal of waiting with him while the clock's slothful hands creep around the dial. We may skip the interval—as he would do ever so gladly if he only could—and see him that night as he climbs from his bedroom window, crawls down the woodshed roof, and drops from the low eaves to make his way across the vacant lot next door and thence—out West.

As far perhaps as the next town, which lies seven miles or so away; where he is overhauled and ignominiously dragged back to civilization.

That Individual—the only one of them all who did not attain the consummation of his hopes, the only one who had to stay at home—is the sole member of the foregoing list who acknowledged his true motives. For he asserted loudly, and with lamentations, that the spirit of adventure was blazing within him; he wanted to go out West to fight Indians and desperadoes.

Resisting the temptation to indulge in dissertation concerning the beneficial effects of the dime-novel on the morale of successive younger generations, we return to the men who said that they went beyond the Mississippi to gain money. Like the schoolboy they were hot with the lust for adventure. The

men of action wanted to risk their lives, and the men of wealth wanted to risk their dollars.

Which does not imply that the latter element were anxious to lose those dollars any more than it implies that the former expected to lose their lives. But both were eager for the hazard.

Like the schoolboy all of them dreamed dreams and saw visions. And the dreams were realized; the visions became actualities. Few of them justified their excuse of money-making; many came out of the adventure poorer in this world's goods than when they went into it. But every man of them had the time of his life and lived out his days with a wealth of memories more precious than gold; memories of a man's part in a great rough drama.

The Winning of the West, that drama has been called. Perhaps no act in the play attained the heights which were reached by the last one before the coming of the railroad, the one with which this story has to deal, wherein bold men allied themselves on different sides to get the contract of carrying the mails by stage-coaches on schedule time across the wilderness.

And in the tale of this great struggle there is another motive in addition to the love of adventure—and like that love, unacknowledged by those whom it stirred,—the strong instinctive desire for a closer union which exists among all Americans.

In the beginning there was a frontier two hundred miles or so west of the Mississippi River. Behind that frontier wide-stacked wood-burning locomotives were drawing long trains on tracks of steel; steamers came sighing up and down the muddy rivers; cities smeared the sky with clouds of coal smoke; under those sooty palls men in high hats and women in enormous hoop-skirts passed in afternoon promenade down the sidewalks; newspapers displayed the day's tidings in black head-lines; the telegraph flashed messages from one end of that land to the other; and where the sharp church steeple of the most remote village cut the sky, the people read and thought and talked the same things which were being discussed in Delmonico's at the same hour.

Beyond the Sierra Nevadas there was another civilization. In San Francisco hotel lobbies men and women passed and repassed one another dressed in Eastern fashions—some months late, but Eastern fashions none the less.

Newspapers proclaimed the latest tidings from the East in large type. Men were falling out over the same political issues which embroiled men by the Atlantic seaboard; they were embarking in the same sort of business ventures.

But two thousand miles of wilderness separated these two portions of the nation. That vast expanse of prairies as level as the sea, of sage-brush plains, of snow-capped mountains and silent, deadly deserts, was made more difficult by bands of hostile Indians.

In Europe such an interval would have remained for centuries, to be spanned by the slow migration of those whom ill-fortune and bad government had driven from the more crowded communities on each side. During that time these two civilizations would have gone on in their own ways developing their own distinct customs, until in the end they would have become separate countries.

But the people east of the Mississippi and the people west of the Sierras were Americans, and the desire for a close union was strong within them. Their business habits were such that they could not carry on commercial affairs without it. Their political beliefs and their social tendencies kept them chafing for it. And furthermore it was their characteristic not to acknowledge nature's obstacles as permanent. Two thousand miles of wild prairie, mountain ranges, and deserts simply meant a task, the more blithely to be undertaken because it was made hazardous by the presence of hostile savages.

So now the East began to cry to the West and the West to the East, each voicing a desire for quicker communication, and to get letters from New York to San Francisco in fast time became one of the problems of the day.

The first step toward solution was the choice of a route, and while this was up to Washington, the proof on which it rested was up to the men of wealth and the men of action. Immediately two rival groups began striving, each to prove that its route was the quickest. Russel, Majors & Waddel, who held large freighting contracts on the northern road, from Independence, Missouri, via Salt Lake to Sacramento, bent their energies to demonstrating its practicability; the Wells-Butterfield coterie of stage and express men undertook to show that the longer pathway from St. Louis by way of the Southwestern territories to San Francisco was best.

In 1855 Senator W. M. Gwinn of California, who had conceived the idea with F. B. Ficklin, general-superintendent of the Russel, Majors & Waddel Co., introduced a bill in Congress for bringing the mails by horseback on the northern route, but the measure was pigeonholed. Snow in the mountains was the main argument against it.

In 1857 James E. Birch got the contract for carrying a semimonthly mail from San Antonio, Texas, to San Diego, and the southern route's champions had the opportunity to prove their contention.

Save for a few brief stretches in Texas and Arizona there was no wagon road. El Paso and Tucson were the only towns between the termini. A few far-flung military outposts, whose troops of dragoons were having a hard time of it to hold their own against the Comanches and Apaches, afforded the only semblance of protection from the Indians.

Horsemen carried the first mail-sacks across this wilderness of dark mountains and flaming deserts. On that initial trip Silas St. Johns and Charles Mason rode side by side over the stretch from Cariso Creek to Jaeger's Ferry, where Yuma stands to-day. That ride took them straight through the Imperial valley. The waters of the Colorado, which have made the region famous for its rich crops, had not been diverted in those days. It was the hottest desert in North America; sand hills and blinding alkali flats, and only one tepid spring in the whole distance. One hundred and ten miles and the two horsemen made it in thirty-two hours—without remounts.

The company now began to prepare the way for stage-coaches. During the latter part of November, St. Johns and two companions drove a herd of stock from Jaeger's Ferry to Maricopa Wells. The latter point had been selected for a relay station because of water and the presence of the friendly Pima and Maricopa Indians, who kept the Apaches at a distance. During that drive of something like two hundred miles the pack-mule lost his load one night in the desert. The men went without food for three days, and for thirty-six hours traveled without a drop of water in their canteens.

The first stage left San Diego for the East in December with six passengers. Throughout the trip a hostler rode behind herding a relay team. The driver kept his six horses to their utmost for two hours; then stock and wearied passengers were given a two hours' rest, after which the fresh team was hooked up and the journey resumed.

In this manner they made about fifty miles a day. Luck was with them. There were several runaways along the route; at Port Davis, Texas, they found the garrison, whom they had expected to supply them with provisions according to orders from Washington, short of food, and they subsisted for the next five days on what barley they felt justified in taking away from the horses; they arrived at Camp Lancaster just after the departure of a Comanche war-party who had stolen all the stock, and were obliged to go two hundred miles further before they could get a relay. But these incidents, and a delay or two because of swollen rivers, were accounted only small mishaps. They came through with their scalps and the mail-sacks—only ten days behind the schedule.

Thereafter the Birch line continued its service; and letters came from San Francisco to St. Louis in about six weeks. Occasionally Indians massacred a party of travelers; now and then renegade whites or Mexicans robbed the passengers of their belongings and looted the mail-sacks. But such things were no more than any one expected. James Birch had proved his point. The southern route was practical, and in 1858 the government let a six years' contract for carrying letters twice a week between St. Louis and San Francisco, to John Butterfield of Utica, New York.

Thus the Wells-Butterfield interests scored the first decisive victory.

Butterfield's compensation was fixed at \$600,000 a year and the schedule at twenty-five days. The route went by way of Fort Smith, Arkansas, El Paso, Tucson, and Jaeger's Ferry. Tie one end of a loose string to San Francisco and the other to St. Louis on your wall-map; allow the cord to droop in a semicircle to the Mexican boundary, and you will see the general direction of that road, whose length was 2760 miles. Of this nearly two thousand miles was in a hostile Indian country.

Twenty-seven hundred and sixty miles in twenty-five days, meant a fast clip for horses and a lumbering Concord coach over ungraded roads. And such a clip necessitated frequent relays. Which, in their turn, demanded stations at short intervals. While a road gang was removing the ugliest barriers in the different mountain passes—which was all the smoothing away that highway ever got during the stage-coach era—a party went along the line erecting adobe houses. These houses were little forts, well suited for withstanding

the attacks of hostile Indians. The corrals beside them were walled like ancient castle-yards.

William Buckley of Watertown, New York, headed this party. Bands²⁵⁷ of mounted Comanches attacked them on the lonely Staked Plains of western Texas. Apaches crept upon them in the mountains of southwestern New Mexico. Of the battles which they fought history contains no record; but they went on driving the Mexican laborers to their toil under the hot sun, and the chain of low adobe buildings crept slowly westward.

In those days Mexican outlaws were drifting into Arizona and New Mexico from Chihuahua and Sonora; and these cutthroats, to whom murder was a means of livelihood, were almost as great a menace as the Indians. Three of them got jobs on the station building gang and awaited an opportunity to make money after their bloody fashion.

At Dragoon Springs they found their chance.

Here, where the Dragoon Mountains come out into the plain like a lofty granite promontory that faces the sea, the party had completed the walls of a stone corral, within which enclosure a storehouse and stage station were partitioned off. The roofing of these two rooms and some ironwork on the gate remained to be completed. The main portion of the party moved on to the San Pedro River, leaving Silas St. Johns in charge of six men to attend to these details. The three Mexican bandits were members of this little detachment. The other three were Americans.

The place was right on the road which Apache war-parties took to Sonora. For this reason a guard was maintained from sunset to sunrise. St. Johns always awoke at midnight to change the sentries. One starlight night when he had posted the picket who was to watch until dawn, St. Johns went back²⁵⁸ to his bed in the unroofed room that was to serve as station. He dropped off to sleep for an hour or so and was roused by a noise among the stock in the corral. The sound of blows and groans followed.

St. Johns leaped from his blankets just as the three Mexicans rushed into the room. Two of them were armed with axes and the third with a sledge.

The fight that followed lasted less than a minute.

St. Johns kicked the foremost murderer in the stomach, and as the man fell, sprang for a rifle which he kept in the room. The other two attacked him

with their axes. He parried one blow, aimed at his head, and the blade buried itself in his hip. While the man was tugging to free the weapon St. Johns felled him with a blow on the jaw. The third Mexican struck downward at almost the same instant, severing St. Johns' left arm near the shoulder.

Then the white man got his right hand on his rifle and the three murderers fled. They had killed one of the Americans who was sleeping in the enclosure, left another dying near him and the third gasping his last outside the gate.

St. Johns staunched the blood from his wounds and crawled to the top of a pile of grain-sacks whence he could see over the unroofed wall. Here he stayed for three days and three nights. With every sunrise the magpies and buzzards came in great flocks, to sit upon the wall after they had sated themselves in the corral, and watch him. With every nightfall the wolves slunk down from the mountains and fought over the body outside the gate. Night and day the thirst-tortured mules kept up a pandemonium.

A road-grading party came along on Sunday morning. They gave him such first aid as they could and sent a rider to Fort Buchanan for a surgeon. The doctor amputated the arm nine days after the wound had been inflicted. Three weeks later St. Johns was able to ride a horse to Tucson.

Silas St. Johns is offered as a sample of the men who built and operated the overland mail lines. Among the drivers, stock-tenders, and messengers there were many others like him. Iron men, it was not easy to kill them, and so long as there was breath in their bodies they kept on fighting.

John Butterfield and his associates were made of the same stuff as these employees.

How many hundred thousand dollars these pioneer investors put into their line before the turning of a single wheel is not known; it must have been somewhere near a cool million, and this was in a day when millions were not so common as they are now; a day, moreover, when nothing in the business was certain and everything remained to be proved.

They established more than a hundred stage-stations along that semicircle through the savage Southwest. They bought about fifteen hundred mules and horses, which were sent out along the route. To feed these animals, hay

and grain were freighted, in some cases for two hundred miles, and the loads arrived at the corrals worth a goodly fraction of their weight in silver. There was a station in western Texas to which teamsters had to haul water for nine months of the year from twenty-two miles away. At every one of these lonely outposts there were an agent and a stock-tender, and at some it was necessary to maintain what amounted to a little garrison. Arms and ammunition were provided for defense against the savages; provisions were laid in to last for weeks. One hundred Concord coaches were purchased from the Abbot-Downing Co., who had been engaged in the manufacture of these vehicles in the New Hampshire town since 1813; they were built on the thorough-brace pattern, and were regarded as the best that money could buy. Seven hundred and fifty men, of whom a hundred and fifty were drivers, were put on the pay-roll and transported to their stations.

Nearly all this outlay was made before the beginning of the first trip. It was the greatest expenditure of money on a single transportation project of its kind up to this time in America. And there were a thousand hazards of the wilderness to be incurred, a thousand obstacles of nature to be overcome before the venture could be proved practical.

The men of money had done their part now. The line was ready for the opening of traffic. On September 15, 1853, the mail-sacks started from St. Louis and San Francisco. It was up to the men of action to get them through within the schedule.

Twenty-five days was the allowance for the 2760 miles. The westbound coach reached San Francisco about twenty-four hours inside of the limit. On that October evening crowds packed Montgomery Street; the booming of cannon and the crashing of anvils loaded with black powder, the blaring of brass bands and the voices of orators, all mingled in one glad uproar, to tell the world that the people by the Golden Gate appreciated the occasion.

In St. Louis, the eastbound mail was an hour earlier. John Butterfield stepped from the Missouri Pacific train with the sacks, and a great procession was on hand to escort him to the post-office.

Bands and carriages and a tremendous display of red, white, and blue bunting enlivened the whole city. President Buchanan sent a telegram of congratulation.

It looked as if the northern route were out of it for good now, but it remained for the men to keep the southern line in operation. What had been done was only a beginning; the long grind of real accomplishment still lay ahead.

Storm and flood and Indian massacre were incidents; hold-ups and runaways mere matters of routine in carrying on the task. The stock was for the most part unbroken. At nearly every change the fresh team started off on a mad gallop, and if the driver had a wide plain where he could let them go careering through the mesquite or greasewood, while the stage followed, sometimes on two wheels, sometimes on one, he counted himself lucky. There was many a station from which the road led over broken country—along steep side hills, across high-banked washes, skirting the summits of rocky precipices; and on such stretches it was the rule rather than the exception for the coach to overturn.

The bronco stock was bad enough but the green mules were the worst. It was often found necessary to lash the stage to a tree—if one could be found near the station, and if not to the corral fence—while the long-eared brutes were being hooked up. When the last trace had been snapped into place the hostlers would very gingerly free the vehicle from its moorings and, as the ropes came slack, leap for their lives.

They called the route a road. As a matter of fact that term was a far-fetched euphemism. In some places approaches had been dug away to the beds of streams; and the absolutely impassable barriers of the living rock had been removed from the mountain passes. But that was all. What with the long climbs upgrade and the bad going through loose sand or mud, it was always necessary for the driver to keep his six animals at a swinging trot when they came to a level or a downhill pull. Often he had to whip them into a dead run for miles where most men would hesitate to drive a buckboard at a walk.

During the rainy seasons the rivers of that Southwestern land proceeded to demonstrate that they had a right to the name—to which they never pretended to live up at other times—by running bank full. These coffee-colored floods were underlaid by thick strata of quicksands. Occasionally one of them simply absorbed a coach; and, unless the driver was very swift in cutting the traces, it took unto itself two or three mules for good measure.

The Comanche Indians were on the war-path during these years in western Texas. On the great Staked Plain they swooped down on many a stage, and driver and passengers had to make a running fight of it to save their scalps. The Indians attacked the stations, two or three hundred of them in a band. The agents and stock-tenders, who were always on the lookout, usually saw them in time to retreat inside the thick adobe walls of the building, from which shelter they sometimes were able to stand them off without suffering any particular damage. But sometimes they were forced to watch the enemy go whooping away with the stampeded stock from the corral. And now and again there was a massacre.

Under Mangus Colorado, whom historians account their greatest war-chief, the Apaches were busy in New Mexico and Arizona. They worked more carefully than their Texan cousins, and there was a gorge along the line in that section which got the name of Doubtful Cañon because the only thing a driver could count on there with any certainty was a fight before he got through to the other side.

Nor were the Indians the only savage men in that wilderness. Arizona was becoming a haven for fugitives from California vigilance committees and for renegade Mexicans from south of the boundary. The road-agents went to work along the route, and near Tucson they did a thriving business.

Yet with all these enemies and obstacles, it is a matter of record that the Butterfield overland mail was only late three times.

In spite of runaways, bad roads, floods, sand-storms, battles, and hold-ups, the east and west bound stages usually made the distance in twenty-one days. And there was a long period during 1859 when the two mails—which had started on the same day from the two termini—met each other at exactly the half-way point. Apparently the Wells-Butterfield interests had won the struggle. Service was increased to a daily basis and the compensation was doubled. The additional load was handled with the same efficiency that had been shown in the beginning.

It is hard, in these days of steam and gasoline and electricity, to understand how men did such things with horse-flesh. The quality of the men themselves explains that. One can judge that quality by an affair which took place at Stein's Pass.

“Steen’s Pass,” as the old-timers spelled it—and as the name is still pronounced—is a gap in the mountains just west of Lordsburg, New Mexico. The Southern Pacific comes through it to-day. One afternoon Mangus Colorado and Cochise were in the neighborhood with six hundred Apache warriors, when a smoke signal from distant scouts told them that the overland stage was approaching without an armed escort. The two chieftains posted their naked followers behind the rocks and awaited the arrival of their victims.

When one remembers that such generals as Crook have expressed their admiration for the strategy of Cochise, and that Mangus Colorado was the man who taught him, one will realize that Stein’s Pass, which is admirably suited for all purposes of ambush, must have been a terribly efficient death-trap when the Concord stage came rumbling and rattling westward into it on that blazing afternoon.

There were six passengers in the coach, all of them old-timers in the West. And they were known as the Free Thompson party, from the name of the leader. Every one of these men was armed with a late model rifle and was taking full advantage of the company’s rule which allowed the carrying of as much ammunition as one pleased. They had several thousand rounds of cartridges.

Such a seasoned company as this was not likely to go into a place like Stein’s Pass without taking a look or two ahead; and six hundred Apaches were certain to offer some evidence of their presence to keen eyes. Which probably explains why the horses were not killed at once. For they were not. The driver was able to get the coach to the summit of a low bare knoll a little way off the road. The Free Thompson party made their stand on that hilltop.

They were cool men, uncursed by the fear of death, the sort who could roll a cigarette or bite a mouthful from a plug of chewing-tobacco between shots and enjoy the smoke or the cud; the sort who could look upon the advance of overwhelming odds and coolly estimate the number of yards which lay between.

These things are known of them and it is known that the place where they made their stand was far from water, a bare hilltop under a flaming sun, and round about them a ring of yelling Apaches.

There were a few rocks affording a semblance of cover. You can picture those seven men, with their weather-beaten faces, their old-fashioned slouching wide-rimmed hats, and their breeches tucked into their boot-tops. You can see them lying behind those boulders with their leathern cheeks pressed close to their rifle-stocks, their narrowed eyes peering along the lined sights; and then, as time went on, crouching behind the bodies of their slain horses.

And you can picture the turbaned Apaches with their frowzy hair and the ugly smears of paint across their grinning faces. You can see them creeping on their bellies through the clumps of coarse bear-grass, gliding like bronze snakes among the rocks, slowly enough—the Apache never liked the music of a rifle-bullet—but coming closer every hour. Every gully and rock and clump of prickly pear for a radius of a half-mile about that knoll sheltered its portion of the venomous brown swarm.

Night followed day; hot morning grew into scorching noontide; the full flare of the Arizona afternoon came on; and night again. The rifles cracked in the bear-grass. Thin jets of pallid flame spurted from behind the rocks. The bullets kicked up little dust-clouds.

So for three days and three nights. For it took those six hundred Apaches that length of time to kill the seven white men.

But before the last of them died, the Free Thompson party slew between 135 and 150 Indians.

In after years Cochise told of the battle.

“They were the bravest men I ever saw,” he said. “They were the bravest men I ever heard of. Had I five hundred warriors such as they, I would own all of Chihuahua, Sonora, New Mexico, and Arizona.”

That was the breed of men who kept the Butterfield stage line open, and the affair at Stein’s Pass is cited to show something of their character, although it took place after the company began removing its rolling-stock. For in 1860 Russel, Majors & Waddel accomplished a remarkable coup and brought the overland mail to the northern route.

They performed what is probably the most daring exploit in the history of transportation. The story of their venture bristles with action; it is adorned by such names as Wild Bill Hickok, Pony Bob Haslam, Buffalo Bill, and Colonel Alexander Majors.

Colonel Majors held the broadhorn record on the old Santa Fé trail, ninety-two days on the round trip with oxen. He was the active spirit of the firm of Russel, Majors & Waddel. In 1859 these magnates of the freighting business had more than six thousand huge wagons and more than 75,000 oxen on the road between St. Joseph, Missouri, and Salt Lake City, hauling

supplies for government posts and mining companies; they were operating a stage line to Denver where gold excitements were bringing men in droves.

One day in the winter of 1859-60 Senator W. M. Gwinn of California had a meeting with Majors' senior partner, William H. Russel, and several New York capitalists in Washington. Senator Gwinn proposed a plan to show the world that the St. Joseph-San Francisco route was practical throughout the year.

That scheme was the pony express; men on horseback with fresh relays every ten or twelve miles, to carry letters at top speed across the wilderness. Congress had pigeonholed his bill to finance such a venture. He urged now that private capital undertake it, and he talked so convincingly that Russel committed himself to enlist his partners in the enterprise. 268

Russel went back to Leavenworth, Kansas, the headquarters of the firm, and put the matter up to Majors and Waddel. They showed him in a very few minutes that he had been talked into a sure way of losing several hundred thousand dollars. But he reminded them that he had committed himself to the undertaking. They said that settled it; they would stand by him and make his word good.

Their stage line had stations every ten or twelve miles as far as Salt Lake; beyond that point there was not a single building; but within two months from the day when Russel had that talk with Senator Gwinn, the firm had completed the chain of those stations clear to Sacramento, purchased five hundred half-breed mustang ponies which they apportioned along the route, hired eighty riders and what stock-tenders were necessary, and hauled feed and provisions out across the intermountain deserts. They had droves of mules beating down trails through the deep drifts of the Sierras and the Rockies.

On April 3, 1860, Henry Roff swung into the saddle at Sacramento and Alexander Carlyle leaped on a brown mare in St. Joseph, Missouri. While cannon boomed and crowds cheered in those two remote cities, the ponies came toward each other from the ends of that two-thousand-mile trail on a dead run.

At the end of ten miles or so a relay mount was waiting for each rider. As he drew near the station each man let out a long coyote yell; the hostlers led

his animal into the roadway. The messenger charged down upon them, drew rein, sprang to the earth, and while the agent lifted the pouches from one saddle to the other—as quickly as you read these words describing the process—gained the back of his fresh horse and sped on. At the end of his section—the length of these intervals varied from seventy-five to a hundred and twenty-five miles—each rider dismounted for the last time and turned the pouches over to a successor.

In this manner the mail went across prairie and sage-brush plain, through mountain passes where the snow lay deep beside the beaten trail and across the wide silent reaches of the Great American Desert. And the time on that first trip was ten days for both east and west bound pouches.

The riders were light of weight; they were allowed to carry no weapons save a bowie-knife and revolver; the letters were written on tissue-paper; the two pouches were fastened to a leathern covering which fitted over the saddle, and the thing was lifted with one movement from the last horse to the relay animal. When one of these messengers came within earshot of a station he always raised his voice in the long shrill coyote yell, and by day or night, as that signal came down the wind to them, the men who were on duty scrambled to get the waiting horse into its place.

Many of these half-breed mustangs were unbroken; some were famous for their ability at bucking. There is a man in my town, Joe Hand—he would hate to acknowledge that he is getting on in years even now—who used to ride the western end, and he said:

“They’d hold a bad horse for a fellow long enough to let you get the rowels of those big Mex spurs fastened in the hair cinch. Then it was you and that horse for it. The worst of it was that the pony would usually tire himself out with his pitching, and you’d lose time. I remember one that left me pretty badly stove up for a while, but I had the satisfaction of knowing he’d killed himself trying to pile me.”

But bad horses were a part of the game; like bad men every one in the business expected them and took them as a matter of course. The riders of the pony express hardly recall such incidents because of the larger adventures with which their lives were filled.

There was the ride of Jim Moore, for a long time famous among the exploits on the frontier. His route went from Midway station to old Julesburg, one hundred and forty miles across the great plains of western Nebraska. The stations were from ten to fourteen miles apart. Arriving at the end of that grueling journey, he would rest for two days before making the return trip.

One day Moore started westward from Midway station, knowing that his partner, who carried the mail one way while he was taking it the other, was sick at Julesburg. It was a question whether the man would be able to take the eastbound pouches, and if he should not be there was no substitute on hand.

Realizing what might lie ahead of him, Moore pressed each fresh horse to its utmost speed during that westward ride. A man can endure only so long a term of punishment, and he resolved to save himself what minutes he could at the very beginning. He made that one hundred and forty miles in eleven hours.

The partner was in bed, and there was no hope of his rising for a day or two. The weary messenger started toward one of the bunks to get a bit of rest, but before he had thrown himself on the blankets, the coyote yell of the eastbound rider sounded up the road.

It was up to Moore to take the sick man's place now. While the hostlers were saddling a pony and leading it out in front of the station, he snatched some cold meat from the table, gulped down a cup of lukewarm coffee, and hurried outside. He was just in time to swing into the saddle. He clapped spurs to the pony and kept him on a run. So with each succeeding mount; and when he arrived at Midway he had put the two hundred and eighty miles of the round trip behind him in twenty-two hours.

In western Nevada, where the Paiute Indians were on the war-path, several of the stations were little forts, and riders frequently raced for their lives to these adobe sanctuaries. Pony Bob Haslam made his great three hundred and eighty mile ride across this section of scorching desert.

He rode out of Virginia City one day while the inhabitants were frantically working to fortify the town against war-parties whose signal-fires were blazing at the time on every peak for a hundred miles.

When he arrived at the Carson River, sixty miles away, he found that the settlers had seized all the horses at the station for use in the campaign against the savages. He went on without a relay down the Carson to Fort Churchill, fifteen miles farther. Here the man who was to relieve him refused to take the pouches.

Within ten minutes Haslam was in the saddle again. He rode thirty-five miles to the Carson sink; got a fresh horse and made the next thirty miles, without a drop of water; changed at Sand Springs and again at Cold Springs; and after one hundred and ninety miles in the saddle turned the pouches over to J. G. Kelley.

Here, at Smith's Creek, Pony Bob got nine hours' rest. Then he began the return trip. At Cold Springs he found the station a smoking shambles; the keeper and the stock-tender had been killed, the horses driven off by Indians. It was growing dark. He rode his jaded animal across the thirty-seven-mile interval to Sand Springs, got a remount, and pressed on to the sink of the Carson. Afterward it was found that during the night he had ridden straight through a ring of Indians who were headed in the same direction in which he was going. From the sink he completed his round trip of three hundred and eighty miles without a mishap, arriving at the end within four hours of the schedule time.

Nine months after the opening of the line the Civil War began, and the pony express carried the news of the attack on Fort Sumter from St. Joseph to San Francisco in eight days and fourteen hours.

Newspapers and business men had awakened to the importance of this quick communication, and bonuses were offered for the delivery of important news ahead of schedule. President Buchanan's last message had heretofore held the record for speedy passage, going over the route in seven days and nineteen hours. But that time was beaten by two hours in the carrying of Lincoln's inaugural address. Seven days and seventeen hours—the world's record for transmitting messages by men and horses!

The firm of Russel, Majors & Waddel spent \$700,000 on the pony express during the eighteen months of its life; they took in something less than \$500,000. But they accomplished what they had set out to do. In 1860 the Butterfield line was notified to transfer its rolling-stock to the west end of the northern route; their rivals got the mail contract for the eastern portion.

The Wells-Butterfield interests were on the under side now. The change to the new route involved enormous expense; and with the withdrawal of troops at the beginning of the Civil War, Apaches and Comanches plundered the disintegrating line of stations. The company lasted only a short time on the west end of the overland mail and retired. Its leaders now devoted their energies to the express business.

At this juncture a new man got the mail contract. Ben Holliday was his name, and in his day he was known as a Napoleon. Perhaps it was the first time that term was used in connection with American promoters. Holliday, who had begun as a small storekeeper in a Missouri village, had made one canny turn after another until, at the time when the mail came to the northern route, he owned several steamship lines and large freighting interests and was beginning to embark in the stage business. The firm of Russel, Majors & Waddel was losing money, owing in part to bad financial management and in part to the courageous venture of the pony express. Holliday absorbed their property early in the sixties. He was the transportation magnate of his time, the first American to force a merger in that industry.

One of his initial steps was to improve the operation of the stage line. Some of the efficiency methods of his subordinates were picturesque to say the least. In Julesburg, which was near the mouth of Lodge Pole Creek in northeastern Colorado, the agent was an old Frenchman, after whom the place had been named. This Jules had been feathering his own nest at the expense of the company, and the new management supplanted him with one Jack Slade, whose record up to that time was either nineteen or twenty killings. Slade was put in charge at Julesburg with instructions to clean up his division.

While the new superintendent was exterminating such highway robbers and horse-thieves as Jules had gathered about him in this section, his predecessor was biding in the little settlement, watching for a chance to play even.

One day Slade came into the general store near the station, and the Frenchman, who had seen a good opportunity for ambush here, fired both barrels of a double-barreled shotgun into his body at a range of about fifty feet.

Slade took to his bed. But he was made of the stuff which absorbs much lead without any great amount of permanent harm. He was up again in a few weeks. He hunted down Jules, who had taken refuge in the Indian country to the north on hearing of his recovery. He brought the prisoner back to Julesburg, and bound him to the snubbing-post in the middle of the stage company's corral.

Accounts of what followed differ. Some authorities maintain that Slade killed Jules. Others, who base their assertions on the statement of men who said they were eye-witnesses, tell how Slade enjoyed himself for some time filling the prisoner's clothing with bullet holes and then exclaimed,

"Hell! You ain't worth the lead to kill you." And turned the victim loose.

But all narrators agree on this; before Slade unbound the living Jules—or the dead one, whichever it may have been—he cut off the prisoner's ears and put them in his pocket.

It may be noted in passing that this truculent efficiency expert went wrong in after years and wound up his days at the end of a rope in Virginia City, Montana.

Ben Holliday carried the mails overland throughout the early sixties. But during the summer of 1864 the Indians of the plains, for the first time in their history, made a coalition. They united in one grand war-party against the outposts along the line, and for a distance of four hundred miles they destroyed stations, murdered employees, and made off with live stock. The loss to the company was half a million dollars.

It crippled Holliday. And the government so delayed consideration of his claims for reimbursement that he was glad to sell the property. The firm of Wells Fargo, who had been increasing their express business until they virtually monopolized that feature of common carrying throughout the West at the close of the Civil War, took the line over. Wells Fargo! It was the old Wells Butterfield Co. again. The first winners in the struggle were the last.

The railroad came. Men said that the day of adventure was over. But this adventure has not ended yet.

While this story was being written another pioneer died on that overland mail route. And when his aëro-plane came fluttering down out of a driving snowstorm to crash, in a mass of tangled wreckage, on the side of Elk

Mountain, Wyoming, Lieutenant E. V. Wales went to his death within a rifle-shot of the road where so many of his predecessors gave up their lives trying—even as he was then striving—to quicken communication between the Atlantic and the Pacific.

BOOT-HILL

Boot-Hill! Back in the wild old days you found one on the new town's outskirts and one where the cattle trail came down to the ford, and one was at the summit of the pass. There was another on the mesa overlooking the water-hole where the wagon outfits halted after the long dry drive. The cow-boys read the faded writing on the wooden headboards and from the stories made long ballads which they sang to the herds on the bedding grounds. The herds have long since vanished, the cow-boys have ridden away over the sky-line, the plaintive songs are slipping from the memories of a few old men, and we go riding by the places where those headboards stood, oblivious.

Of the frontier cemeteries whose dead came to their ends, shod in accordance with the grim phrase of their times, there remains one just outside the town of Tombstone to the north. Here straggling mesquite bushes grow on the summit of the ridge; cacti and ocatilla sprawl over the sun-baked earth hiding between their thorny stems the headboards and the long narrow heaps of stones which no man could mistake. Some of these headboards still bear traces of black-lettered epitaphs which tell how death came to strong men in the full flush of youth. But the vast majority of the boulder heaps are marked by cedar slabs whose penciled legends the elements have long since washed away.

The sun shines hot here on the summit of the ridge. Across the wide mesquite flat the granite ramparts of the Dragoons frown all the long day, and the bleak hill graveyard frowns back at them. Thus the men who came to this last resting-place frowned back at Death.

There was a day when every mining camp and cow-town from the Rio Grande to the Yellowstone owned its boot-hill; a day when lone graves marked the trails and solitary headboards rotted slowly in the unpeopled wilderness. Many of these isolated wooden monuments fell before the long assaults of the elements; the low mounds vanished and the grass billowed in the wind hiding the last vestiges of the leveled sepulchers. Sometimes the spot was favorable; outfits rested there; new headboards rose about the first

one; for the road was long and weary, the fords were perilous from quicksands; thirst lurked in the desert, and the Indians were always waiting. The camp became a settlement, and in the days of its infancy, when there was no law save that of might, the graveyard spread over a larger area. There came an era when a member of that stern straight-shooting breed who blazed the trails for the coming of the statutes wielded the powers of high justice, the middle, and the low. Outlaw and rustler opposed the dominion of this peace officer. Then the cemetery boomed like the young town. Finally things settled down to jury trials and men let lawyers do most of the fighting with forensics instead of forty-fives. Churches were built and school-houses; a new graveyard was established; brush and weeds hid the old one's leaning headboards. Time passed; a city grew; the boot-hill was forgotten.

This is a chronicle of men whose bones lie in those vanished boot-hills.²⁷⁹ If one could stand aside on the day of judgment and watch them pass when the brazen notes of the last trump are growing fainter, he would witness a brave procession. But we at least can marshal the shadowy host from fast waning memories and, looking upon some of their number, recall the deeds they did, the manner of their dying.

Here then they come through the curtain of time's mists, Indian fighter, town marshal, faro-dealer, and cow-boy. There are a few among them upon whom it is not worth while to gaze, those whose lives and deaths were unfit for recording; there are a vast multitude whose heroic stories were never told and never will be; and there are some whose deeds as they have come down from the lips of the old-timers should never die.

Thus in the forefront pass lean forms clad for the most part in garments fringed with buckskin. You can see where some have torn off portions of the fringes to clean their rifles.

Old-fashioned long-barreled muzzle-loaders, these rifles; and powder-horns hang by the sides of the bearers. They are long-haired men; and their faces are deeply burned by sun and wind, one hundred and eighty-three of them; and where they died, fighting to the last against four thousand of Santa Ana's soldiers, rose the first boot-hill. That was in San Antonio, Texas, at the building called the Alamo; and in this day, when schoolboys who can describe Thermopylæ in detail know nothing of that far finer stand, it will

do no harm to dwell on a proud episode ignored by most text-book histories.

On the fifth day of March, 1836, San Antonio's streets were resonant with the heavy tread of marching troops, the clank of arms and the rumble of moving artillery. Four thousand Mexican soldiers were being concentrated on one point, a little mission chapel and two long adobe buildings which formed a portion of a walled enclosure, the Alamo.

For nearly two weeks General Santa Ana had been tightening the cordon of cavalry, infantry, and artillery about the place. It housed one hundred and eighty-three lank-haired frontiersmen, a portion of General Sam Houston's band who had declared for Texan independence. The Mexicans had cut them off from water; their food was running low. On this day the dark-skinned commander planned to take the square. His men had managed to plant a cannon two hundred yards away. When they blew down the walls the infantry would charge. It only remained for them to load the field-piece. Bugles sounded; officers galloped through the sheltered streets where the foot soldiers were held in waiting. There came from the direction of the Alamo the steady rat-tat-tat of rifles. The hours went by but the cannon remained silent.

A little group of lean-faced men were crouching on the flat roof of the large out-building. The most of them were clad in fringed garments of buckskin; here and there was one in a hickory shirt and home-spun jeans. Six of them, some bareheaded and some with hats whose wide rims dropped low over their foreheads, were clustered about old Davy Crockett, frontiersman and in his day a member of Congress. Always the six were busy, with ramrods, powder-horns, and bullets, loading the long-barreled eight-square Kentucky rifles. The grizzled marksman took the cocked weapons from their hands; one after another, he pressed each walnut stock to his shoulder, lined the sights, pulled the trigger, and laid the discharged piece down, to pick up its successor.

He crouched there on the flat roof facing the Mexican cannon. As fast as men came to load it, he fired. Sometimes a dozen soldiers rushed upon the muzzle of the field-piece surrounding it. At such moments Davy Crockett's arms swept back and forth with smooth unhurried swiftness and his sinewy fingers relaxed from one walnut stock only to clutch another; his hands

were never empty. Always a little red flame licked the smoke fog before him like the tongue of an angered snake. He was getting on in years but in all his full life his technic had never been so perfect, his artistry of death so flawless, as on this day which prefaced the closing of his chapter. The bodies of his enemies clogged the space about their cannon; the rivulets of red trickled from the heap across the roadway. The long hours passed. Darkness came. The field-piece remained silent.

Long before daylight the next morning the four thousand were marching in close ranks to gather for the final assault. The sun had not risen when they made the charge. The infantry came first; the cavalry closed in behind them driving them on with bared sabers. The Americans took such toll with their long-barreled rifles from behind the barricaded doors and windows that the foot-soldiers turned to face the naked swords rather than endure that fire. The officers reformed them under cover; they swept forward again, ²⁹³and again fell back. Santa Ana directed the third charge in person. They swarmed to the courtyard wall and raised ladders to its summit. The men behind bore those before them onward and literally shoved them up the ladders. They overwhelmed the frontiersmen through sheer force of numbers. Colonel W. B. Travis fell fighting hand to hand here. The courtyard filled with dark-skinned soldiers.

The Alamo was fallen. But there remained for the lean hard-bitten men of Texas, who had retired within the adobe buildings, the task of dying as fighting men should die. It was now ten o'clock, nearly six hours since the beginning of the first advance. It took the four thousand two hours more to finish the thing.

For every room saw its separate stand; and every stand was to the bitter end.

There were fourteen gaunt frontiersmen in the hospital, so weak with wounds that they could not drag themselves from their tattered blankets. They fought with rifles and pistols until forty Mexicans lay heaped dead about the doorway. The artillery brought up a field-piece; they loaded it with grape-shot and swept the room, and then at last they crossed the threshold.

Colonel James Bowie, who brought into use the knife that bears his name, was sick within another apartment. How that day's noises of combat roused the old fire within his breast and how he lay there chafing against the

weakness which would not let him raise his body, one can well imagine. A dozen Mexican officers rushed into the place, firing as they came. Colonel Bowie waited until the first of them was within arm's length. Then he reached forth, seized the man by the hair and, dying, plunged the knife that bore his name hilt-deep into the heart of his enemy.

So they passed in stifling clouds of powder smoke with the reek of hot blood in their nostrils. The noon hour saw Davy Crockett and five or six companions standing in a corner of the shattered walls; the old frontiersman held a rifle in one hand, in the other a dripping knife, and his buckskin garments were sodden, crimson. That is the last of the picture.

"Thermopylæ had its messenger of defeat. The Alamo had none." So reads the inscription on the monument erected in latter years by the State of Texas to commemorate that stand. The words are true. But the Alamo did leave a memory and the tale of the little band who fought in the sublimity of their fierceness while death was slowing their pulses did much toward the development of a breed whose eyes were narrow, sometimes slightly slanting, from constant peering across rifle sights under a glaring sun.

The procession is passing; trapper and Indian fighter; teamsters with dust in the deep lines of their faces—dust from the long dry trail to old Santa Fé; stage-drivers who have been sleeping the long sleep under waving wheat-fields where alkali flats once stretched away toward the vague blue mountains; and riders of the pony express. A tall form emerges from the past's dim background, and comes on among them.

Six feet and an inch to spare, modeled as finely as an old Greek statue, with eyes of steel grey, sweeping mustache and dark brown hair that hangs to his shoulders, he moves with catlike grace. Two forty-fives hang by his narrow hips; there is a hint of the cavalier in his dropping sombrero and his ornately patterned boots. This is Wild Bill Hickok; he was to have gone with Custer, but a coward's bullet cheated him out of the chance to die fighting by the Little Big Horn and they buried him in the Black Hills in the spring of 1876.

James B. Hickok was the name by which men called him until one December day in the early sixties when the McCandless gang of outlaws tried to drive the horses off from the Rock Creek station of the Overland Stage on the plains of southwestern Nebraska near the Kansas boundary.

There were ten of the desperadoes, and Hickok, who was scarcely more than a boy then, was alone in the little sod house, for Doc Brinck, his partner, was off hunting that afternoon. He watched their approach from the lonely cubicle where he and Brinck passed their days as station-keepers. They rode up through the cottonwoods by the creek. Bill McCandless leaped from the saddle and swaggered to the corral bars.

“The first man lays a hand on those bars, I’ll shoot,” Hickok called. They answered his warning with a volley, and their leader laughed as he dragged the topmost railing from its place. Laughing he died.

Now the rifles of the others rained lead against the sod walls and slugs buzzed like angry wasps through the window. He killed one more by the corral and a third who had crept up behind the wooden well-curb. The seven who were left retired to the cottonwoods to hold council. They determined to rush the building and batter down the door.

When they came forth bearing a dead tree-trunk between them, he got two more of them. And then the timber crashed against the flimsy door; the rended boards flew across the room; the sod walls trembled to the shock. He dropped his rifle and drew his revolver as he leaped to meet them.

Jim McCandless and another pitched forward across the threshold with leveled shotguns at their shoulders. Young Hickok ducked under the muzzle of the nearest weapon, and its flame seared his long hair as he swung for the bearer’s mid-section with all the weight of his body behind the blow. Whirling with the swiftness of a fighting cat he spurned the senseless outlaw with his boot and “threw down” on McCandless. Revolver and shotgun flamed in the same instant; McCandless fell dead; Hickok staggered back with eleven buckshot in his body.

The other three were on him before he recovered his balance. He felt the searing of their bowie-knives against his ribs as they bore him down on the bed. Fingers closed in on his windpipe. He seized the arm in his two hands and twisted it, as one would twist a stick, until the bones snapped. He struggled to his feet, and the warm blood bathed his limbs as he hurled the two who were left across the room.

They came on crouching and their knives gleamed through the thick smoke-clouds. His own bowie-knife was in his hand now, and he stabbed the

foremost through the throat. The other fled. Hickok stumbled out through the door after him, and Doc Brinck came riding back from his hunting expedition in time to lend his rifle to his partner, who insisted profanely that he was fit to finish what he had so well begun.

So young James Hickok shut his teeth against the weakness which was creeping over him and lined his sights on the last of his enemies; for the man whom he had felled with his fist and he with the broken arm had escaped some time during the latter progress of the fight. That final shot was not so true as its predecessors; the outlaw did not die until several days later in the little town of Manhattan, Kansas.

When the eastbound stage pulled up that afternoon the driver and passengers found the long-haired young station-keeper in a deep swoon, with eleven buckshot and thirteen knife wounds in his body. They took him aboard and carried him to Manhattan where he recovered six months later, to find himself known throughout the West as Wild Bill Hickok.

How many men he killed is a mooted question. But it is universally acknowledged that he slew them all fairly. Owning that prestige whose possessor walks amid unseen dangers, he introduced the quick draw on his portion of frontier; and many who sought his life for the sake of the dark fame which the deed would bring them died with their weapons in their hands.

In Abilene, Kansas, where he was for several years town marshal, one of these caught him unawares as he was rounding a corner. Wild Bill complied with the order to throw up his hands and stood, rigid, expressionless, while the desperado, emulating the plains Indians, tried to torture him by picturing the closeness of his end. He was in the midst of his description when Hickok's eyes widened and his voice was thick with seeming horror as he cried,

"My God! Don't kill him from behind!" The outlaw allowed his eyes to waver and he fell with a bullet-hole in his forehead.

As stage-driver, Indian fighter, and peace officer Wild Bill Hickok did a man's work in cleaning up the border. He was about to go and join the Custer expedition as a scout when one who thought the murder would give him renown shot him from behind as he was sitting in at a poker game in

Deadwood. He died drawing his two guns, and the whole West mourned his passing. It had never known a braver spirit.

The silent ranks grow thicker: young men, sunburned and booted for the saddle; the restless souls who forsook tame Eastern farm-lands, lured by the West's promise of adventure, and received the supreme fulfilment of that promise; the finest of the South's manhood drawn toward the setting sun to seek new homes. They come from a hundred boot-hills, from hundreds of solitary graves; from the banks of the Yellowstone, the Platte, the Arkansas, and the two forks of the Canadian.

There are so many among them who died exalted that the tongue would weary reciting the tales. This tattered group were with the fifty who drove off fifteen hundred Cheyennes and Kiowas on Beecher Island. The Battle of the Arickaree was the name men gave the stand; and the sands of the north fork of the Republican were red with the blood of the Indians slain by Forsythe and his half hundred when night fell.

These three who follow in boots, jean breeches, and Oregon shirts are Billy Tyler and the Shadler brothers, members of that company of twenty-eight buffalo hunters who made the big fight at Adobe Walls. The sun was just rising when Quanah Parker, Little Robe, and White Shield led more than eight hundred Comanches and Kiowas in the first charge upon the four buildings which stood at the edge of the Llano Estacado, one hundred and fifty miles from the nearest settlement. The Shadler boys were slain in their wagon at that onslaught. Tyler was shot down at midday as he ventured forth from Myers & Leonard's store. Before the afternoon was over the Indians sickened of their losses and drew off beyond range of the big-caliber Sharp's rifles. They massacred one hundred and ninety people during their three months' raiding but the handful behind the barricaded doors and windows was too much for them.

Private George W. Smith of the Sixth Cavalry is passing now. You would need to look a second time to notice that he was a soldier, for the rifle under his arm is a long-barreled Sharp's single shot and he has put aside much of the old blue uniform for the ordinary Western raiment. That was the way of scouting expeditions, and he, with his five companions, was on the road from McClellan's Creek to Fort Supply when they met two hundred Indians on that September morning of 1874.

Up near the northeast corner of the Texas Panhandle, where the land rises to a divide between Gageby's Creek and the Washita River, the five survivors dug his grave with butcher-knives. They pulled down the banks of a buffalo wallow over his body in the darkness of the night; and they left him in this shallow sepulcher, unmarked by stone or headboard. There his bones lie to this day, and no man knows when he is passing over them.

The six of them had left General Miles's command two days before. At dawn on September 13, they were riding northward up the long open slope: Billy Dixon and Amos Chapman, two buffalo hunters serving as scouts, and the four troopers, Sergeant Z. T. Woodhull, Privates Peter Rath, John Harrington, and George W. Smith. You could hardly tell the soldiers from the plainsmen, had you seen them; a sombreroed group, booted to the knees and in their shirt-sleeves; all bore the heavy, fifty-caliber Sharp's single-shot rifles across their saddle-horns.

The bare land rolled away and away, dark velvet-brown toward the flushing east. The sky was vivid crimson when they turned their horses up a little knoll. They reached its summit just as the sun was rising. Here they drew rein. Two hundred Comanches and Kiowas were riding toward them at the bottom of the hill; the landscape had tricked them into ambush.

There passed an instant during which astonishment held both parties motionless: the white men on the crest, unshaven, sunburned, their soiled sombreros drooping over their narrowed eyes; and at the slope's foot the ranks of half-naked braves all decked out in the war-path's gaudy panoply. Their lean torsos gleamed under the rays of the rising sun like old copper; patches of ocher and vermilion stood out in vivid contrast against the dusky skins; feathered war-bonnets and dyed scalp-locks fluttered, gay bits of color in the morning breeze. The instant passed; the white men flung themselves from their saddles; the red men deployed forming a wide circle about them. A ululating yell, so fierce in its exultation that the cavalry horses pulled back upon their bridles in a frenzy of fear, broke the silence. Then the booming of the long Sharp's fifties on the summit mingled with the rattle of Springfields and needle-guns on the hill's flank.

Now, while the bullets threw the dust from the dry sod into their faces, five of the six dropped on their bellies in a ring. And by the sergeant's orders Private George Smith took charge of the panic-stricken horses. Perhaps that

task fell to him because he was the poorest shot, perhaps it was because he had the least experience; but it was a man's job. He stood upright clinging to the tie-ropes, trying to soothe the plunging animals; and he became the target for a hundred of those rifles which were clattering along the hillside below him. For every warrior in the band knew that the first bullet that found its mark in his body would send the horses stampeding down the slope; and to put his foes afoot was the initial purpose of the plains Indian when he went into battle.

So Private Smith clinched his teeth and did his best, while the deep-toned buffalo-guns roared and the rifles of the savages answered in a never-ending volley all around him. The leaden slugs droned past his ears as thick as swarming bees; the plunging hoofs showed through the brown dust-clouds, and his arms ached from the strain of the tie-ropes.

Billy Dixon had thrown away his wide-rimmed sombrero and his long hair rippled in the wind. He had been through the battle at Adobe Walls and men knew him for one of the best shots in the country south of the Arkansas River. He was taking it slowly, lining his sights with the coolness of an old hand on a target-range. Now he raised his head.

"Here they come," he shouted.

The circle was drawing inward where the land sloped up at the easiest angle. A hundred half-naked riders swung toward the summit, and the thud-thud of the ponies' little hoofs was audible through the rattle of the rifles. The buffalo-guns boomed in slow succession like the strokes of a tolling bell. Empty saddles began to show in the forefront. The charge swerved off, and as it passed at point-blank range a curtain of powder smoke unrolled along the whole flank.

Private George Smith pitched forward on his face. His rifle flew far from him. He lay there motionless. A trooper binding his wounded thigh glanced around when the assault had become a swift retreat.

"Look!" he cried. "They've got Smith."

"Set us afoot," another growled and pointed after the stampeded horses.

Smith lay quite still as he had fallen. They thought him dead. Within the hour, a dozen whooping Comanches ran their ponies up the hill toward his limp form. To gain that scalp-lock under fire would be an exploit worth

telling to their grandchildren in after years. And there was the long-barreled rifle as a bit of plunder. But the five white men, who had changed their position under a second charge, emptied four saddles before the warriors were within a hundred yards of the spot, and the eight survivors whipped their ponies down the slope again.

The sun was climbing high when Amos Chapman rolled over on his side and called to Billy Dixon that his leg was broken. Dixon lifted his head and surveyed the situation. The Indians were gathering for another rush. Thus far they had taken things as though they were so sure of the ultimate result that they did not see fit to run great chances. But this could not last. The next charge might be the final one. Down on a little mesquite flat about two hundred yards distant, he saw a buffalo wallow. He pointed to it.

“We got to make it,” he told the others, and they followed him as he ran for the shelter. But Amos Chapman crawled only a dozen paces or so before he had to give it up. The four fell to work with their butcher-knives heaping up the sand at the summit of the low bank which surrounded the shallow circular depression. They dropped their knives and picked up their rifles, for the savages were sweeping down upon them.

So they dug and fought and fought and dug for another hour and then Billy Dixon was unable to stand the sight of his partner lying helpless on the summit of the knoll.

“I’m going to get Amos,” he announced, and set forth amid a rain of bullets. Those who saw him after the fight was over—and General Miles was among them—said that his shirt was ripped in twenty places by flying lead. He halted on the hilltop and took up Chapman pick-a-back, then bore him slowly down the slope to the little shelter.

Noon came on. The sun shone hot. Dixon had got a bullet in the calf of his leg when he was bearing his companion on his back. Private Rath was the only man who was not wounded. They all thirsted as only men can thirst who have been keyed up to the high pitch of endeavor for hours. The savages charged thrice more; and when they came, numbers of them always deployed toward the top of the knoll where Private Smith lay dying: dead his companions thought, but they were grim in their determination that the red men should never get the scalp which they coveted so sorely. The big Sharps boomed; the saddles emptied to their booming. Private Smith

wakened from one swoon only to fall into another. Sometimes he wakened to the thudding of hoofs and saw the savages sweeping toward him on their ponies.

Near midafternoon the warriors formed for a charge and it was evident from the manner of their massing that they were going to ride down on the buffalo wallow in one solid body. But while their ranks were gathering there came up one of those sudden thunderstorms for which the Staked Plains were famous. The rain fell in sheets; the lightning blazed with scarcely an intermission between flashes. And the charge was given up for the time being. The braves drew off beyond rifle-shot and huddled up within their blankets.

Morris Rath seized the respite to go for ammunition. For Smith's cartridge-belts were full. He came back from the knoll breathless.

"Smith's living," he cried.

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"Come on," Billy Dixon bade him and the two went back to the summit.

"I can walk if you two hold me up," Private George Smith whispered. A bullet had passed through his lungs and when he breathed the air whistled from a hole beneath his shoulder-blade. They supported him on either side and half-carried him to the buffalo wallow.

The thunder-shower had passed. Another was coming fast. The Indians were gathering to take advantage of the brief interval. The agony which had come from rough motion was keeping Smith from swooning now. He saw his companions preparing to stand off the assault. Amos Chapman was holding himself upright by bracing his body against the side of the wallow. Private Smith whispered to the others,

"Set me up like Chapman. They'll think there's more of us fit to shoot that way." And they did as he had asked them.

So he held his body erect while the life was ebbing from it; and the rain came down again in sheets. The Indians fell back before the charge was well begun. It was their last attempt.

The wind rose, biting raw. The savages melted away as dusk drew down over the brown land. Some one looked at Smith. His head was sunk and he was moaning with pain. They found a willow switch and tamped a

handkerchief into the wound. And then they laid him down in the rain-water which had gathered in the wallow. His blood and the blood of the others turned that water a dull red.

Some time near midnight he died. And several days later, when General Miles's troops came to rescue them, the five others buried his body. It was night-time. The fires of the troopers glowed down at the foot of the slope. They made the grave with their butcher-knives by pulling down the sand from the wallow's side upon the body. And then they went to the camp-fires of the soldiers.

They are passing from bleak graveyards on the alkali flats and in the northern mountains where the sage-brush meets the pines: gaunt men in laced boots and faded blue overalls who traveled once too often through the desert's mirage searching for the golden ledges; big-boned hard rock men who died in underground passages where the steel was battering the living granite; men with soft hands and cold eyes who fattened on the fruits of robbery and murder.

This swarthy black-haired one in the soft silk shirt and spotless raiment of the gambler is Cherokee Bob, who killed and plundered unchallenged throughout eastern Washington and Idaho during the early sixties; until the camp of Florence celebrated its third New Year's Eve with a ball in which respectability held sway, and he took his consort thither to mingle with the wives of others. Then he kindled a flame of resentment which his blackest murders had failed to rouse. The next morning the entire camp turned out to drive him forth together with Bill Willoughby, his partner. The two retreated slowly, from building to building, facing the mob. Shotguns bellowed; rifle-bullets sang about their ears, and they answered with their revolvers, until death left their trigger fingers limp.

Here comes one with catlike tread, slender and with a dignity of presence which proclaims the gentleman. But when you glance at the lean immobile face, there is that in the pale eyes which checks your blood; their gray is like the gray of old ice late in the wintertime. This is Henry Plummer. Behind him troop thirty others, bearded men, and the evil of their deeds is plainly written on their features; the members of his band who slew for gold, leaving the dead to mark their trail through Washington, Oregon, Idaho, and Montana. In Alder Gulch their leader was elected sheriff and

planned their murders for them while he held the office. Finally such men as Sam Hauser, N. P. Langford, J. X. Beidler, and Colonel W. F. Saunders took their lives in their hands and organized a vigilance committee at Virginia City. They got their evidence; and in January, 1864, they lynched the sheriff and his thirty, whose deeds would make a long story were they worthy of a place within this chronicle. But the mining camps never produced the type of desperado who was willing to take his share of chances in a shooting affair; excepting when the cattle country was close by. The bad man who could command a measure of admiration always was a horseman.

Here pass those who died boldly in the glaring lands by the Arizona border; a multitude of sunburned men with revolvers swinging low beside their hips and in their hands the deadly Winchesters. One comes among them, rugged of frame, big-featured, red from weather and the fulness of his blood. There is, in the poise of his head and in his eyes, a fierce intolerance. This is Joe Phy. More than forty years have passed since they buried him in the little boot-hill at Florence, Arizona. To-day the town is as conventional as any Eastern village, but it saw a time when men lived up to the rude clean code of our American age of chivalry. During that era Joe Phy met his end with a grimness befitting a son of the Old West.

Florence was the county-seat and Pete Gabriel was sheriff. He was a handsome man with his twisted mustache and Napoleon goatee, free-handed with his money, widely liked. Moreover he was a wonderful shot with his rifle and deadly quick with a single-action revolver. Among the gun-fighters of southern Arizona none was better known than he, and Joe Phy was his deputy.

The county of Pinal extended from the glaring flats below the Gila northward beyond the Superstition Mountains, a savage land where the sun was killing hot in summer-time, where forests of giant cacti stretched for miles like the pine woods that cloaked the higher plateaus. Phy and Gabriel rode together through the country on many a bold errand; they shared their blankets and the hardships of dry camps; they fought beside each other while the bullets of wanted men snarled, ricochetting from the rocks about them.

Then politics brought a rift in their friendship and the day came when the deputy ran for office against his former chief. The campaign was made bitter by accusations. There was, men said, a court-house ring; the big companies were dodging taxes, the small ranchers were getting the worst of it. Election came and the rancor of the reformers grew hotter when the count showed that Gabriel had won. Many openly proclaimed that the court-house crowd had juggled with the ballots, and Phy was among these. When a contest was instituted and the result of the election was carried to the courts, he grew to hate Gabriel. The hatred flamed within him until he could stand it no longer and one night he hunted the town over until he found the sheriff in Keating's saloon.

"Pete," he said, "I'm going home after my six-shooter and I'm coming back to fight it out with you. Get ready while I'm gone."

And Gabriel answered quietly, "All right, Joe. I'll be here when you come back."

The swinging doors closed behind Phy's back and the sheriff turned to the man behind the bar.

"Call 'em up," he said. "This is on me." He ordered whisky and those who lined up beside him kept looking toward the street entrance; but he remained with his back to the swinging doors. The minutes passed; the doors flew open. Within the threshold Joe Phy halted.

"Commence!" he shouted and flung an oath after the word. "Commence!"

Pete Gabriel turned, and his revolver flew from its holster spitting fire. Phy's forty-five ejected a thin stream of orange flame. The voices of the weapons mingled in one loud explosion. The two men took a pace toward each other and the smoke grew thicker as they shot again in unison. They came on slowly, pulling the triggers until the room was filled with the black powder fumes.

Then Pete Gabriel stood swaying within arm's length of Joe Phy's prostrate form. And as he struggled against the mortal weakness which was now creeping through his lead-riddled body the man on the floor whispered,

"I cain't get up. Get down. We'll finish it with knives."

“I guess we’ve both of us got enough,” the sheriff muttered, and staggered out through the door, to lie all night in a near-by corral and live for two years afterward with a bullet through his kidneys.

Joe Phy died hard on the saloon floor. Those in the room gathered about him, and Johnny Murphy strove to lift his head that they might give him a sip of water. A year before he and two others had slain Joe Levy, a faro-dealer in Tucson, and they had done it foully from behind. Since that time men had avoided him, speaking to him only when it was absolutely necessary, and his hair had turned snow-white. Joe Phy opened his eyes and recognized his would-be helper.

“Don’t you dare lay a hand on me,” he cried, “you murderer,” and struck Murphy full in the face. His hand fell limply back. The breath had departed from his body with that blow.

The long procession is waning. Now those are coming whose headboards were erected in the early eighties. A company of swarthy black-eyed riders in the flaring trousers and steep-crowned sombreros of Mexico jog along elbow to elbow with hard-eyed horsemen from the valleys of the San Simon and the Animas. Smuggler and cow-thief, there is a story in their passing which centers about a deep gorge near the place where the boundary between New Mexico and Arizona meets the international line. That story goes a long way back.

Down in the southwestern corner of the Animas valley the Guadalupe Cañon trail approached the gorge from which it got its name. In the days when the American colonists were still contented with Great Britain’s rule it was a main thoroughfare between the Piños Altos mines and old Mexico. Long trains of pack-mules, laden with treasure which the Spaniards had delved from the sun-baked mountains near where Silver City now stands, traveled this route. Apaches and bandits made many an attack on them in the cañon.

The Piños Altos mines were abandoned. The trail fell into disuse. The years passed by. The ’49 rush brought new travelers of another breed who beat down the old track again. Passing through the gorge they too found the Apaches lurking among the rocks and more than one old argonaut laid down his eight-square rifle for the last time within the shadow of those arid cliffs.

Old Man Clanton came with one of these '49 outfits, a typical specimen of that lean-jawed leathern-faced breed who have fought Indians, lynched Mexicans, and established themselves in hundreds of dreary outposts beyond the last settlements. He went on to California, failed to find the gold, and returned some time during the latter seventies to the upper San Pedro valley. Here he "raised his family," as the old expression has it, and, his sons grew up, Finn, Ike, and Billy. Those were wild days, and the two last-named boys became more proficient with rope, running-iron, and forty-five revolver than they ever did with their school-books. In time they were known as rustlers and in the lawless town of Charleston by the San Pedro River they fell in with Curly Bill. When the outlaw went eastward into the valleys of the San Simon and the Animas the two young Clantons went with him. The cow-thieves of the San Simon and the Animas did not go to the trouble of altering brands or "sleepering," as their successors have in later years, but drove entire herds and sold them, as they were, to shippers. Occasionally they rode down into Sonora to raid the ranges south of the border. One July day in 1881 a number of them embarked on such an expedition and they gathered a bunch of several hundred longhorns. They brought them up through Guadalupe Cañon and came on northward to the Double Dobe Ranch. Here they left the cattle with a man to hold them, while they rode over to Curly Bill's place, not far distant.

But the Mexicans had been suffering from this sort of depredations until patience had ceased to be a virtue and a band of thirty dusky vaqueros were following the trail of those stolen longhorns. On the afternoon of July 26 the man who was riding herd caught sight of the steep-crowned sombreros coming out through the mirage on the flats to the south. He waited only long enough to satisfy himself as to the nationality of the riders, then clapped spurs to his pony and raced to Curly Bill's place.

It took the rustlers some time to saddle up. When they arrived at the Double Dobe they found nothing of their former prizes but a fresh trail. They made the best speed they could, but the Mexicans were "shoving those cattle hard," as the old-timers say. They had a good lead and they held it clear to Guadalupe Cañon. The running fight that followed lasted half-way through the gorge. The men from Sonora were seasoned hands at Indian warfare, and they had no mind to give up their beef. They left a small rear-guard, who fell back slowly from rock to rock while their companions urged the

longhorns to a run. The shouts of “Toro! Toro! Vaca! Vaca”! mingled with the crackling of the rifles. And when the rustlers finally routed the stubborn defenders to chase the herders on through the ravine and reassemble the panic-stricken stock, they took back three dead men across their saddles. They buried the bodies at the Cloverdale ranch and so started a lonely little boot-hill whose headboards showed on the edge of the mesa for many years.

There came now to the old Guadalupe Cañon trail a new traffic. Mexican smugglers who had formerly been crossing the boundary at the southern end of the San Pedro valley shifted their route hither and traveled northward to Silver City. They were hard men, accustomed to warring with the Apaches, bandits, and border officers. They banded together in formidable outfits to guard the dobie dollars which loaded down the aparejos during the northern journey. And Curly Bill’s companions saw them passing on more than one occasion: a scuffle of hoofs, a haze of dust, through which showed the swarthy faces of the outriders under the great sombreros—and, what lingered longest in the memories of these hard-faced men of the Animas, the pleasant dull chink of the dobie dollars in the rawhide pack-sacks.

In Galeyville the rustlers talked the matter over. It was a simple problem: go and get the money. They went one day and made their camp near Guadalupe Cañon. They sent scouts on through the gorge to watch the country from the mesa above the spot where John Slaughter’s ranch buildings now stand. One hot noontide the scouts came riding in.

“There’s a big outfit coming. Must be a dozen mules and nigh on to thirty men.” The outlaws were in the saddle before those who brought the tidings had time to breathe their horses.

In those days you were supposed to give a man what the old-timers called an even break before you killed him. The supposition was lived up to by the chivalrous and ignored by many who gained large reputations. But when it came to Mexicans there was not even that ideal to attain; they were not rated as full-fledged human beings; to slay one meant no addition to the notches on one’s gun, nor did one feel obliged to observe the rules of fair play. You simply killed your greaser in the most expeditious manner possible and then forgot about it. The rustlers went about the business according to this custom. Save for Curly Bill the members of the party left

their horses in charge of a man around a turn of the gorge. They hid themselves behind the rocks on the steep mountain-side and waited while their burly leader rode slowly to meet the smugglers.

The train was traveling after the Mexican fashion, which is very much like the Spanish California manner of driving a herd. The chief of the outfit rode in the lead some distance before the first pack-mule. The laden animals followed in single file. Flanking them on each side were the armed guards, with one or two closing in on the rear. Thus they came, winding their way among the stark rocks and the clumps of Spanish bayonet, and when the leader caught sight of Curly Bill from under his huge, silver decked sombrero, he reined in his horse; his grip tightened on the rifle which he carried across his saddle. The outriders pulled up; there was a low rattle of shifting weapons and the bell of the first mule stopped tinkling as the train came to a stand.

But the strange rider was alone. The leader raised his arm in signal and the straggling procession resumed its advance. The solitary American rode on until he was alongside their head man.

“Buenos dias, Señor,” he said and checked his pony. The Mexican answered. The pair shook hands. When they had talked for some moments, Curly Bill turned and rode back up the cañon beside the smuggler. The pack-train followed and the men on the flanks eased their rifles back into the sheaths. They traveled until the lead mule had passed the last hidden rustler.

Curly Bill’s right hand swept to his revolver holster and came on upward clutching the weapon’s butt. The movement was so quick that before those who were looking at him really grasped its meaning the hot rocks were bandying echoes of the report. The Mexican was sliding from his saddle, quite dead. The outlaw was spurring his pony up the mountain-side.

Now the outriders dragged their rifles from the sheaths but while they were seeking to line their sights on the murderer the rustlers opened fire on them. Those cow-thieves of the Animas were good shots; the range was brief. The flat explosions of the Winchesters, the scuffling of hoofs, the voices of dark-skinned riders calling upon their saints as they pitched forward from their frenzied horses, dying; the squealing of a hit burro; these things the

arid cliffs heard and repeated to one another. And then the rat-tat-tat of hoofbeats as the surviving smugglers fled westward.

That is the way the rustlers told the story in Galeyville amid grim laughter; and the voices of the narrators were raised to carry above the staccato pounding of the painos, the scuffling of boot heels on the dance-hall floors, the shrill mirthless outcries of rouge-bedizened women, and the resonant slapping of dobie dollars on the unpainted pine bars. Now and again the recitals were interrupted by the roaring of forty-five revolvers as the more fervid celebrants showed their expertness at marksmanship by shooting the French heels from the shoes of the dance-hall girls.

John Ringo, the king of the outlaws, got wind of what was going on and rode over from Tombstone, silent as usual, and with that saturninity of expression which grew darker as the whisky began to work within him. He took no part in the celebration but sat through one day and two blazing nights, dumbly sardonic, at a round table. Save for his dark countenance, the faces which ringed that table were changing constantly. Men came noisily, sat down for a time, and departed at length in chastened silence as the poker-game which he had organized went on and on—until a large share of those dobie dollars passed unto him. Then, with the sudden flare of recklessness which invariably came to him sooner or later, he in his turn flung away the silver over the unpainted bars. So the incident passed and was forgotten—by the rustlers.

The Mexicans did not forget.

Old Man Clanton started with a Tombstone butcher and three others on a journey for the Animas valley a few weeks later. They were going to buy beef cattle and they took the Guadalupe Cañon route. One night they made camp near the middle of the gorge. And while they slept a dozen swarthy men, who wore the steep-crowned sombreros and the trousers with leathern facings which were a part of every Mexican smuggler's costume, came creeping in and out among the boulders like the Apaches whose ways they had studied in years of border warfare.

They had waited a long time in the lofty mountains south of the boundary, watching the malapi flats for a party of Americans; and at last these had come. They had dogged their trail through the long hot afternoon, keeping well back lest they should be discovered. Now they were closing in. The air

grew cooler and the hour of dawn approached. They slipped, black shadows a little deeper than the night which enfolded them. The light climbed up the eastern sky and leaked down between the cliffs; the cold gray dusk which comes before the dawn. The shadows melted slowly; the heavens began to blush. Down here a man could line the notch of his hindsight with the bead. A pebble tinkled in the arid watercourse. One of the sleepers stirred in his blankets. He caught the sound, opened his eyes, and saw the crown of a sombrero rising behind a rock. He leaped from his bed and flung himself among a clump of boulders just as the rifles began to talk.

Two or three cow-boys were lounging about the Cloverdale ranch-house on a blazing summer afternoon when a queer figure came into sight upon the palpitating plain. The spectacle of a man on foot was so uncommon in those days that they had a hard time making themselves believe that this form, which at times took distorted shapes in the wavering overheated air, was that of a human being. Then they set forth to meet him, and they brought the one survivor of the Canton party to the ranch-house. His bare-feet were bleeding; he was half-clad; and his tongue was swollen with thirst. They got his story and they rode to Guadalupe Cañon where they found the bodies of his companions. They buried them on the little boot-hill overlooking the ranch buildings.

But the episode was not yet finished.

Time went by. Billy Clanton and the two MacLowery boys, who are said to have been parties to the dobie dollar hold-up, died one autumn morning fighting it out against the Earp faction in Tombstone's street. Curly Bill's fate remains something of a mystery, but one story has it that Wyatt Earp killed him near Globe two years or so later. John Ringo killed himself up in the San Simon, delirious from thirst. Rattlesnake Bill, who helped to spend the Mexican silver, was shot down by a fellow-rustler in Galeyville. Jake Gauz, another of the participants, was lynched for horse-stealing not far from the head of Turkey Creek Cañon.

So they went one after the other, and it is possible that every man who was present at the massacre of the Mexicans died with his boots on.

“Those who take up the sword shall perish by the sword.” The words come from one who rides near the grim procession's end; a slim young fellow,

beardless, his hair hanging to his shoulders. It is the boy whom men called Billy the Kid. He quoted the passage to Pat Garret when the Lincoln County sheriff and his posse were taking him and his captured companions to Santa Fé.

“Those who take up the sword shall perish by the sword.” Only a few nights before he spoke, Tom O’Phalliard, one of the last of his band, had fallen from his horse with a bullet through his chest in Fort Sumner to die, cursing the tall silent sheriff, in the room where the posse had carried him. Two mornings afterward at the Arroyo Tivan, Charley Bowdre had staggered into the stone house where the outlaws were hiding, wounded unto death by the rifles of these same pursuers.

“Charley, you’re done for. Go out and see if you can’t get one of them,” Billy the Kid had told the dying man, and through the crack of the door had watched him stumbling over the frozen snow toward the posse, while his numbed fingers fumbled with his revolver butt in a final access of vain effort.

And now this youth, the deadliest of the Southwestern outlaws, spoke from the Scriptures to Pat Garret; perhaps it was all of his Bible that he knew. He said it in December. In July Garret shot him in Pete Maxwell’s room at Fort Sumner. The years went by. One day the former sheriff fell in the sand hills west of Tularosa with an assassin’s bullet in his back.

Thus, throughout the Old West: bad man and frontier officer, Indian fighter, cow-boy, stage-driver, trooper, and faro-dealer, they lived their lives in accordance with bold customs which bridged the gap between savagery and modern civilization. In a strange land they did the best they could; and, bad or good, they came to their ends with a fine unflinching disregard for the supreme adventure.

To-day fat prairie corn-fields stand tasseled in the sunlight, the smoke of lusty young cities rises black against the sky; while automobiles speed upon concrete highways over the forgotten graveyards where their bones lie.

*** END OF THE PROJECT GUTENBERG EBOOK WHEN THE WEST
WAS YOUNG ***

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